

COMPLETE LEARNING SESSION

CVC and CBI - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

CVC and CBI	
REFRESHED TEACHING NAVIGATION — BASIC/CORE FIRST	
01	EVOLUTION: FROM WARTIME POLICE UNIT TO A LAYERED VIGILANCE SYSTEM Its principal consequence is that 1984 CVC created by Government
02	THE INSTITUTIONAL ARCHITECTURE Its principal consequence is that vigilance advice police inquiry
03	CVC STATUS, COMPOSITION AND APPOINTMENT A vacancy in the selection committee does not by itself invalidate an
04	CVC TENURE, REAPPOINTMENT, POST-TENURE BARS AND REMOVAL Its principal consequence is that reappointment as CVC/CVC
05	CVC FUNCTIONS UNDER SECTION 8 CVC Functions Under Section 8 operates through Complaint
06	CVOS AND DEPARTMENTAL VIGILANCE Chief Vigilance Officers (CVOs) are the vigilance nodes within
07	CBI AND DSPE: ORGANISATION, POLICE POWER AND JURISDICTION The decisive contrast is between IN/SP/OL National Central Bureau
08	SUPERINTENDENCE, ADMINISTRATION AND INVESTIGATIVE JUDGMENT The Lokpal Act creates a special superintendence and direction rule
09	CBI DIRECTOR: APPOINTMENT, TENURE, TRANSFER AND SENIOR POSTS Sections 4A, 4B, 4Bb and 4C of the DSPE Act distribute Director
10	STATE CONSENT AND INDIAN FEDERALISM The decisive contrast is between Standing consent for derived
11	CONSTITUTIONAL COURTS AND THE CONSENT RULE The decisive contrast is between Correct meaning Incorrect
12	CONSENT CASE LAW: EXACT HOLDINGS, NARROW INFERENCES Consent Case Law: Exact Holdings, Narrow Inferences operates
13	THE VINET NARAIN V. UNION OF INDIA (1997) SAFEGUARD ARCHITECTURE Union of India (1997) model is not "CBI outside government." It is a
14	JUDICIAL CONTROLS ON DIRECTOR INDEPENDENCE The exam-safe limitation is that committee control over transfer One
15	"CAGED PARROT": USE AS CONTEXT, NOT RATIO "Caged Parrot": Use as Context, Not Ratio operates through Weak
16	LOKPAL, CVC, CBI AND CVO: COMPLEMENTARY, NOT HIERARCHICAL DUPLICATES The Lokpal Act creates its own Inquiry Wing and Prosecution Wing
17	INVESTIGATION LIFECYCLE AND SAFEGUARDS Investigation Lifecycle and Safeguards operates through Does
18	COMPARISON: CVC, CBI, LOKPAL, ED, NIA AND STATE AGENCIES Comparison: CVC, CBI, Lokpal, ED, NIA and State Agencies operates
19	INDEPENDENCE, ACCOUNTABILITY AND PERFORMANCE Technically, Independence, Accountability and Performance is
20	CURRENT AND LEGAL CONTROL SHEET The exam-safe limitation is that included as stable legal control
21	ANSWER-WRITING FRAMEWORKS Technically, Answer-Writing Frameworks is analyzed by relating
22	HIGH-YIELD TRAPS AND MINI-RECAP High-Yield Traps and Mini-Recap denotes the constitutional rules and
23	VERIFIED SOURCE AND AUTHORITY MAP The decisive contrast is between 3 Generic summaries Discovery only

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

CONTENTS / SESSION INDEX

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

CVC and CBI - Complete Uncompressed Learning Session	5
Visual 01 - Learning Roadmap	5
BASIC LEARNING SESSION	5
SESSION 1 - EVOLUTION: FROM WARTIME POLICE UNIT TO A LAYERED VIGILANCE SYSTEM	7
SESSION 2 - THE INSTITUTIONAL ARCHITECTURE	10
SESSION 3 - CVC: STATUS, COMPOSITION AND APPOINTMENT	11
SESSION 4 - CVC TENURE, REAPPOINTMENT, POST-TENURE BARS AND REMOVAL	14
SESSION 5 - CVC FUNCTIONS UNDER SECTION 8	16
SESSION 6 - CVOS AND DEPARTMENTAL VIGILANCE	20
SESSION 7 - CBI AND DSPE: ORGANISATION, POLICE POWER AND JURISDICTION	21
SESSION 8 - SUPERINTENDENCE, ADMINISTRATION AND INVESTIGATIVE JUDGMENT	24
SESSION 9 - CBI DIRECTOR: APPOINTMENT, TENURE, TRANSFER AND SENIOR POSTS	26
SESSION 10 - STATE CONSENT AND INDIAN FEDERALISM	29
SESSION 11 - CONSTITUTIONAL COURTS AND THE CONSENT RULE	32
SESSION 12 - CONSENT CASE LAW: EXACT HOLDINGS, NARROW INFERENCES	33
SESSION 13 - THE VINEET NARAIN V. UNION OF INDIA (1997) SAFEGUARD ARCHITECTURE	35
SESSION 14 - JUDICIAL CONTROLS ON DIRECTOR INDEPENDENCE	37
SESSION 15 - "CAGED PARROT": USE AS CONTEXT, NOT RATIO	38
SESSION 16 - LOKPAL, CVC, CBI AND CVO: COMPLEMENTARY, NOT HIERARCHICAL DUPLICATES	39
SESSION 17 - INVESTIGATION LIFECYCLE AND SAFEGUARDS	41
SESSION 18 - COMPARISON: CVC, CBI, LOKPAL, ED, NIA AND STATE AGENCIES	44
SESSION 19 - INDEPENDENCE, ACCOUNTABILITY AND PERFORMANCE	46
SESSION 20 - CURRENT AND LEGAL CONTROL SHEET	48
SESSION 21 - ANSWER-WRITING FRAMEWORKS	50
SESSION 22 - HIGH-YIELD TRAPS AND MINI-RECAP	51
SESSION 23 - VERIFIED SOURCE AND AUTHORITY MAP	54
BASIC MCQS / REMEDIATION	55
D. Original MCQs - 36 Questions	55
E. Remedial MCQs - 12 Questions	61

PYQS AND ANSWER PRACTICE	63
A. PYQ Routing Audit	63
B. Verified Mains PYQ - 2021 GS-II Q11	63
C. Verified Prelims PYQ - 2026 GS-I Q63 (Controlled Unsolved)	64
F. Original Solved Mains Practice - 8 Questions	65
OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER	71
PART A - CENTRAL VIGILANCE COMMISSION (CVC) □□	71
PART B - CENTRAL BUREAU OF INVESTIGATION (CBI) □□	71
CONSOLIDATED REGISTER NOTES	73
1. Topic Thesis	73
Visual 83 - Register-Page Master Map	73
2. Evolution in Six Lines	73
Visual 84 - Evolution Mnemonic	74
3. CVC Snapshot	74
4. CVC Removal	74
5. CVC Section 8 Core	74
Visual 85 - "S-D-I-R-A-V" Recall	75
6. CVO Notes	75
7. CBI/DSPE Snapshot	75
Visual 86 - DSPE "2-3-4-5-6" Ladder	75
8. Superintendence Split	76
9. CBI Director	76
10. State Consent	76
Visual 87 - Consent Decision Tree	76
11. Consent Cases	77
12. Vineet Narain v. Union of India (1997) Safeguards	77
13. Lokpal Interface	77
Visual 88 - Lokpal-CVC-CBI-Court Flow	77
14. Investigation Lifecycle	78
15. PC Act Safeguard Gates	78
16. Comparison Capsule	78

17. Independence vs Accountability	79
Visual 89 - Balance Formula	79
18. Critiques	79
19. Reform Notes	80
20. Mains Vocabulary	80
Visual 90 - Final 30-Second Revision Box	80
21. Current-Control Limits to Write in the Margin	81
COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM	81

CVC and CBI - Complete Uncompressed Learning Session

Complete learning session + solved PYQs + solved practice + final register notes

Legal/current control date: 24 August 2026 (Asia/Kolkata)

Tag key: [FACT] = directly supported by a named legal/official source; [ANALYSIS] = reasoned examination; [CURRENT] = checked for this package's control date; [LIMIT] = a boundary, qualification, unresolved issue, or deliberately unfrozen fact.

- [CURRENT] Status is controlled to **24 August 2026, Asia/Kolkata**.
- [CURRENT] **Live official refresh, 24 August 2026:** The CVC Act, DSPE Act, Lokpal and Prevention of Corruption Act interfaces, official CVC/CBI/DoPT descriptions and controlling Supreme Court decisions were rechecked on 24 August 2026. Officeholders, consent-State counts and live caseloads are not frozen.

How to Use This Package

This is an independent UPSC learning session, not a short revision sheet. Read the concept sections first, then attempt the PYQ and practice workbook. The **Final Consolidated Register Notes** are deliberately placed last.

Visual 01 - Learning Roadmap

```
FOUNDATION
|
+--> Evolution: SPE -> DSPE Act -> CBI resolution -> CVC resolution -> CVC Act
|
CORE INSTITUTIONS
|
+--> CVC design + section 8 functions + CVO system
+--> CBI organisation + DSPE police powers + offence domains
|
FEDERAL CONTROL
|
+--> DSPE sections 5-6 -> State consent -> court-directed investigation
|
INDEPENDENCE AND ACCOUNTABILITY
|
+--> Director selection/tenure -> superintendence split -> case law
|
APPLICATION
|
+--> Lokpal interface -> investigation safeguards -> comparisons -> reforms
|
PRACTICE
|
+--> Verified PYQs -> 48 MCQs -> 8 solved Mains -> register notes
```

Caption: The topic moves from legal identity to institutional interaction, federalism, safeguards and exam application.

BASIC LEARNING SESSION

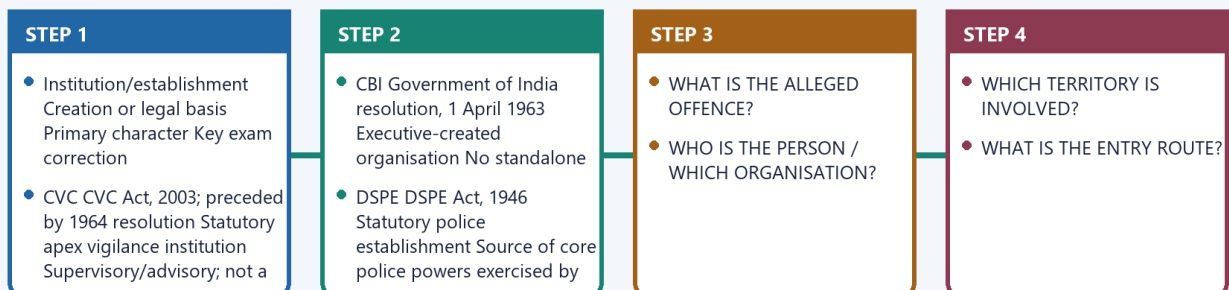


Refreshed teaching navigation

Distinct embedded teaching-navigation image. The separate continuous Cārvāka-style flowchart package remains an independent at-a-glance artifact.

Core Idea: One Anti-Corruption System, Different Legal Roles denotes the constitutional rules and institutional links organised around Institution/establishment Creation or legal basis Primary character Key exam correction. Core Idea: One Anti-Corruption System, Different Legal Roles operates through CVC CVC Act, 2003; preceded by 1964 resolution Statutory apex vigilance institution Supervisory/advisory; not a police station or court, connected with CBI Government of India resolution, 1 April 1963 Executive-created organisation No standalone "CBI Act". The operative mechanism matters because dSPE DSPE Act, 1946 Statutory police establishment Source of core police powers exercised by CBI investigators. Its principal consequence is that WHAT IS THE ALLEGED OFFENCE?. The decisive contrast is between WHO IS THE PERSON / WHICH ORGANISATION? and WHICH TERRITORY IS INVOLVED?. The exam-safe limitation is that WHAT IS THE ENTRY ROUTE?.

CORE IDEA: ONE ANTI-CORRUPTION SYSTEM, DIFFERENT LEGAL ROLES



Topic-specific visual map: Core Idea: One Anti-Corruption System, Different Legal Roles.

[FACT] The CVC and CBI are not interchangeable. The **CVC is a statutory vigilance, supervisory and advisory institution** under the Central Vigilance Commission Act, 2003. The **CBI is an organisation created by a Government of India resolution dated 1 April 1963**, while the police establishment from which its investigative powers are principally derived is the **Delhi Special Police Establishment (DSPE)** constituted under the DSPE Act, 1946.

[ANALYSIS] UPSC commonly tests the gap between a familiar label and its precise legal source. “CBI is a statutory body under the DSPE Act” is imprecise: the Act constitutes and empowers the DSPE; the 1963 executive resolution established the wider CBI organisation and made the DSPE its Investigation and Anti-Corruption Division.

[LIMIT] Neither institution is a universal anti-corruption authority. Their jurisdiction, functions, offence domain, personnel coverage and coercive powers depend on the governing statute, notification, reference, consent or court order.

Visual 02 - Legal Identity in One Frame

Institution/establishment	Creation or legal basis	Primary character	Key exam correction
CVC	CVC Act, 2003; preceded by 1964 resolution	Statutory apex vigilance institution	Supervisory/advisory; not a police station or court
CBI	Government of India resolution, 1 April 1963	Executive-created organisation	No standalone “CBI Act”
DSPE	DSPE Act, 1946	Statutory police establishment	Source of core police powers exercised by CBI investigators
Lokpal	Lokpal and Lokayuktas Act, 2013	Statutory anti-corruption ombudsman	Can route preliminary inquiry/investigation as the Act provides
Departmental CVO	Vigilance-administration framework	Internal vigilance node	Works within an organisation; not a substitute for criminal investigation

Caption: Legal basis determines power; similar anti-corruption purposes do not create identical jurisdictions.

Visual 03 - Five Questions Before Naming an Agency

1. WHAT IS THE ALLEGED OFFENCE?
|
2. WHO IS THE PERSON / WHICH ORGANISATION?
|
3. WHICH TERRITORY IS INVOLVED?
|
4. WHAT IS THE ENTRY ROUTE?
complaint / reference / consent / notification / court order
|
5. WHAT OUTPUT IS SOUGHT?
vigilance advice / departmental action / FIR-investigation /
prosecution / adjudication

Caption: Institutional competence is decided by offence, person, territory, entry route and legal output-not by prestige.

SESSION 1 - EVOLUTION: FROM WARTIME POLICE UNIT TO A LAYERED VIGILANCE SYSTEM

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Evolution: From Wartime Police Unit to a Layered Vigilance System denotes the constitutional rules and institutional links organised around Year Institutional development Legal significance.

Technical definition: Its principal consequence is that 1964 CVC created by Government resolution following Santhanam Committee recommendation Executive vigilance body at inception.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The CBI-CVC system evolved through executive creation, statutory police powers and judicial safeguards, producing a hybrid accountability structure rather than one fully autonomous agency.

MUST-WRITE KEYWORDS

- Evolution
- hybrid system
- Wartime ordinance gave the SPE a legal framework
- Transitional legal basis during the war
- Delhi Special Police Establishment Act enacted
- DSPE obtained continuing statutory police powers

How to use them: Frame the answer through Evolution; define hybrid system, connect Wartime ordinance gave the SPE a legal framework with Transitional legal basis during the war to explain the mechanism, and use Delhi Special Police Establishment Act enacted for the decisive comparison or qualification.

Evolution: From Wartime Police Unit to a Layered Vigilance System denotes the constitutional rules and institutional links organised around Year Institutional development Legal significance. Evolution: From Wartime Police Unit to a Layered Vigilance System operates through 1943 Wartime ordinance gave the SPE a legal framework Transitional legal basis during the war, connected with 1946 Delhi Special Police Establishment Act enacted DSPE obtained continuing statutory police powers. The operative mechanism matters because 1963 CBI established by Home Ministry resolution dated 1 April Executive creation; DSPE became a division within CBI. Its principal consequence is that 1964 CVC created by Government resolution following Santhanam Committee recommendation Executive vigilance body at inception. The decisive contrast is between Vineet Narain v. Union of India (1997) v Union of India Supreme Court prescribed institutional safeguards and pressed for statutory CVC and 2003 CVC Act enacted CVC became statutory; DSPE superintendence architecture was codified. The exam-safe limitation is that 2013-14 Lokpal and Lokayuktas Act created a new complaint-routing and supervisory interface Added Lokpal-CVC-CBI coordination rules.

EVOLUTION: FROM WARTIME POLICE UNIT TO A LAYERED VIGILANCE SYSTEM

AXIS 1

- Year Institutional development Legal significance
- 1943 Wartime ordinance gave the SPE a legal framework Transitional legal basis during the war
- 1946 Delhi Special Police Establishment Act enacted DSPE obtained continuing statutory police powers

AXIS 2

- 1963 CBI established by Home Ministry resolution dated 1 April Executive creation; DSPE became a division within CBI
- 1964 CVC created by Government resolution following Santhanam Committee recommendation Executive vigilance body at inception
- 1997 Vineet Narain v Union of India Supreme Court prescribed institutional safeguards and pressed for statutory CVC

AXIS 3

- 2003 CVC Act enacted CVC became statutory; DSPE superintendence architecture was codified
- 2013-14 Lokpal and Lokayuktas Act created a new complaint-routing and supervisory interface Added Lokpal-CVC-CBI coordination rules

Topic-specific visual map: Evolution: From Wartime Police Unit to a Layered Vigilance System.

Visual 04 - Evolution Timeline

Year	Institutional development	Legal significance
1941	Special Police Establishment (SPE) set up by executive order during World War II	Investigated bribery and corruption connected with War and Supply transactions
1943	Wartime ordinance gave the SPE a legal framework	Transitional legal basis during the war
1946	Delhi Special Police Establishment Act enacted	DSPE obtained continuing statutory police powers
1963	CBI established by Home Ministry resolution dated 1 April	Executive creation; DSPE became a division within CBI
1964	CVC created by Government resolution following Santhanam Committee recommendation	Executive vigilance body at inception
1997	<i>Vineet Narain v. Union of India (1997) v Union of India</i>	Supreme Court prescribed institutional safeguards and pressed for statutory CVC
2003	CVC Act enacted	CVC became statutory; DSPE superintendence architecture was codified
2013-14	Lokpal and Lokayuktas Act created a new complaint-routing and supervisory interface	Added Lokpal-CVC-CBI coordination rules
2021	CVC and DSPE tenure-extension amendments	Permitted structured one-year extensions up to aggregate five years, subject to statutory conditions
2023	<i>Dr Jaya Thakur v. Union of India (2023) v Union of India</i>	Supreme Court upheld the amendment framework; extension is not automatic

Caption: CBI and CVC began through executive action, but their present powers are not traceable to the same legal instrument.

[FACT] The official CBI history records the SPE's 1941 wartime origin, extension to railway corruption, the DSPE Act of 1946, and the 1963 CBI resolution.

[FACT] Section 24 of the CVC Act connects the statutory Commission with the earlier CVC created through the Ministry of Home Affairs resolution dated 11 February 1964.

[ANALYSIS] Institutional evolution produced a **hybrid system**: executive organisation, statutory police powers, statutory vigilance oversight, executive administration, federal consent and constitutional-court review coexist.

Visual 05 - Executive Creation vs Statutory Power

EXECUTIVE RESOLUTION

Creates organisational form

Can allocate administrative business

Example: CBI, 1963

PARLIAMENTARY STATUTE

Confers defined legal powers

Sets jurisdiction and safeguards

Example: DSPE Act, CVC Act

BOTH OPERATE TOGETHER

CBI organisation + DSPE statutory police establishment

Caption: An executive origin does not mean that every operational power is merely executive; statutory powers must be traced separately.

CLOSING RECALL FLOW - EVOLUTION: FROM WARTIME POLICE UNIT TO A LAYERED VIGILANCE SYSTEM

SUBTOPIC CLOSURE FLOW | Evolution: From Wartime Police Unit to a Layered Vigilance System

1. KEY TERMS / DEFINITIONS

Evolution · hybrid system · Wartime ordinance gave the SPE a legal framework · Transitional legal basis during the war · Delhi Special Police Establishment Act enacted · DSPE obtained continuing statutory police powers

2. MECHANISM / ARGUMENT

Its principal consequence is that 1964 CVC created by Government resolution following Santhanam Committee recommendation Executive vigilance body at inception.

3. CONSEQUENCE / CONTRAST

The decisive contrast is between Vineet Narain v.

4. UPSC TRAP / ANSWER-USE

Do not miss this limiting distinction: the operative mechanism matters because 1963 CBI established by Home Ministry resolution dated 1...

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The CBI-CVC system evolved through executive creation, statutory police powers and judicial safeguards, producing a hybrid accountability structure rather than one fully autonomous agency.

SESSION 2 - THE INSTITUTIONAL ARCHITECTURE

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Institutional Architecture denotes the constitutional rules and institutional links organised around PARLIAMENT / STATUTES.

Technical definition: Its principal consequence is that vigilance advice police inquiry/ complaint scrutiny,.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The vigilance architecture separates departmental prevention, CVC oversight, CBI investigation, prosecution and judicial adjudication, preventing supervision from being mistaken for conviction.

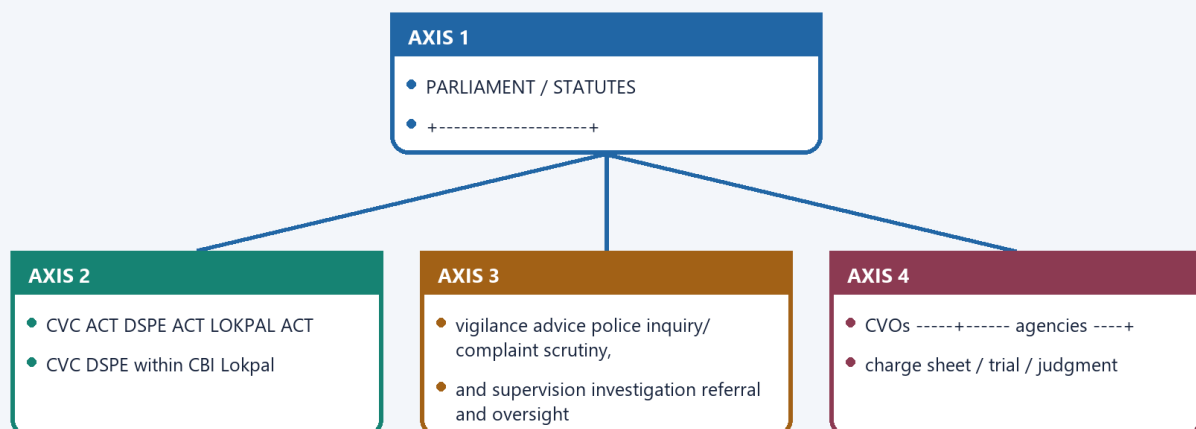
MUST-WRITE KEYWORDS

- The Institutional Architecture
- Vigilance-system supervision
- Yes, within statutory field
- No
- Limited to matters under its Act
- Judicial review only

How to use them: Frame the answer through The Institutional Architecture; define Vigilance-system supervision, connect Yes, within statutory field with No to explain the mechanism, and use Limited to matters under its Act for the decisive comparison or qualification.

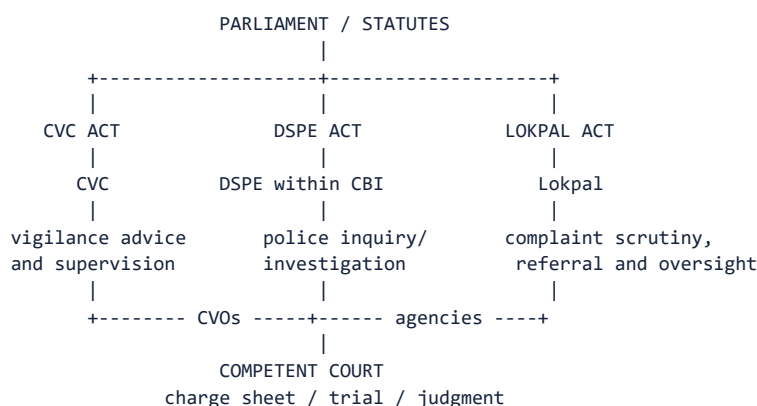
The Institutional Architecture denotes the constitutional rules and institutional links organised around PARLIAMENT / STATUTES. The Institutional Architecture operates through +-----+, connected with CVC ACT DSPE ACT LOKPAL ACT. The operative mechanism matters because cVC DSPE within CBI Lokpal. Its principal consequence is that vigilance advice police inquiry/ complaint scrutiny,. The decisive contrast is between and supervision investigation referral and oversight and CVOs ----- agencies ----+. The exam-safe limitation is that charge sheet / trial / judgment.

THE INSTITUTIONAL ARCHITECTURE



Topic-specific visual map: The Institutional Architecture.

Visual 06 - Anti-Corruption and Investigation Architecture



Caption: Advice, investigation, prosecution and adjudication occur at different institutional stages.

Visual 07 - Power-Type Matrix

Power type	CVC	CBI/DSPE	Lokpal	Court
Vigilance-system supervision	Yes, within statutory field	No	Limited to matters under its Act	Judicial review only
Police investigation	No general police power	Yes, within legal jurisdiction	May direct an agency; own Inquiry Wing is for preliminary inquiry	May direct investigation in appropriate cases
Arrest/search/seizure as police	No general power	Yes, subject to criminal procedure and special statutes	Search may be authorised through agency under Lokpal Act	Issues judicial warrants/orders as law provides
Prosecution decision/output	Advises/reviews sanction progress	Investigates and files statutory report; prosecution structure applies	Can direct Prosecution Wing/agency under its Act	Takes cognizance, tries and decides
Final guilt determination	No	No	No	Yes

Caption: The power to supervise investigation is not the power to convict, and an investigative recommendation is not proof of guilt.

CLOSING RECALL FLOW - THE INSTITUTIONAL ARCHITECTURE

SUBTOPIC CLOSURE FLOW The Institutional Architecture			
1. KEY TERMS / DEFINITIONS The Institutional Architecture · Vigilance-system supervision · Yes, within statutory field · No · Limited to matters under its Act · Judicial review only	2. MECHANISM / ARGUMENT Its principal consequence is that vigilance advice police inquiry/ complaint scrutiny,..	3. CONSEQUENCE / CONTRAST The decisive contrast is between and supervision investigation referral and oversight and CVOs -----+----- agencies -----+.	4. UPSC TRAP / ANSWER-USE Do not miss this limiting distinction: the exam-safe limitation is that charge sheet / trial / judgment.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The vigilance architecture separates departmental prevention, CVC oversight, CBI investigation, prosecution and judicial adjudication, preventing supervision from being mistaken for conviction.			

SESSION 3 - CVC: STATUS, COMPOSITION AND APPOINTMENT

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: CVC: Status, Composition and Appointment denotes the constitutional rules and institutional links organised around Section 3 of the CVC Act constitutes the Commission.

Technical definition: A vacancy in the selection committee does not by itself invalidate an appointment.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

A vacancy in the selection committee does not by itself invalidate an appointment.

MUST-WRITE KEYWORDS

- CVC
- Status
- Composition
- Appointment
- Central Vigilance Commissioner
- not more than two Vigilance Commissioners

How to use them: Frame the answer through CVC; define Status, connect Composition with Appointment to explain the mechanism, and use Central Vigilance Commissioner for the decisive comparison or qualification.

CVC: Status, Composition and Appointment denotes the constitutional rules and institutional links organised around [FACT] Section 3 of the CVC Act constitutes the Commission. It consists of. CVC: Status, Composition and Appointment operates through one Central Vigilance Commissioner, as Chairperson; and, connected with not more than two Vigilance Commissioners, as Members. The operative mechanism matters because [FACT] The statute draws eligible persons from two broad experience pools. Its principal consequence is that cENTRAL VIGILANCE COMMISSION. The decisive contrast is between +-----+ and CENTRAL VIGILANCE VIGILANCE. The exam-safe limitation is that vIGILANCE COMMISSIONER COMMISSIONER.

CVC: STATUS, COMPOSITION AND APPOINTMENT

AXIS 1

- [FACT] Section 3 of the CVC Act constitutes the Commission. It consists of
- one Central Vigilance Commissioner, as Chairperson; and

AXIS 2

- not more than two Vigilance Commissioners, as Members.
- [FACT] The statute draws eligible persons from two broad experience pools

AXIS 3

- CENTRAL VIGILANCE COMMISSION
- +-----+

AXIS 4

- CENTRAL VIGILANCE VIGILANCE
- VIGILANCE COMMISSIONER COMMISSIONER

Topic-specific visual map: CVC: Status, Composition and Appointment.

[FACT] Section 3 of the CVC Act constitutes the Commission. It consists of:

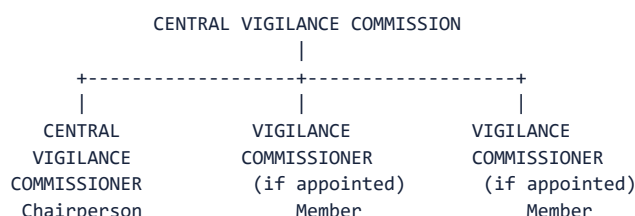
- one **Central Vigilance Commissioner**, as Chairperson; and
- **not more than two Vigilance Commissioners**, as Members.

[FACT] The statute draws eligible persons from two broad experience pools:

1. All-India Service, Union civil service or Union civil post experience involving vigilance, policy-making and administration, including police administration; or
2. specified public-sector corporate experience and expertise in finance (including insurance and banking), law, vigilance and investigations.

[FACT] The proviso prevents all three offices from being monopolised by one eligibility category: not more than two persons may belong to either category.

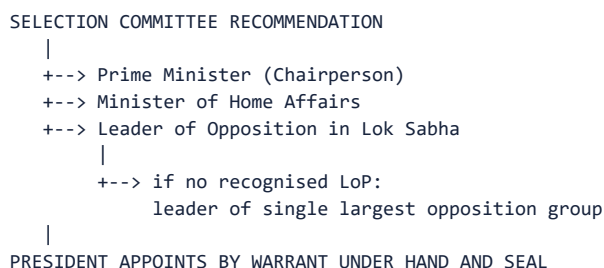
Visual 08 - Composition



Maximum size = 3; statutory wording = "not more than two" VCs

Caption: The Commission is multi-member but the Act does not require that both Vigilance Commissioner posts be occupied at all times.

Visual 09 - Appointment Chain



Caption: The statutory substitute for an unrecognised Lok Sabha LoP is expressly written into the CVC Act.

[FACT] Section 4 states that the President appoints the CVC and VCs by warrant under hand and seal after obtaining the recommendation of the committee above.

[LIMIT] A vacancy in the selection committee does not by itself invalidate an appointment. This statutory rule must not be confused with whether a particular selection process was fair on its facts.

Visual 10 - Eligibility Logic

Category A	Category B	Diversity guardrail
Union/All-India public-service experience	Public-sector corporate office/expertise	Maximum two appointees from either single category
Vigilance, policy, administration, police administration	Finance, insurance, banking, law, vigilance, investigation	At least one seat must therefore come from the other category if all three seats are filled

Caption: The Act combines administrative knowledge with specialist expertise and inserts a limited category-balancing rule.

CLOSING RECALL FLOW - CVC: STATUS, COMPOSITION AND APPOINTMENT

SUBTOPIC CLOSURE FLOW CVC: Status, Composition and Appointment			
1. KEY TERMS / DEFINITIONS CVC · Status · Composition · Appointment · Central Vigilance Commissioner · not more than two Vigilance Commissioners	2. MECHANISM / ARGUMENT A vacancy in the selection committee does not by itself invalidate an appointment.	3. CONSEQUENCE / CONTRAST The decisive contrast is between +-----+ and CENTRAL VIGILANCE VIGILANCE.	4. UPSC TRAP / ANSWER-USE This statutory rule must not be confused with whether a particular selection process was fair on its facts.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: A vacancy in the selection committee does not by itself invalidate an appointment.			

SESSION 4 - CVC TENURE, REAPPOINTMENT, POST-TENURE BARS AND REMOVAL

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: CVC Tenure, Reappointment, Post-Tenure Bars and Removal denotes the constitutional rules and institutional links organised around WHICHEVER OCCURS EARLIER.

Technical definition: Its principal consequence is that reappointment as CVC/VC CVC cannot be reappointed; VC-to-CVC route is specially allowed within aggregate cap.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Security of tenure protects institutional independence; tightly defined direct-removal grounds protect integrity and functionality.

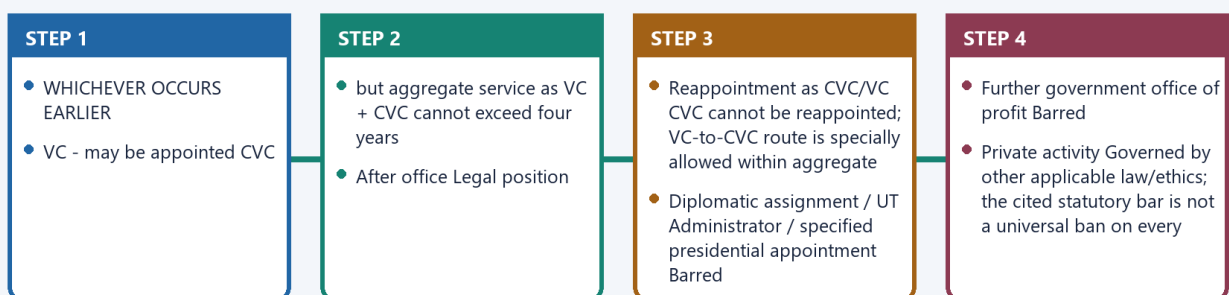
MUST-WRITE KEYWORDS

- CVC Tenure
- Reappointment
- Post-Tenure Bars
- Removal
- Reappointment as CVC/VC
- Diplomatic assignment / UT Administrator / specified presidential appointment

How to use them: Frame the answer through CVC Tenure; define Reappointment, connect Post-Tenure Bars with Removal to explain the mechanism, and use Reappointment as CVC/VC for the decisive comparison or qualification.

CVC Tenure, Reappointment, Post-Tenure Bars and Removal denotes the constitutional rules and institutional links organised around WHICHEVER OCCURS EARLIER. CVC Tenure, Reappointment, Post-Tenure Bars and Removal operates through VC - may be appointed CVC, connected with but aggregate service as VC + CVC cannot exceed four years. The operative mechanism matters because after office Legal position. Its principal consequence is that reappointment as CVC/VC CVC cannot be reappointed; VC-to-CVC route is specially allowed within aggregate cap. The decisive contrast is between Diplomatic assignment / UT Administrator / specified presidential appointment Barred and Further government office of profit Barred. The exam-safe limitation is that private activity Governed by other applicable law/ethics; the cited statutory bar is not a universal ban on every activity.

CVC TENURE, REAPPOINTMENT, POST-TENURE BARS AND REMOVAL



Topic-specific visual map: CVC Tenure, Reappointment, Post-Tenure Bars and Removal.

Visual 11 - Tenure Clock

```

ENTRY INTO OFFICE
|
+---> Four years
|
+---> Age 65
|
WHICHEVER OCCURS EARLIER
  
```

VC -> may be appointed CVC
but aggregate service as VC + CVC cannot exceed four years

Caption: "Four years or 65" is a ceiling rule; appointment as CVC does not restart a former VC's four-year clock.

[FACT] The CVC is ineligible for reappointment in the Commission after ceasing office. A VC may be appointed CVC through the statutory process, subject to the aggregate four-year cap.

[FACT] On ceasing office, the CVC and VCs are ineligible for specified diplomatic/presidential assignments and for further employment in an office of profit under the Union or a State.

Visual 12 - Post-Tenure Restriction

After office	Legal position
Reappointment as CVC/VC	CVC cannot be reappointed; VC-to-CVC route is specially allowed within aggregate cap
Diplomatic assignment / UT Administrator / specified presidential appointment	Barred
Further government office of profit	Barred
Private activity	Governed by other applicable law/ethics; the cited statutory bar is not a universal ban on every activity

Caption: State the statutory bars exactly; do not enlarge them into an unsupported lifetime prohibition.

Visual 13 - Two Removal Routes

ROUTE 1: PROVED MISBEHAVIOUR OR INCAPACITY

President makes reference
 -> Supreme Court inquiry
 -> Court reports whether removal is warranted
 -> President orders removal

ROUTE 2: LISTED DIRECT STATUTORY GROUNDS

President may remove for:
 insolvency / conviction involving moral turpitude /
 outside paid employment / mental or physical infirmity /
 prejudicial financial or other interest

Caption: The Supreme Court inquiry route and the expressly listed direct-removal grounds must be kept separate.

[FACT] The President may suspend and prohibit attendance during the Supreme Court inquiry after a reference.

[FACT] A prohibited interest in a Government of India contract or agreement, beyond the ordinary position of a member of an incorporated company, is statutorily deemed misbehaviour.

[ANALYSIS] Security of tenure protects institutional independence; tightly defined direct-removal grounds protect integrity and functionality.

Visual 14 - Independence Safeguards and Limits

Design safeguard	Independence value	Continuing limit
Multi-member selection committee	Reduces unilateral executive choice	Committee remains political-executive heavy
Fixed term/age ceiling	Protects against ordinary pleasure removal	Short maximum tenure may reduce continuity
Supreme Court inquiry for proved misbehaviour/incapacity	High removal threshold	Direct statutory grounds remain
Post-tenure employment bars	Reduces inducement risk	Does not itself create budget/cadre autonomy
Expenses charged on Consolidated Fund of India	Financial protection	Operational capacity still depends on staffing and administration

Caption: Institutional independence is cumulative; no single safeguard eliminates all executive or organisational dependence.

CLOSING RECALL FLOW - CVC TENURE, REAPPOINTMENT, POST-TENURE BARS AND REMOVAL

SUBTOPIC CLOSURE FLOW CVC Tenure, Reappointment, Post-Tenure Bars and Removal			
1. KEY TERMS / DEFINITIONS CVC Tenure · Reappointment · Post-Tenure Bars · Removal · Reappointment as CVC/VC · Diplomatic assignment / UT Administrator / specified presidential appointment	2. MECHANISM / ARGUMENT The exam-safe limitation is that private activity Governed by other applicable law/ethics; the cited statutory bar is not a universal ban on every activity.	3. CONSEQUENCE / CONTRAST Its principal consequence is that reappointment as CVC/VC CVC cannot be reappointed; VC-to-CVC route is specially allowed within aggregate cap.	4. UPSC TRAP / ANSWER-USE Do not miss this limiting distinction: the decisive contrast is between Diplomatic assignment / UT Administrator / specified presidential appointment...
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Security of tenure protects institutional independence; tightly defined direct-removal grounds protect integrity and functionality.			

SESSION 5 - CVC FUNCTIONS UNDER SECTION 8

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: CVC Functions Under Section 8 denotes the constitutional rules and institutional links organised around Section 8 function What CVC may do Boundary.

Technical definition: CVC Functions Under Section 8 operates through Complaint jurisdiction Inquire or cause inquiry/investigation against specified categories Not every public servant everywhere, connected with Investigation review Review progress of relevant DSPE investigations Review is not adjudication.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

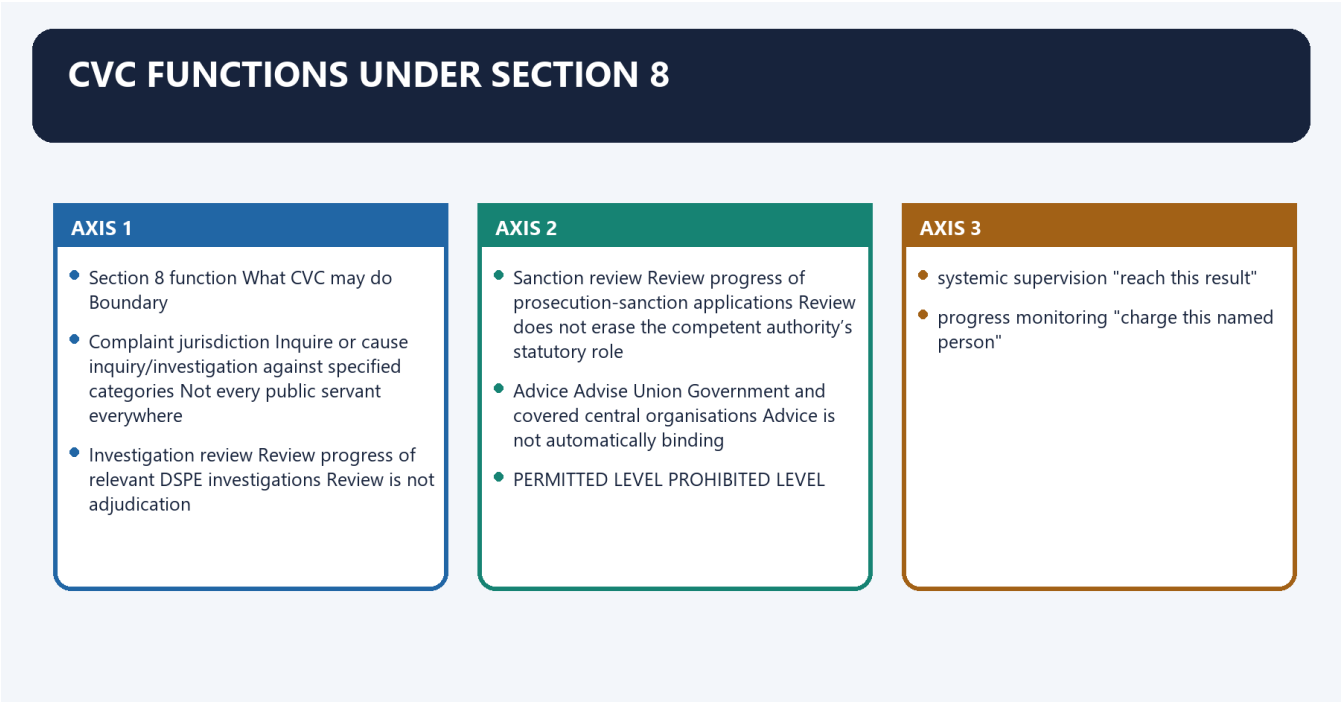
Section 8 gives the CVC oversight, inquiry-routing, progress-review and advisory functions, but neither universal jurisdiction nor power to adjudicate criminal guilt.

MUST-WRITE KEYWORDS

- CVC Functions Under Section 8
- DSPE superintendence
- Directions to DSPE
- Give directions for discharge of the statutory responsibility
- Central Government reference
- Reference and statutory offence/person coverage matter

How to use them: Frame the answer through CVC Functions Under Section 8; define DSPE superintendence, connect Directions to DSPE with Give directions for discharge of the statutory responsibility to explain the mechanism, and use Central Government reference for the decisive comparison or qualification.

CVC Functions Under Section 8 denotes the constitutional rules and institutional links organised around Section 8 function What CVC may do Boundary. CVC Functions Under Section 8 operates through Complaint jurisdiction Inquire or cause inquiry/investigation against specified categories Not every public servant everywhere, connected with Investigation review Review progress of relevant DSPE investigations Review is not adjudication. The operative mechanism matters because sanction review Review progress of prosecution-sanction applications Review does not erase the competent authority's statutory role. Its principal consequence is that advice Advise Union Government and covered central organisations Advice is not automatically binding. The decisive contrast is between PERMITTED LEVEL PROHIBITED LEVEL and systemic supervision "reach this result". The exam-safe limitation is that progress monitoring "charge this named person".



Visual 15 - Section 8 Function Map

Section 8 function	What CVC may do	Boundary
DSPE superintendence	Supervise DSPE functioning for Prevention of Corruption Act investigations and connected same-trial offences	Does not cover every CBI matter
Directions to DSPE	Give directions for discharge of the statutory responsibility	Cannot require investigation or disposal of a particular case in a particular manner
Central Government reference	Inquire or cause inquiry/investigation concerning covered central/public-sector servants	Reference and statutory offence/person coverage matter
Complaint jurisdiction	Inquire or cause inquiry/investigation against specified categories	Not every public servant everywhere
Investigation review	Review progress of relevant DSPE investigations	Review is not adjudication
Sanction review	Review progress of prosecution-sanction applications	Review does not erase the competent authority's statutory role
Advice	Advise Union Government and covered central organisations	Advice is not automatically binding
Vigilance administration	Supervise vigilance administration across covered central entities	Cannot contradict Government vigilance directions or issue policy directions beyond the proviso

Caption: CVC's section 8 powers are broad within central vigilance, but each is textually bounded.

Visual 16 - Superintendence Without Case Dictation

PERMITTED LEVEL -----	PROHIBITED LEVEL -----
systemic supervision	"reach this result"
progress monitoring	"charge this named person"
lawful general directions	"close this particular case"
sanction-delay review	"investigate in this exact manner"
integrity/process oversight	"dispose of case as instructed"

Caption: The proviso protects investigative judgment by prohibiting CVC from dictating the particular manner of investigation or disposal.

[ANALYSIS] "Superintendence" should be understood as lawful oversight of the agency and process, not remote authorship of the evidence, charges or final report in a named case.

Visual 17 - Person-Coverage Gate

COMPLAINT RECEIVED
Is the alleged conduct within the statutory offence field?
Is the officer/person in a section 8(2) covered category?
Is there a valid reference/complaint route?
YES -> CVC may inquire or cause inquiry/investigation
NO -> another statutory/departmental route may apply

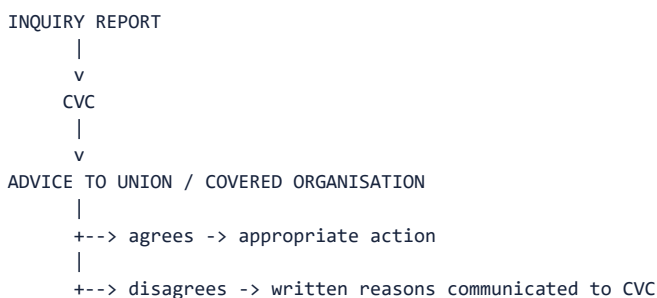
Caption: A complaint's seriousness does not by itself confer CVC jurisdiction.

[FACT] For the complaint route in section 8(1)(d), section 8(2) covers:

- members of All-India Services serving in connection with Union affairs and Group A officers of the Central Government; and
- notified levels in covered central corporations, Government companies, societies and local authorities, with the Act's transitional deeming provision.

[LIMIT] Lokpal-referred complaints introduce a separate statutory interface. Do not collapse the original section 8 complaint category into all Group A-D public servants without stating the Lokpal route.

Visual 18 - Advice Is Not a Command



Caption: Section 17 requires consideration of CVC advice and written reasons for disagreement, but the advice is not self-executing punishment.

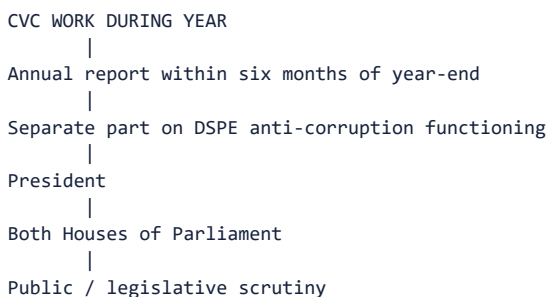
[ANALYSIS] This model combines expert vigilance review with administrative responsibility. Its weakness is potential dilution through repeated disagreement or delay; its accountability tool is reason-giving.

Visual 19 - CVC's Inquiry-Related Civil-Court Powers

CVC may, for specified inquiries	CVC still is not
Summon and enforce attendance	A criminal trial court
Examine on oath	A general police station
Require discovery/production of documents	A sentencing authority
Receive affidavit evidence	A universal ombudsman
Requisition public records	A substitute for the competent disciplinary authority
Issue commissions for witnesses/documents	The final judge of guilt

Caption: Civil-court-like procedural powers do not transform the Commission into a court of criminal jurisdiction.

Visual 20 - Annual Accountability Loop



Caption: Reporting creates parliamentary visibility without turning Parliament into the investigator of individual cases.

CLOSING RECALL FLOW - CVC FUNCTIONS UNDER SECTION 8

SUBTOPIC CLOSURE FLOW CVC Functions Under Section 8			
1. KEY TERMS / DEFINITIONS CVC Functions Under Section 8 · DSPE superintendence · Directions to DSPE · Give directions for discharge of the statutory responsibility · Central Government reference · Reference and statutory offence/person coverage matter	2. MECHANISM / ARGUMENT CVC Functions Under Section 8 operates through Complaint jurisdiction Inquire or cause inquiry/investigation against specified categories Not every public servant everywhere, connected with Investigation review Review progress of relevant DSPE investigations Review is not adjudication.	3. CONSEQUENCE / CONTRAST Do not collapse the original section 8 complaint category into all Group A-D public servants without stating the Lokpal route.	4. UPSC TRAP / ANSWER-USE The operative mechanism matters because sanction review Review progress of prosecution-sanction applications Review does not erase the competent authority's statutory role.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Section 8 gives the CVC oversight, inquiry-routing, progress-review and advisory functions, but neither universal jurisdiction nor power to adjudicate criminal guilt.			

SESSION 6 - CVOS AND DEPARTMENTAL VIGILANCE

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: CVOs and Departmental Vigilance denotes the constitutional rules and institutional links organised around general vigilance supervision.

Technical definition: Chief Vigilance Officers (CVOs) are the vigilance nodes within Ministries, departments and covered public organisations.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Chief Vigilance Officers embed preventive and disciplinary vigilance within organisations, but their proximity to management can improve early detection or create dependence.

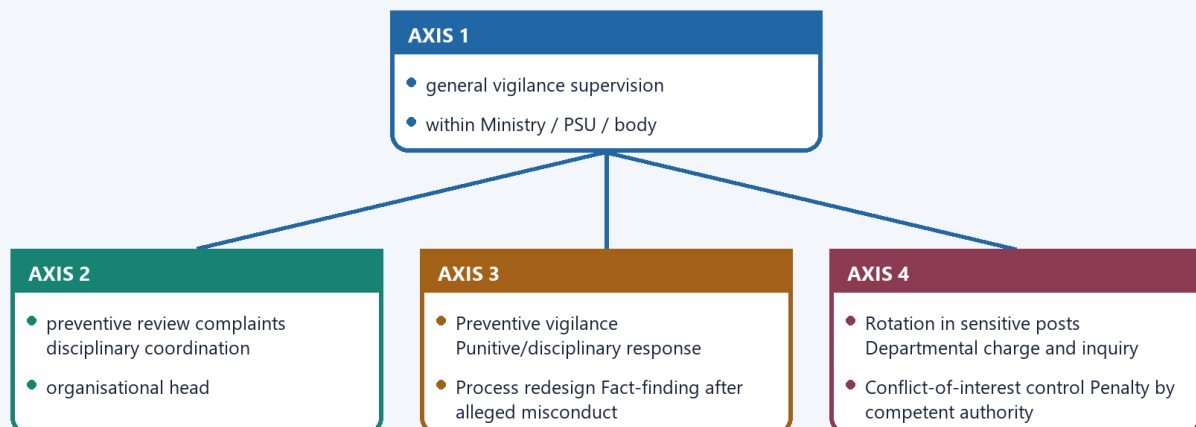
MUST-WRITE KEYWORDS

- CVOs
- Departmental Vigilance
- Process redesign
- finding after alleged misconduct
- Rotation in sensitive posts
- Departmental charge and inquiry

How to use them: Frame the answer through CVOs; define Departmental Vigilance, connect Process redesign with finding after alleged misconduct to explain the mechanism, and use Rotation in sensitive posts for the decisive comparison or qualification.

CVOs and Departmental Vigilance denotes the constitutional rules and institutional links organised around general vigilance supervision. CVOs and Departmental Vigilance operates through within Ministry / PSU / body, connected with preventive review complaints disciplinary coordination. The operative mechanism matters because organisational head. Its principal consequence is that preventive vigilance Punitive/disciplinary response. The decisive contrast is between Process redesign Fact-finding after alleged misconduct and Rotation in sensitive posts Departmental charge and inquiry. The exam-safe limitation is that conflict-of-interest control Penalty by competent authority.

CVOS AND DEPARTMENTAL VIGILANCE

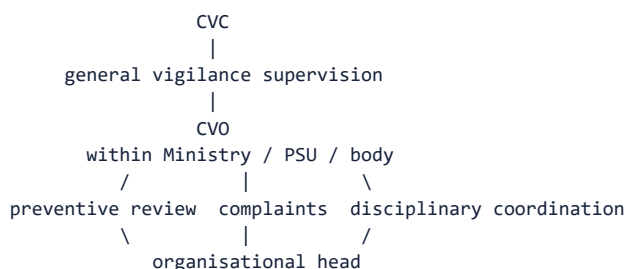


Topic-specific visual map: CVOs and Departmental Vigilance.

[FACT] Chief Vigilance Officers (CVOs) are the vigilance nodes within Ministries, departments and covered public organisations. They support preventive vigilance, complaint handling, examination of processes, disciplinary coordination and communication with the CVC.

[ANALYSIS] A CVO's proximity to organisational records can identify systemic risk early. The same proximity can create conflict or dependence if the post lacks functional protection.

Visual 21 - CVC-CVO Operating Chain



Caption: The CVO is an internal vigilance bridge, not an independent criminal court or a branch office with unlimited CBI powers.

Visual 22 - Preventive vs Punitive Vigilance

Preventive vigilance	Punitive/disciplinary response
Process redesign	Fact-finding after alleged misconduct
Rotation in sensitive posts	Departmental charge and inquiry
Conflict-of-interest control	Penalty by competent authority
Procurement transparency	Referral for criminal investigation where warranted
Audit trails and risk analytics	Prosecution-sanction process where applicable

Caption: A mature vigilance system prevents opportunity as well as responds to completed misconduct.

CLOSING RECALL FLOW - CVOS AND DEPARTMENTAL VIGILANCE

SUBTOPIC CLOSURE FLOW CVOs and Departmental Vigilance			
1. KEY TERMS / DEFINITIONS CVOs · Departmental Vigilance · Process redesign · finding after alleged misconduct · Rotation in sensitive posts · Departmental charge and inquiry	2. MECHANISM / ARGUMENT The decisive contrast is between Process redesign Fact-finding after alleged misconduct and Rotation in sensitive posts Departmental charge and inquiry.	3. CONSEQUENCE / CONTRAST Its principal consequence is that preventive vigilance Punitive/disciplinary response.	4. UPSC TRAP / ANSWER-USE Do not miss this limiting distinction: chief Vigilance Officers (CVOs) are the vigilance nodes within Ministries, departments and covered public...
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Chief Vigilance Officers embed preventive and disciplinary vigilance within organisations, but their proximity to management can improve early detection or create dependence.			

SESSION 7 - CBI AND DSPE: ORGANISATION, POLICE POWER AND JURISDICTION

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: CBI and DSPE: Organisation, Police Power and Jurisdiction denotes the constitutional rules and institutional links organised around created by 1963 executive resolution.

Technical definition: The decisive contrast is between INTERPOL National Central Bureau for India and DSPE police powers in Union Territories.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

“CBI can investigate any case in India” and “CBI can never act without State consent” are both overbroad.

MUST-WRITE KEYWORDS

- CBI
- DSPE
- Organisation
- Police Power

- Jurisdiction
- Anti-corruption

How to use them: Frame the answer through CBI; define DSPE, connect Organisation with Police Power to explain the mechanism, and use Jurisdiction for the decisive comparison or qualification.

CBI and DSPE: Organisation, Police Power and Jurisdiction denotes the constitutional rules and institutional links organised around created by 1963 executive resolution. CBI and DSPE: Organisation, Police Power and Jurisdiction operates through DSPE / Investigation and Anti-Corruption, connected with powers: DSPE Act + criminal procedure + notified offences. The operative mechanism matters because economic-offence work. Its principal consequence is that special-crime work on a selective lawful basis. The decisive contrast is between INTERPOL National Central Bureau for India and DSPE police powers in Union Territories. The exam-safe limitation is that central Government notifies offence classes.

CBI AND DSPE: ORGANISATION, POLICE POWER AND JURISDICTION

AXIS 1

- created by 1963 executive resolution
- DSPE / Investigation and Anti-Corruption

AXIS 2

- powers: DSPE Act + criminal procedure + notified offences
- Economic-offence work

AXIS 3

- Special-crime work on a selective lawful basis
- INTERPOL National Central Bureau for India

AXIS 4

- DSPE police powers in Union Territories
- Central Government notifies offence classes

Topic-specific visual map: CBI and DSPE: Organisation, Police Power and Jurisdiction.

[FACT] The CBI's organisational identity and the DSPE's statutory identity must be stated together but not merged. The 1963 resolution broadened the organisational mandate; investigators exercise police powers through the DSPE Act and applicable criminal law.

Visual 23 - CBI/DSPE Legal Stack

CBI ORGANISATION

created by 1963 executive resolution

```

|
+--> DSPE / Investigation and Anti-Corruption
|      powers: DSPE Act + criminal procedure + notified offences
|
+--> Economic-offence work
|
+--> Special-crime work on a selective lawful basis
|
+--> INTERPOL National Central Bureau for India
  
```

Caption: Organisational wings do not enlarge statutory police jurisdiction beyond law, notification, consent or court order.

Visual 24 - DSPE Act Jurisdiction Ladder

SECTION 2
DSPE police powers in Union Territories
|
SECTION 3
Central Government notifies offence classes
|
SECTION 5
Central Government may extend powers/jurisdiction to a State area
|
SECTION 6
State consent required for exercise in that State area
|
EXCEPTIONAL CONSTITUTIONAL ROUTE
Supreme Court / High Court direction under Articles 32 / 226

Caption: State consent is one route; a constitutional-court direction is a distinct route and does not derive from State consent.

[FACT] Under section 2, DSPE members have police powers in Union Territories. Under section 3, the Central Government specifies offence classes by notification. Under section 5, it may extend DSPE powers and jurisdiction to State areas; section 6 ordinarily requires the State Government's consent for that exercise.

[LIMIT] "CBI can investigate any case in India" and "CBI can never act without State consent" are both overbroad.

Visual 25 - Officially Supported CBI Domains

Domain	Typical legal character	Essential qualification
Anti-corruption	PC Act offences and connected offences	CVC superintendence applies to the relevant DSPE investigations
Economic offences	Complex fraud/economic crime under notified laws	CBI is not the same as ED or SFIO
Special crimes	Serious conventional crime on a selective lawful basis	Territorial jurisdiction/consent/court-order questions remain
INTERPOL NCB	International police-cooperation channel for India	Coordination does not itself determine domestic guilt or jurisdiction

Caption: CBI's diverse work remains legally compartmentalised.

Visual 26 - Police Power Is Not Organisational Reputation

HIGH PUBLIC IMPORTANCE
does not automatically produce
LEGAL JURISDICTION

Jurisdiction requires:
DSPE power + notified offence + territorial authority
+ applicable consent/reference/court direction
+ compliance with criminal-procedure safeguards

Caption: Public demand for a CBI probe is politically relevant but not a substitute for a lawful jurisdictional route.

CLOSING RECALL FLOW - CBI AND DSPE: ORGANISATION, POLICE POWER AND JURISDICTION

SUBTOPIC CLOSURE FLOW CBI and DSPE: Organisation, Police Power and Jurisdiction			
1. KEY TERMS / DEFINITIONS CBI · DSPE · Organisation · Police Power · Jurisdiction · Anti-corruption	2. MECHANISM / ARGUMENT The decisive contrast is between INTERPOL National Central Bureau for India and DSPE police powers in Union Territories.	3. CONSEQUENCE / CONTRAST Under section 2, DSPE members have police powers in Union Territories.	4. UPSC TRAP / ANSWER-USE Do not miss this limiting distinction: under section 5, it may extend DSPE powers and jurisdiction to State areas.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: "CBI can investigate any case in India" and "CBI can never act without State consent" are both overbroad.			

SESSION 8 - SUPERINTENDENCE, ADMINISTRATION AND INVESTIGATIVE JUDGMENT

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Superintendence, Administration and Investigative Judgment denotes the constitutional rules and institutional links organised around DSPE matter Superintendence under section 4 Administration.

Technical definition: The Lokpal Act creates a special superintendence-and-direction rule for matters referred by the Lokpal to DSPE, while repeating the prohibition on requiring investigation or disposal in a particular manner.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Section 4(2) vests superintendence over other matters in the Central Government, subject to other statutory provisions.

MUST-WRITE KEYWORDS

- Superintendence
- Administration
- Investigative Judgment
- insulated investigation plus answerable power
- Investigation of PC Act offences
- CVC

How to use them: Frame the answer through Superintendence; define Administration, connect Investigative Judgment with insulated investigation plus answerable power to explain the mechanism, and use Investigation of PC Act offences for the decisive comparison or qualification.

Superintendence, Administration and Investigative Judgment denotes the constitutional rules and institutional links organised around DSPE matter Superintendence under section 4 Administration. Superintendence, Administration and Investigative Judgment operates through Investigation of PC Act offences CVC Director, CBI/DSPE under statutory structure, connected with Other DSPE matters Central Government, save as otherwise provided Director, CBI/DSPE. The operative mechanism matters because administrative control may concern Investigative judgment concerns. Its principal consequence is that budget and establishment Evidence collection in a case. The decisive contrast is between Personnel policy and deputation Witness assessment and Infrastructure and inter-departmental coordination Search/arrest decisions under law. The exam-safe limitation is that allocation within statutory framework Legal sufficiency for final report.

SUPERINTENDENCE, ADMINISTRATION AND INVESTIGATIVE JUDGMENT

STEP 1

- DSPE matter Superintendence under section 4 Administration
- Investigation of PC Act offences CVC Director, CBI/DSPE under statutory structure

STEP 2

- Other DSPE matters Central Government, save as otherwise provided Director, CBI/DSPE
- Administrative control may concern Investigative judgment concerns

STEP 3

- Budget and establishment Evidence collection in a case
- Personnel policy and deputation Witness assessment

STEP 4

- Infrastructure and inter-departmental coordination Search/arrest decisions under law
- Allocation within statutory framework Legal sufficiency for final report

Visual 27 - Statutory Superintendence Split

DSPE matter	Superintendence under section 4	Administration
Investigation of PC Act offences	CVC	Director, CBI/DSPE under statutory structure
Other DSPE matters	Central Government, save as otherwise provided	Director, CBI/DSPE
Lokpal-referred preliminary inquiry/investigation	Lokpal's special section 25 power operates notwithstanding DSPE section 4/CVC section 8	Agency remains bound by law and Lokpal Act safeguards

Caption: Superintendence changes with the legal subject and referral route; there is no single controller for every CBI function.

[FACT] DSPE Act section 4(1) vests superintendence over PC Act investigations in the CVC. Section 4(2) vests superintendence over other matters in the Central Government, subject to other statutory provisions. Section 4(3) vests administration in the Director.

[FACT] The Lokpal Act creates a special superintendence-and-direction rule for matters referred by the Lokpal to DSPE, while repeating the prohibition on requiring investigation or disposal in a particular manner.

Visual 28 - Administration vs Case Investigation

Administrative control may concern	Investigative judgment concerns
Budget and establishment	Evidence collection in a case
Personnel policy and deputation	Witness assessment
Infrastructure and inter-departmental coordination	Search/arrest decisions under law
Allocation within statutory framework	Legal sufficiency for final report
Service conditions	Whether evidence supports charge or closure

Caption: CBI's administrative placement under DoPT does not prove that the PMO lawfully dictates every investigative decision.

[ANALYSIS] Independence is compromised when administrative leverage is used to influence case outcomes. Accountability is compromised when "independence" is invoked to avoid lawful supervision, audit, courts or reasons. The constitutional objective is **insulated investigation plus answerable power**.

Visual 29 - Four-Layer Control Model

LAYER 1: LAW
DSPE Act / CVC Act / PC Act / Lokpal Act / criminal procedure

|

LAYER 2: INSTITUTIONAL OVERSIGHT
CVC / Lokpal / Central Government within allocated fields

|

LAYER 3: AGENCY ADMINISTRATION
Director and internal hierarchy

|

LAYER 4: JUDICIAL CONTROL
trial court / High Court / Supreme Court

Caption: The layers constrain one another; none is a licence for extra-legal command.

CLOSING RECALL FLOW - SUPERINTENDENCE, ADMINISTRATION AND INVESTIGATIVE JUDGMENT

SUBTOPIC CLOSURE FLOW | Superintendence, Administration and Investigative Judgment

1. KEY TERMS / DEFINITIONS Superintendence · Administration · Investigative Judgment · insulated investigation plus answerable power · Investigation of PC Act offences · CVC	2. MECHANISM / ARGUMENT The Lokpal Act creates a special superintendence-and-direction rule for matters referred by the Lokpal to DSPE, while repeating the prohibition on requiring investigation or disposal in a particular manner.	3. CONSEQUENCE / CONTRAST Its principal consequence is that budget and establishment Evidence collection in a case.	4. UPSC TRAP / ANSWER-USE Do not miss this limiting distinction: the decisive contrast is between Personnel policy and deputation Witness assessment and Infrastructure and...
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ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Section 4(2) vests superintendence over other matters in the Central Government, subject to other statutory provisions.

SESSION 9 - CBI DIRECTOR: APPOINTMENT, TENURE, TRANSFER AND SENIOR POSTS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The CBI Director safeguard system protects professional control of the investigating establishment through committee-based appointment, a minimum tenure and restricted transfer.

Technical definition: Sections 4A, 4B, 4BA and 4C of the DSPE Act distribute Director selection, tenure, conditional extension, transfer protection and senior appointment inputs among specified statutory authorities.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

CBI autonomy depends less on a slogan of independence than on a rule-bound Director architecture that separates high-level selection, secure minimum tenure, lawful extension and day-to-day administration.

MUST-WRITE KEYWORDS

- Section 4A
- Section 4B
- Section 4BA
- Section 4C
- selection committee
- minimum tenure
- conditional extension
- transfer safeguard

How to use them: Use sections 4A to 4C in sequence: identify the selection committee, state the two-year floor, qualify the current extension route and explain the committee safeguard against transfer-equivalent interference.

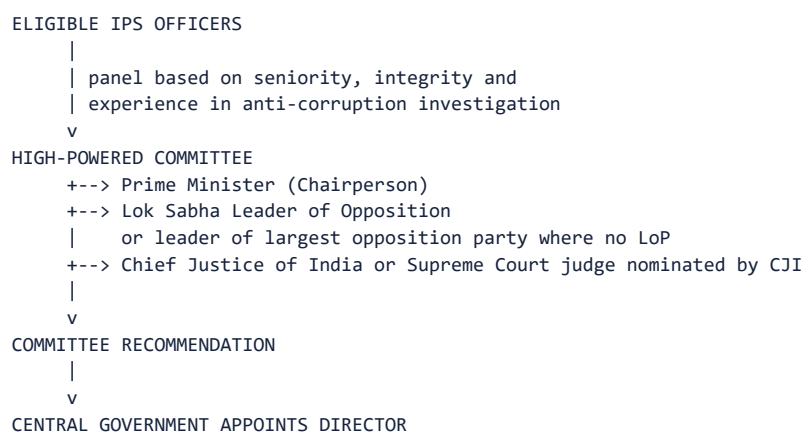
CBI Director: Appointment, Tenure, Transfer and Senior Posts denotes the constitutional rules and institutional links organised around ELIGIBLE IPS OFFICERS. CBI Director: Appointment, Tenure, Transfer and Senior Posts operates through panel based on seniority, integrity and, connected with experience in anti-corruption investigation. The operative mechanism matters because HIGH-POWERED COMMITTEE. Its principal consequence is that prime Minister (Chairperson). The decisive contrast is between Lok Sabha Leader of Opposition and or leader of largest opposition party where no LoP. The exam-safe limitation is that chief Justice of India or Supreme Court judge nominated by CJI.

CBI DIRECTOR: APPOINTMENT, TENURE, TRANSFER AND SENIOR POSTS



Topic-specific visual map: CBI Director: Appointment, Tenure, Transfer and Senior Posts.

Visual 30 - Director Appointment Pipeline



Caption: The present section 4A high-powered committee is different from the older CVC-chaired panel that prepares the eligible officer panel.

[FACT] DSPE Act section 4A requires the Central Government to appoint the Director on the recommendation of the Prime Minister-LoP-CJI committee. Where no LoP is recognised, the leader of the single largest opposition party in the Lok Sabha is substituted.

[FACT] Before the high-powered committee stage, the CVC-chaired institutional committee prepares the panel under the statutory criteria, after considering the outgoing Director's views.

[LIMIT] Selection by a high-powered committee is an independence safeguard, not an immunity from legal review or administrative accountability.

Visual 31 - Director Tenure and Extension

```
APPOINTMENT
|
+--> Minimum protected tenure: 2 years
|
+--> Possible extension after initial appointment
|
+--> public interest
+--> section 4A committee recommendation
+--> reasons recorded in writing
+--> one year at a time
+--> aggregate maximum: 5 years
```

Maximum is not an automatic entitlement.

Caption: The 2021 amendment creates a conditional extension architecture, not a routine five-year appointment.

[FACT] Section 4B protects a minimum two-year tenure. Transfer requires prior consent of the section 4A committee.

[FACT] The 2021 amendment permits extension in public interest, on the committee's recommendation, for reasons recorded in writing, one year at a time, with no extension beyond an aggregate five-year period including the initial appointment.

[FACT] In *Dr Jaya Thakur v. Union of India (2023) v Union of India (2023 INSC 616)*, the Supreme Court upheld the amended statutory extension framework. The Court's separate conclusion that particular extensions granted to the then Director of Enforcement violated an earlier mandamus must not be converted into invalidation of the CBI/ED amendment architecture itself.

Visual 32 - Appointment, Transfer and Extension Controls

Decision	Statutory control	Independence purpose
Initial appointment	High-powered section 4A committee recommendation	Disperses selection power
Tenure below two years	Generally barred by protected minimum	Prevents easy premature removal
Transfer during protected tenure	Prior committee consent	Prevents transfer-equivalent ouster
Annual extension	Public interest + committee recommendation + written reasons	Requires fresh justification
Aggregate service	Maximum five years	Prevents indefinite continuation

Caption: Appointment security and extension accountability operate together.

Visual 33 - Alok Verma Procedure Principle

```
FORMAL TRANSFER?
|
+--> committee consent required

DIVESTING DIRECTOR OF POWERS / FUNCTIONS?
|
+--> has transfer-like effect
+--> cannot bypass section 4A committee protection
```

Caption: In Alok Kumar Verma v. Union of India (2019) v Union of India (2019), substance prevailed over the label attached to the executive action.

[FACT] The Supreme Court held that divesting the Director of powers and functions has transfer-equivalent consequences within the protective statutory scheme and required consideration by the section 4A committee.

Visual 34 - Senior Appointment Architecture

Post/level	Core statutory relationship
Director, CBI	Appointed by Central Government on section 4A high-powered committee recommendation
SP and above in DSPE	CVC-chaired committee recommends appointment, extension or curtailment of tenure after consulting Director
Director of Prosecution	Central Government appoints on CVC recommendation; minimum two-year tenure
Director of Prosecution's work	Exercises powers/functions under overall supervision and control of Director, CBI

Caption: Do not confuse the Director-selection committee with the CVC-chaired machinery for other senior appointments.

[LIMIT] Current officeholders are deliberately not named. UPSC answers should prefer statutory design over transient personalities.

CLOSING RECALL FLOW - CBI DIRECTOR: APPOINTMENT, TENURE, TRANSFER AND SENIOR POSTS

SUBTOPIC CLOSURE FLOW CBI Director: Appointment, Tenure, Transfer and Senior Posts			
1. KEY TERMS / DEFINITIONS Section 4A · Section 4B · Section 4BA · Section 4C · selection committee · minimum tenure · conditional extension · transfer safeguard	2. MECHANISM / ARGUMENT The statutory committee recommends the Director, a protected minimum tenure supports continuity, any extension must satisfy current recorded conditions, and transfer or equivalent divestment engages the protective scheme.	3. CONSEQUENCE / CONTRAST The architecture reduces abrupt executive displacement while preserving legal supervision, judicial review and accountability for investigative decisions.	4. UPSC TRAP / ANSWER-USE Do not describe the two-year minimum as an automatic five-year term, include the Home Minister in the Director committee or treat superintendence as power to dictate a case result.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CBI autonomy depends less on a slogan of independence than on a rule-bound Director architecture that separates high-level selection, secure minimum tenure, lawful extension and day-to-day administration.			

SESSION 10 - STATE CONSENT AND INDIAN FEDERALISM

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: State Consent and Indian Federalism denotes the constitutional rules and institutional links organised around CENTRAL GOVERNMENT.

Technical definition: The decisive contrast is between Standing consent for defined classes/categories Consent for a named case, FIR, persons or facts and Reduces repeated administrative requests Preserves closer State control.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The holding does not create a free-standing power to start any later investigation without consent.

MUST-WRITE KEYWORDS

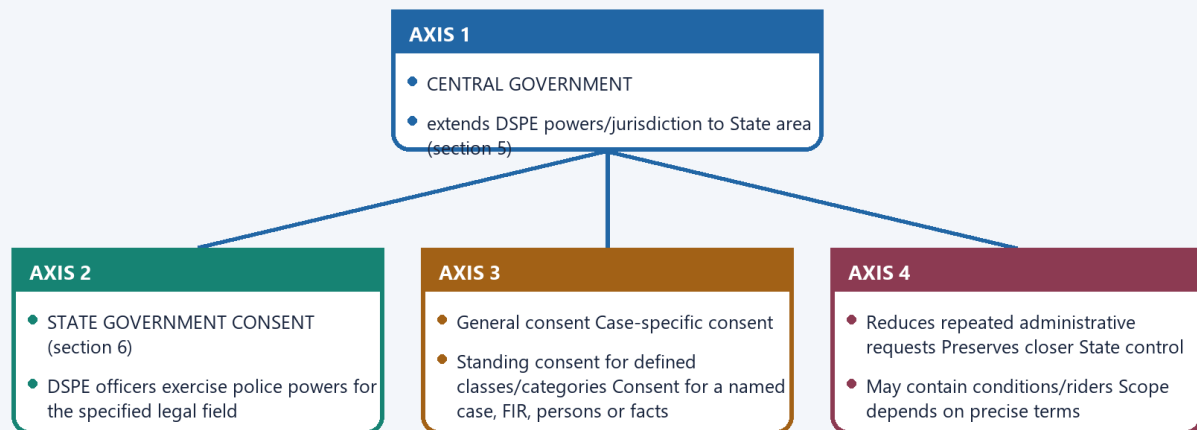
- Indian Federalism
- Standing consent for defined classes/categories
- Reduces repeated administrative requests
- Preserves closer State control
- May contain conditions/riders
- Scope depends on precise terms

How to use them: Frame the answer through Indian Federalism; define Standing consent for defined classes/categories, connect Reduces repeated administrative requests with Preserves closer State control to explain the mechanism, and use May contain conditions/riders for the decisive comparison or qualification.

State Consent and Indian Federalism denotes the constitutional rules and institutional links organised around CENTRAL GOVERNMENT. State Consent and Indian Federalism operates through extends DSPE

powers/jurisdiction to State area (section 5), connected with STATE GOVERNMENT CONSENT (section 6). The operative mechanism matters because dSPE officers exercise police powers for the specified legal field. Its principal consequence is that general consent Case-specific consent. The decisive contrast is between Standing consent for defined classes/categories Consent for a named case, FIR, persons or facts and Reduces repeated administrative requests Preserves closer State control. The exam-safe limitation is that may contain conditions/riders Scope depends on precise terms.

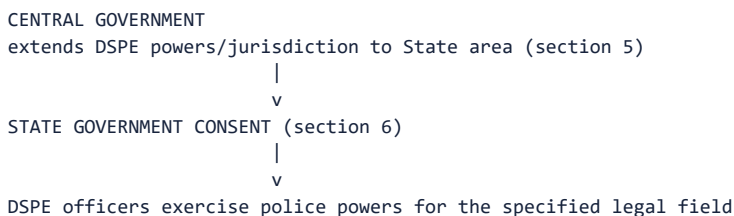
STATE CONSENT AND INDIAN FEDERALISM



Topic-specific visual map: State Consent and Indian Federalism.

[FACT] Police and public order are primarily State List fields. The DSPE Act therefore uses a territorial-consent architecture when the Union police establishment exercises powers in a State.

Visual 35 - Sections 5 and 6 as a Federal Sequence



Caption: Extension and consent are distinct statutory steps; both must be read with offence notification and any court order.

Visual 36 - General Consent vs Case-Specific Consent

General consent	Case-specific consent
Standing consent for defined classes/categories	Consent for a named case, FIR, persons or facts
Reduces repeated administrative requests	Preserves closer State control
May contain conditions/riders	Scope depends on precise terms
Can be prospectively withdrawn	Must be evaluated for each requested case

Caption: "Consent" is not one undifferentiated instrument; its text, date, conditions and scope matter.

[ANALYSIS] General consent supports speed and continuity. Case-specific consent gives States a stronger gatekeeping role. The institutional risk is reciprocal politicisation: refusal may obstruct neutral investigation, while over-centralisation may weaken federal trust.

Visual 37 - Withdrawal of General Consent

```

GENERAL CONSENT EXISTS
|
CBI validly begins investigation
|
STATE WITHDRAWS GENERAL CONSENT
|
+--> future/new cases: fresh legal authority ordinarily needed
|
+--> already-instituted investigation:
      withdrawal does not automatically extinguish it
      (*Kazi Lhendup Dorji v. CBI (1994)*, fact-specific rule)
  
```

Caption: Withdrawal is prospective in the cited precedent; never write that it automatically nullifies every pending investigation.

[FACT] In *Kazi Lhendup Dorji v. CBI (1994)*, the Supreme Court held that withdrawal of consent did not operate retrospectively to terminate investigations already undertaken; CBI could complete them and submit the statutory police report.

[LIMIT] The holding does not create a free-standing power to start any later investigation without consent.

Visual 38 - Union Territory Baseline

Territory	DSPE baseline
Union Territory	Section 2 directly gives DSPE members the relevant police powers, subject to the Act
State	Sections 5-6 ordinarily require extension plus State consent
State under SC/HC direction	Constitutional-court direction is an independent authority route

Caption: A State-consent answer is incomplete if it fails to distinguish the Union Territory baseline.

Visual 39 - Three Routes to a CBI/DSPE Investigation in a State

ROUTE A	ROUTE B	ROUTE C
State consent	Supreme Court	High Court
general/specific	Article 32	Article 226
DSPE Act route	constitutional route	constitutional route

Consent and court direction are legally distinct.

Caption: Constitutional courts do not “deem” State consent; they exercise their own constitutional power.

CLOSING RECALL FLOW - STATE CONSENT AND INDIAN FEDERALISM

SUBTOPIC CLOSURE FLOW State Consent and Indian Federalism			
1. KEY TERMS / DEFINITIONS Indian Federalism · Standing consent for defined classes/categories · Reduces repeated administrative requests · Preserves closer State control · May contain conditions/riders · Scope depends on precise terms	2. MECHANISM / ARGUMENT The decisive contrast is between Standing consent for defined classes/categories Consent for a named case, FIR, persons or facts and Reduces repeated administrative requests Preserves closer State control.	3. CONSEQUENCE / CONTRAST The DSPE Act therefore uses a territorial-consent architecture when the Union police establishment exercises powers in a State.	4. UPSC TRAP / ANSWER-USE <i>CBI (1994) v CBI (1994)</i> , the Supreme Court held that withdrawal of consent did not operate retrospectively to terminate investigations already undertaken; CBI could complete them and submit the statutory police report.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The holding does not create a free-standing power to start any later investigation without consent.			

SESSION 11 - CONSTITUTIONAL COURTS AND THE CONSENT RULE

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Constitutional Courts and the Consent Rule denotes the constitutional rules and institutional links organised around STATE POLICE AUTONOMY CONSTITUTIONAL RIGHTS.

Technical definition: The decisive contrast is between Correct meaning Incorrect overstatement and State consent controls the ordinary DSPE Act route State consent has no constitutional value.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Committee for Protection of Democratic Rights (2010) (2010), a Constitution Bench held that a High Court may direct a CBI investigation in a State without State consent while exercising Article 226 power.

MUST-WRITE KEYWORDS

- Constitutional Courts
- the Consent Rule
- sparingly, cautiously and in exceptional situations
- SC/HC may order CBI investigation without consent
- Existing valid investigations may survive later withdrawal
- Withdrawal is always legally meaningless

How to use them: Frame the answer through Constitutional Courts; define the Consent Rule, connect sparingly, cautiously and in exceptional situations with SC/HC may order CBI investigation without consent to explain the mechanism, and use Existing valid investigations may survive later withdrawal for the decisive comparison or qualification.

Constitutional Courts and the Consent Rule denotes the constitutional rules and institutional links organised around STATE POLICE AUTONOMY CONSTITUTIONAL RIGHTS. Constitutional Courts and the Consent Rule operates through balance -----+, connected with SC / HC judicial review. The operative mechanism matters because exceptional CBI direction possible. Its principal consequence is that no routine displacement of State police. The decisive contrast is between Correct meaning Incorrect overstatement and State consent controls the ordinary DSPE Act route State consent has no constitutional value. The exam-safe limitation is that sC/HC may order CBI investigation without consent Union executive can always ignore section 6.

CONSTITUTIONAL COURTS AND THE CONSENT RULE

AXIS 1

- STATE POLICE AUTONOMY CONSTITUTIONAL RIGHTS
- balance -----+

AXIS 2

- SC / HC judicial review
- exceptional CBI direction possible

AXIS 3

- no routine displacement of State police
- Correct meaning Incorrect overstatement

AXIS 4

- State consent controls the ordinary DSPE Act route State consent has no constitutional value
- SC/HC may order CBI investigation without consent Union executive can always ignore section 6

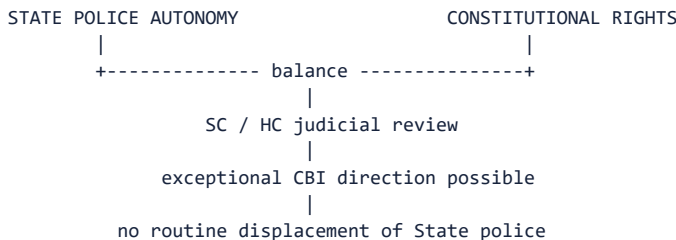
Topic-specific visual map: Constitutional Courts and the Consent Rule.

[FACT] In *State of West Bengal v State of West Bengal v. Committee for Protection of Democratic Rights (2010)* (2010), a Constitution Bench held that a High Court may direct a CBI investigation in a State without State consent while exercising Article 226 power. The same constitutional logic applies to the Supreme Court under Article 32.

[FACT] The Court held that this does not violate the federal structure or separation of powers because judicial review is part of the Constitution and the courts enforce fundamental rights and legality.

[LIMIT] The Court also cautioned that the extraordinary power must be used **sparingly, cautiously and in exceptional situations**-not merely because allegations are made against local police.

Visual 40 - STATE OF WEST BENGAL V. COMMITTEE FOR PROTECTION OF DEMOCRATIC RIGHTS (2010) Federal Balance



Caption: The judgment preserves federalism by making court-directed CBI investigation exceptional rather than unavailable.

Visual 41 - What “Consent Is Not Absolute” Means

Correct meaning	Incorrect overstatement
State consent controls the ordinary DSPE Act route	State consent has no constitutional value
SC/HC may order CBI investigation without consent	Union executive can always ignore section 6
Existing valid investigations may survive later withdrawal	Withdrawal is always legally meaningless
Other statute/court routes must be separately shown	CBI has inherent nationwide police jurisdiction

Caption: The federal answer is about qualified routes, not about declaring one level of government supreme in every case.

CLOSING RECALL FLOW - CONSTITUTIONAL COURTS AND THE CONSENT RULE

SUBTOPIC CLOSURE FLOW Constitutional Courts and the Consent Rule			
1. KEY TERMS / DEFINITIONS Constitutional Courts · the Consent Rule · sparingly, cautiously and in exceptional situations · SC/HC may order CBI investigation without consent · Existing valid investigations may survive later withdrawal · Withdrawal is always legally meaningless	2. MECHANISM / ARGUMENT The Court also cautioned that the extraordinary power must be used sparingly, cautiously and in exceptional situations-not merely because allegations are made against local police.	3. CONSEQUENCE / CONTRAST The decisive contrast is between Correct meaning Incorrect overstatement and State consent controls the ordinary DSPE Act route State consent has no constitutional value.	4. UPSC TRAP / ANSWER-USE The Court held that this does not violate the federal structure or separation of powers because judicial review is part of the Constitution and the courts enforce fundamental rights and legality.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Committee for Protection of Democratic Rights (2010) (2010), a Constitution Bench held that a High Court may direct a CBI investigation in a State without State consent while exercising Article 226 power.			

SESSION 12 - CONSENT CASE LAW: EXACT HOLDINGS, NARROW INFERENCES

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Consent Case Law: Exact Holdings, Narrow Inferences denotes the constitutional rules and institutional links organised around Case Holding useful for Topic 37 Qualification.

Technical definition: Consent Case Law: Exact Holdings, Narrow Inferences operates through Was there general consent with a rider?, connected with Did State-public-servant involvement emerge during investigation?.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Consent case law defines verified limits on CBI jurisdiction, while pending litigation cannot be converted into an assumed later merits outcome.

MUST-WRITE KEYWORDS

- Consent Case Law
- Exact Holdings
- Narrow Inferences
- Prospective-withdrawal principle; not blanket authority for new cases
- Exceptional, cautious exercise
- Article 131

How to use them: Frame the answer through Consent Case Law; define Exact Holdings, connect Narrow Inferences with Prospective-withdrawal principle; not blanket authority for new cases to explain the mechanism, and use Exceptional, cautious exercise for the decisive comparison or qualification.

Consent Case Law: Exact Holdings, Narrow Inferences denotes the constitutional rules and institutional links organised around Case Holding useful for Topic 37 Qualification. Consent Case Law: Exact Holdings, Narrow Inferences operates through Was there general consent with a rider?, connected with Did State-public-servant involvement emerge during investigation?. The operative mechanism matters because was later consent given?. Its principal consequence is that was jurisdictional prejudice specifically pleaded/shown?. The decisive contrast is between FACT-SPECIFIC RESULT and Not a universal "later consent cures everything" rule. The exam-safe limitation is that pRELIMINARY OBJECTION.

Visual 42 - Consent Precedent Matrix

Case	Holding useful for Topic 37	Qualification
<i>Kazi Lhendup Dorji v. CBI (1994) v CBI (1994)</i>	Later withdrawal did not halt investigations validly initiated under earlier consent	Prospective-withdrawal principle; not blanket authority for new cases
<i>State of West Bengal v STATE OF WEST BENGAL V. COMMITTEE FOR PROTECTION OF DEMOCRATIC RIGHTS (2010) (2010)</i>	HC/SC may constitutionally order CBI investigation without State consent	Exceptional, cautious exercise
<i>Fertico Marketing and Investment Pvt. Ltd. v. CBI (2020) and Investment Pvt Ltd v CBI (2020)</i>	On its facts, the Court rejected invalidity claims involving a general-consent rider, later emergence of State servants, subsequent consent and no pleaded prejudice	Do not generalise that "post-facto consent always cures" absence of consent
<i>State of West Bengal v Union of India (2024 INSC 502)</i>	Supreme Court rejected a preliminary maintainability objection to the State's original suit	Merits of the consent dispute were expressly not decided in that judgment

Caption: Case names score only when paired with the narrow proposition actually decided.

Visual 43 - Fertico Marketing and Investment Pvt. Ltd. v. CBI (2020) Qualification Funnel

Was there general consent with a rider?
 |
 Did State-public-servant involvement emerge during investigation?
 |
 Was later consent given?
 |
 Was jurisdictional prejudice specifically pleaded/shown?
 |
 FACT-SPECIFIC RESULT
 |
 Not a universal "later consent cures everything" rule.

Caption: The factual chain is part of the holding; removing it produces an unsafe generalisation.

[FACT] In *Fertico Marketing and Investment Pvt. Ltd. v. CBI (2020)* the Supreme Court dealt with the particular consent terms, private parties, the way State servants emerged during investigation, later consent, and the absence of a pleaded prejudice.

[ANALYSIS] The safe UPSC formulation is: **consent defects must be assessed through statutory text, consent terms, timing, parties, prejudice and precedent-not slogans.**

Visual 44 - 2024 West Bengal Original-Suit Control

PRELIMINARY OBJECTION

Is the Article 131 suit maintainable against Union?

Supreme Court: objection rejected at this stage

MERITS OF CONSENT / INVESTIGATIONS

Not decided by the cited 10 July 2024 judgment

Caption: A maintainability ruling permits adjudication; it does not predetermine the final merits.

[CURRENT] The package relies on the official 2024 judgment only for its stated preliminary result. It does not claim a later merits outcome without a separately verified official decision.

CLOSING RECALL FLOW - CONSENT CASE LAW: EXACT HOLDINGS, NARROW INFERENCES

SUBTOPIC CLOSURE FLOW Consent Case Law: Exact Holdings, Narrow Inferences			
1. KEY TERMS / DEFINITIONS Consent Case Law · Exact Holdings · Narrow Inferences · Prospective-withdrawal principle; not blanket authority for new cases · Exceptional, cautious exercise · Article 131	2. MECHANISM / ARGUMENT Consent Case Law: Exact Holdings, Narrow Inferences operates through Was there general consent with a rider?, connected with Did State-public-servant involvement emerge during investigation?.	3. CONSEQUENCE / CONTRAST The decisive contrast is between FACT-SPECIFIC RESULT and Not a universal "later consent cures everything" rule.	4. UPSC TRAP / ANSWER-USE The safe UPSC formulation is: consent defects must be assessed through statutory text, consent terms, timing, parties, prejudice and precedent-not slogans.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Consent case law defines verified limits on CBI jurisdiction, while pending litigation cannot be converted into an assumed later merits outcome.			

SESSION 13 - THE VINEET NARAIN V. UNION OF INDIA (1997) SAFEGUARD ARCHITECTURE

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Union of India (1997) Safeguard Architecture denotes the constitutional rules and institutional links organised around RISK: political/executive interference.

Technical definition: Union of India (1997) model is not "CBI outside government." It is a set of legal buffers within a system that still requires administration, funding, staffing, legislative authority and judicial control.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Vineet Narain built legal buffers against investigative interference, but did not place the CBI outside government, statute, funding control or judicial supervision.

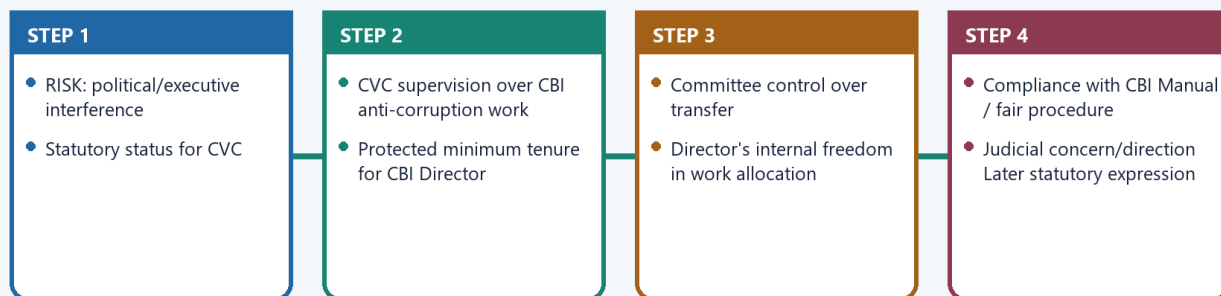
MUST-WRITE KEYWORDS

- CVC should have statutory status
- CVC Act, 2003
- CVC supervision of anti-corruption investigation
- CVC Act section 8; DSPE Act section 4
- Director minimum two-year tenure
- DSPE Act section 4B

How to use them: Frame the answer through CVC should have statutory status; define CVC Act, 2003, connect CVC supervision of anti-corruption investigation with CVC Act section 8; DSPE Act section 4 to explain the mechanism, and use Director minimum two-year tenure for the decisive comparison or qualification.

The *Vineet Narain v. Union of India (1997)* Safeguard Architecture denotes the constitutional rules and institutional links organised around RISK: political/executive interference. The *Vineet Narain v. Union of India (1997)* Safeguard Architecture operates through Statutory status for CVC, connected with CVC supervision over CBI anti-corruption work. The operative mechanism matters because protected minimum tenure for CBI Director. Its principal consequence is that committee control over transfer. The decisive contrast is between Director's internal freedom in work allocation and Compliance with CBI Manual / fair procedure. The exam-safe limitation is that judicial concern/direction Later statutory expression.

THE *VINEET NARAIN* SAFEGUARD ARCHITECTURE



Topic-specific visual map: The *Vineet Narain v. Union of India (1997)* Safeguard Architecture.

[FACT] *Vineet Narain v. Union of India (1997)* v *Union of India (1997)* arose from concern about investigative inertia and executive interference. The Supreme Court framed institutional directions pending suitable legislation.

Visual 45 - Vineet Narain v. Union of India (1997) Safeguard Chain

```

RISK: political/executive interference
|
v
Statutory status for CVC
|
CVC supervision over CBI anti-corruption work
|
Protected minimum tenure for CBI Director
|
Committee control over transfer
|
Director's internal freedom in work allocation
|
Compliance with CBI Manual / fair procedure
  
```

Caption: The judgment addressed both external interference and internal investigative professionalism.

[ANALYSIS] The post-*Vineet Narain v. Union of India (1997)* model is not “CBI outside government.” It is a set of legal buffers within a system that still requires administration, funding, staffing, legislative authority and judicial control.

Visual 46 - Judgment-to-Statute Trajectory

Judicial concern/direction	Later statutory expression
CVC should have statutory status	CVC Act, 2003
CVC supervision of anti-corruption investigation	CVC Act section 8; DSPE Act section 4
Director minimum two-year tenure	DSPE Act section 4B
Committee role in appointment/transfer	DSPE Act sections 4A-4B
Professional agency process	CBI Manual, criminal procedure and judicial review continue

Caption: Institutional reform moved from continuing mandamus to statutory codification.

CLOSING RECALL FLOW - THE VINEET NARAIN V. UNION OF INDIA (1997) SAFEGUARD ARCHITECTURE

SUBTOPIC CLOSURE FLOW The Vineet Narain v. Union of India (1997) Safeguard Architecture			
1. KEY TERMS / DEFINITIONS CVC should have statutory status · CVC Act, 2003 · CVC supervision of anti-corruption investigation · CVC Act section 8; DSPE Act section 4 · Director minimum two-year tenure · DSPE Act section 4B	2. MECHANISM / ARGUMENT Union of India (1997) model is not "CBI outside government." It is a set of legal buffers within a system that still requires administration, funding, staffing, legislative authority and judicial control.	3. CONSEQUENCE / CONTRAST The decisive contrast is between Director's internal freedom in work allocation and Compliance with CBI Manual / fair procedure.	4. UPSC TRAP / ANSWER-USE Do not miss this limiting distinction: its principal consequence is that committee control over transfer.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Vineet Narain built legal buffers against investigative interference, but did not place the CBI outside government, statute, funding control or judicial supervision.			

SESSION 14 - JUDICIAL CONTROLS ON DIRECTOR INDEPENDENCE

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Judicial Controls on Director Independence denotes the constitutional rules and institutional links organised around Vineet Narain v.

Technical definition: The exam-safe limitation is that committee control over transfer One year at a time.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Statutory tenure protects the CBI Director from premature displacement, but a maximum possible term neither guarantees nor automatically justifies every extension.

MUST-WRITE KEYWORDS

- Judicial Controls on Director Independence
- Vineet Narain v. Union of India (1997) (1997)
- Fixed minimum tenure, oversight and professional autonomy safeguards
- Common Cause line of institutional litigation
- Judicial Controls
- Director Independence

How to use them: Frame the answer through Judicial Controls on Director Independence; define Vineet Narain v. Union of India (1997) (1997), connect Fixed minimum tenure, oversight and professional autonomy safeguards with Common Cause line of institutional litigation to explain the mechanism, and use Judicial Controls for the decisive comparison or qualification.

Judicial Controls on Director Independence denotes the constitutional rules and institutional links organised around Vineet Narain v. Union of India (1997) Fixed minimum tenure, oversight and professional autonomy safeguards. Judicial Controls on Director Independence operates through Common Cause line of institutional litigation Reinforced concern with lawful selection, tenure and non-arbitrary executive action, connected with Alok Kumar Verma v. Union of India (2019) Divesting powers can be transfer-equivalent; committee safeguard cannot be evaded by label. The operative mechanism matters because Dr Jaya Thakur v. Union of India (2023) 2021 extension framework upheld; statutory conditions control each extension. Its principal consequence is that MINIMUM TENURE EXTENDED

TENURE. The decisive contrast is between Institutional protection Not automatic and Prevents premature displacement Fresh statutory satisfaction. The exam-safe limitation is that committee control over transfer One year at a time.

Visual 47 - Director Cases and Principles

Case	Principle
<i>Vineet Narain v. Union of India (1997)</i> (1997)	Fixed minimum tenure, oversight and professional autonomy safeguards
<i>Common Cause</i> line of institutional litigation	Reinforced concern with lawful selection, tenure and non-arbitrary executive action
<i>Alok Kumar Verma v. Union of India (2019)</i> (2019)	Divesting powers can be transfer-equivalent; committee safeguard cannot be evaded by label
<i>Dr Jaya Thakur v. Union of India (2023)</i> (2023)	2021 extension framework upheld; statutory conditions control each extension

Caption: Judicial doctrine protects process, not personal entitlement to office.

Visual 48 - Tenure Is a Floor, Extension Is Conditional

MINIMUM TENURE	EXTENDED TENURE
-----	-----
Institutional protection	Not automatic
Prevents premature displacement	Fresh statutory satisfaction
Committee control over transfer	One year at a time
	Aggregate ceiling

Caption: Independence requires a secure floor; accountability requires reasoned controls above that floor.

[LIMIT] The legal five-year maximum is not a guarantee that every Director will or should serve five years.

CLOSING RECALL FLOW - JUDICIAL CONTROLS ON DIRECTOR INDEPENDENCE

SUBTOPIC CLOSURE FLOW Judicial Controls on Director Independence			
1. KEY TERMS / DEFINITIONS Judicial Controls on Director Independence · Vineet Narain v. Union of India (1997) (1997) · Fixed minimum tenure, oversight and professional autonomy safeguards · Common Cause line of institutional litigation · Judicial Controls · Director Independence	2. MECHANISM / ARGUMENT Union of India (2019) Divesting powers can be transfer-equivalent; committee safeguard cannot be evaded by label.	3. CONSEQUENCE / CONTRAST The legal five-year maximum is not a guarantee that every Director will or should serve five years.	4. UPSC TRAP / ANSWER-USE The decisive contrast is between Institutional protection Not automatic and Prevents premature displacement Fresh statutory satisfaction.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Statutory tenure protects the CBI Director from premature displacement, but a maximum possible term neither guarantees nor automatically justifies every extension.			

SESSION 15 - “CAGED PARROT”: USE AS CONTEXT, NOT RATIO

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: “Caged Parrot”: Use as Context, Not Ratio denotes the constitutional rules and institutional links organised around Weak answer Strong answer.

Technical definition: “Caged Parrot”: Use as Context, Not Ratio operates through Weak answer Strong answer, connected with Weak answer Strong answer.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The 'caged parrot' phrase captures judicial concern about executive influence, but is contextual criticism rather than a freestanding binding legal test.

MUST-WRITE KEYWORDS

- “Caged Parrot”
- Not Ratio

- **judicial criticism and institutional context**
- **Weak**
- **Strong**
- **Its principal consequence**

How to use them: Frame the answer through “Caged Parrot”; define Not Ratio, connect judicial criticism and institutional context with Weak to explain the mechanism, and use Strong for the decisive comparison or qualification.

“Caged Parrot”: Use as Context, Not Ratio denotes the constitutional rules and institutional links organised around Weak answer Strong answer. “Caged Parrot”: Use as Context, Not Ratio operates through Weak answer Strong answer, connected with Weak answer Strong answer. The operative mechanism matters because weak answer Strong answer. Its principal consequence is that weak answer Strong answer. The decisive contrast is between Weak answer Strong answer and Weak answer Strong answer. The exam-safe limitation is that weak answer Strong answer. [FACT] The phrase “caged parrot speaking in its master’s voice” entered public discourse through Supreme Court courtroom criticism during coal-block investigation proceedings.

[LIMIT] It should be used as **judicial criticism and institutional context**, not presented as the binding ratio of a reported judgment creating a new legal test.

Visual 49 - Safe Use of the Metaphor

Weak answer	Strong answer
“Supreme Court held CBI is a caged parrot; therefore all its probes are invalid.”	“The courtroom criticism captured public concern over executive influence; enforceable safeguards must still be traced to statute and judgments such as <i>Vineet Narain v. Union of India</i> (1997) and <i>Alok Verma</i> .”

Caption: Metaphor diagnoses a legitimacy problem; legal analysis identifies the actual remedy.

CLOSING RECALL FLOW - “CAGED PARROT”: USE AS CONTEXT, NOT RATIO

SUBTOPIC CLOSURE FLOW “Caged Parrot”: Use as Context, Not Ratio			
1. KEY TERMS / DEFINITIONS “Caged Parrot” · Not Ratio · judicial criticism and institutional context · Weak · Strong · Its principal consequence	2. MECHANISM / ARGUMENT “Caged Parrot”: Use as Context, Not Ratio operates through Weak answer Strong answer, connected with Weak answer Strong answer.	3. CONSEQUENCE / CONTRAST It should be used as judicial criticism and institutional context, not presented as the binding ratio of a reported judgment creating a new legal test.	4. UPSC TRAP / ANSWER-USE Do not miss this limiting distinction: the decisive contrast is between Weak answer Strong answer and Weak answer Strong answer.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The ‘caged parrot’ phrase captures judicial concern about executive influence, but is contextual criticism rather than a freestanding binding legal test.			

SESSION 16 - LOKPAL, CVC, CBI AND CVO: COMPLEMENTARY, NOT HIERARCHICAL DUPLICATES

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Lokpal, CVC, CBI and CVO: Complementary, Not Hierarchical Duplicates denotes the constitutional rules and institutional links organised around COMPLAINT TO LOKPAL.

Technical definition: The Lokpal Act creates its own Inquiry Wing and Prosecution Wing.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

For a matter referred to DSPE, section 25 gives Lokpal superintendence and direction notwithstanding DSPE section 4 and CVC section 8, but Lokpal too cannot require investigation/disposal in a particular manner.

MUST-WRITE KEYWORDS

- Lokpal
- CVC
- CBI
- CVO

- **Complementary**
- **Not Hierarchical Duplicates**

How to use them: Frame the answer through Lokpal; define CVC, connect CBI with CVO to explain the mechanism, and use Complementary for the decisive comparison or qualification.

Lokpal, CVC, CBI and CVO: Complementary, Not Hierarchical Duplicates denotes the constitutional rules and institutional links organised around COMPLAINT TO LOKPAL. Lokpal, CVC, CBI and CVO: Complementary, Not Hierarchical Duplicates operates through Lokpal decides whether to proceed, connected with Preliminary inquiry. The operative mechanism matters because group A/B/C/D route to CVC as section 20 provides. Its principal consequence is that inquiry Wing / agency in other permitted route. The decisive contrast is between Investigation when prima facie case exists and agency including DSPE. The exam-safe limitation is that report to jurisdictional court.

LOKPAL, CVC, CBI AND CVO: COMPLEMENTARY, NOT HIERARCHICAL DUPLICATES

AXIS 1

- COMPLAINT TO LOKPAL
- Lokpal decides whether to proceed
- Preliminary inquiry

AXIS 2

- Group A/B/C/D route to CVC as section 20 provides
- Inquiry Wing / agency in other permitted route
- Investigation when prima facie case exists

AXIS 3

- agency including DSPE
- report to jurisdictional court

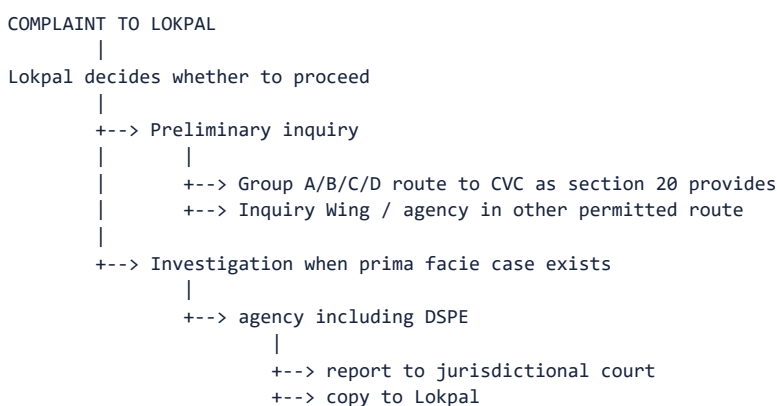
Topic-specific visual map: Lokpal, CVC, CBI and CVO: Complementary, Not Hierarchical Duplicates.

[FACT] The Lokpal Act creates its own Inquiry Wing and Prosecution Wing. On receiving a complaint and deciding to proceed, the Lokpal may order preliminary inquiry by its Inquiry Wing or an agency including DSPE, or investigation by an agency including DSPE when a prima facie case exists, subject to the Act's procedure.

[FACT] For preliminary inquiry into complaints concerning Group A-D public servants, section 20 routes the complaints to CVC. The CVC reports Group A-B preliminary inquiries to Lokpal; for Group C-D it proceeds under the CVC Act as the Lokpal Act states.

[FACT] For a matter referred to DSPE, section 25 gives Lokpal superintendence and direction notwithstanding DSPE section 4 and CVC section 8, but Lokpal too cannot require investigation/disposal in a particular manner.

Visual 50 - Lokpal Complaint Route



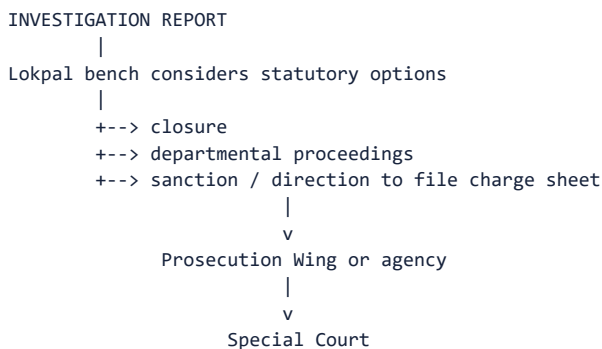
Caption: Lokpal can route work to CVC/CBI while retaining the specific statutory role assigned by its Act.

Visual 51 - Four-Institution Relationship

Institution	Primary role	Typical output
Lokpal	Statutory complaint scrutiny, inquiry/investigation direction, supervision for referred matters	Closure, departmental direction, charge-sheet/prosecution direction as Act provides
CVC	Central vigilance supervision, advice, inquiry routing and DSPE anti-corruption oversight	Vigilance advice, inquiry/investigation referral, progress review
CBI/DSPE	Police investigation	FIR/regular case, evidence, final police report/charge sheet or closure
CVO	Departmental preventive and punitive vigilance coordination	System correction, fact report, disciplinary processing, referral

Caption: The relationship is a legally allocated workflow, not a single chain of command.

Visual 52 - Lokpal Prosecution Wing



Caption: The Prosecution Wing acts after Lokpal direction and within the statutory case route; it is not the CBI's general prosecution hierarchy.

CLOSING RECALL FLOW - LOKPAL, CVC, CBI AND CVO: COMPLEMENTARY, NOT HIERARCHICAL DUPLICATES

SUBTOPIC CLOSURE FLOW Lokpal, CVC, CBI and CVO: Complementary, Not Hierarchical Duplicates			
1. KEY TERMS / DEFINITIONS Lokpal · CVC · CBI · CVO · Complementary · Not Hierarchical Duplicates	2. MECHANISM / ARGUMENT The operative mechanism matters because group A/B/C/D route to CVC as section 20 provides.	3. CONSEQUENCE / CONTRAST Its principal consequence is that inquiry Wing / agency in other permitted route.	4. UPSC TRAP / ANSWER-USE Do not miss this limiting distinction: the decisive contrast is between Investigation when prima facie case exists and agency including...
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: For a matter referred to DSPE, section 25 gives Lokpal superintendence and direction notwithstanding DSPE section 4 and CVC section 8, but Lokpal too cannot require investigation/disposal in a particular manner.			

SESSION 17 - INVESTIGATION LIFECYCLE AND SAFEGUARDS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Investigation Lifecycle and Safeguards denotes the constitutional rules and institutional links organised around COMPLAINT / SOURCE INFORMATION / REFERENCE.

Technical definition: Investigation Lifecycle and Safeguards operates through Does information disclose a cognizable offence?, connected with FIR / Regular Case may be Preliminary Enquiry may be.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

PC Act section 17A governs previous approval for enquiry, inquiry or investigation into specified allegations relatable to a public servant's recommendation or decision in discharge of official functions, subject to its statutory exceptions.

MUST-WRITE KEYWORDS

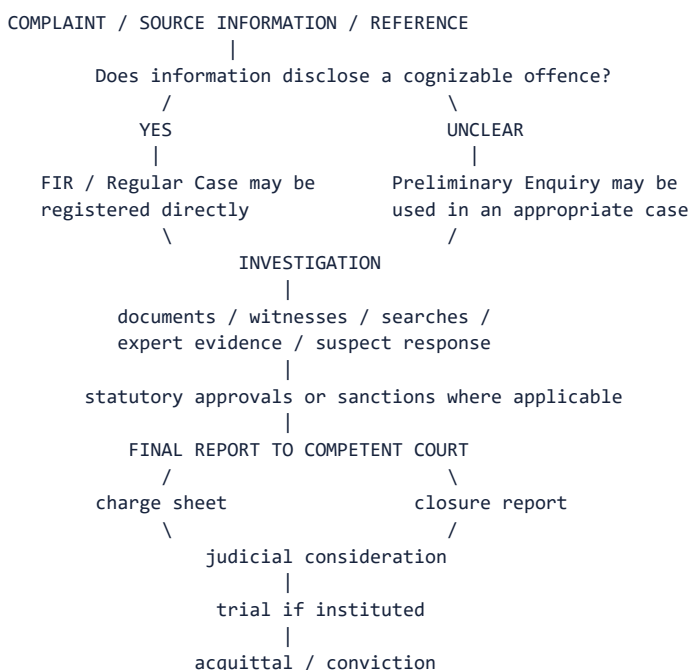
- Investigation Lifecycle
- Safeguards

- Limited threshold verification where appropriate
- Formal registration of cognizable offence information
- Starts statutory investigation
- Not mandatory in every corruption case

How to use them: Frame the answer through Investigation Lifecycle; define Safeguards, connect Limited threshold verification where appropriate with Formal registration of cognizable offence information to explain the mechanism, and use Starts statutory investigation for the decisive comparison or qualification.

Investigation Lifecycle and Safeguards denotes the constitutional rules and institutional links organised around COMPLAINT / SOURCE INFORMATION / REFERENCE. Investigation Lifecycle and Safeguards operates through Does information disclose a cognizable offence?, connected with FIR / Regular Case may be Preliminary Enquiry may be. The operative mechanism matters because registered directly used in an appropriate case. Its principal consequence is that documents / witnesses / searches /. The decisive contrast is between expert evidence / suspect response and statutory approvals or sanctions where applicable. The exam-safe limitation is that FINAL REPORT TO COMPETENT COURT.

Visual 53 - Investigation Lifecycle



Caption: Preliminary Enquiry is not a mandatory right of the accused, and an FIR is not a finding of guilt.

[FACT] In *CBI v CBI v. Thommandru Hannah Vijayalakshmi (2021)* (2021), the Supreme Court held that a Preliminary Enquiry is not mandatory before every corruption FIR. If complaint or “source information” discloses a cognizable offence, CBI may directly register a Regular Case. A Preliminary Enquiry remains valuable in an appropriate case but cannot be demanded by the accused as a right.

[FACT] The Constitution Bench in *Lalita Kumari v Government of Uttar Pradesh* held that registration is mandatory where information discloses a cognizable offence; a preliminary inquiry is limited to ascertaining whether such an offence is disclosed in appropriate categories.

[CURRENT] Older judgments use the Code of Criminal Procedure terminology applicable when decided. Current procedure must be read with the Bharatiya Nagarik Suraksha Sanhita, 2023 and operative transition provisions; this package preserves the judgments’ principles without pretending that every old section citation is the current code label.

Visual 54 - PE vs FIR

Preliminary Enquiry (PE)	FIR/Regular Case
Limited threshold verification where appropriate	Formal registration of cognizable offence information
Asks whether a cognizable offence is disclosed	Starts statutory investigation
Not mandatory in every corruption case	Required when legal registration threshold is met
Not a mini-trial	Not proof that allegation is true
Cannot become indefinite delay	Must be investigated fairly and lawfully

Caption: PE protects against abuse at the threshold; FIR protects the duty to investigate disclosed crime.

Visual 55 - Safeguard Gates

JURISDICTION GATE
 offence + territory + consent/order
 |
 THRESHOLD GATE
 PE where appropriate / FIR where required
 |
 PUBLIC-SERVANT DECISION GATE
 PC Act section 17A approval where legally attracted
 |
 INVESTIGATION GATE
 fair procedure + evidence integrity + judicial warrants where required
 |
 PROSECUTION GATE
 sanction under applicable law where required
 |
 TRIAL GATE
 open adjudication + defence rights + proof beyond reasonable doubt

Caption: Anti-corruption effectiveness and due process are sequential complements, not opposites.

[FACT] PC Act section 17A governs previous approval for enquiry, inquiry or investigation into specified allegations relatable to a public servant's recommendation or decision in discharge of official functions, subject to its statutory exceptions. Section 19 governs previous sanction for court cognizance of specified PC Act offences.

[LIMIT] Approval/sanction is not a declaration of innocence or guilt. Its applicability depends on the statutory conditions and facts.

Visual 56 - Presumption of Innocence

ALLEGATION != FIR != ARREST != CHARGE SHEET != CONVICTION

Each stage has a different legal threshold.
 Only the competent court determines criminal guilt after trial.

Caption: CBI recommendations and media reporting cannot replace adjudication.

CLOSING RECALL FLOW - INVESTIGATION LIFECYCLE AND SAFEGUARDS

SUBTOPIC CLOSURE FLOW Investigation Lifecycle and Safeguards			
1. KEY TERMS / DEFINITIONS Investigation Lifecycle · Safeguards · Limited threshold verification where appropriate · Formal registration of cognizable offence information · Starts statutory investigation · Not mandatory in every corruption case	2. MECHANISM / ARGUMENT Investigation Lifecycle and Safeguards operates through Does information disclose a cognizable offence?, connected with FIR / Regular Case may be Preliminary Enquiry may be.	3. CONSEQUENCE / CONTRAST Its principal consequence is that documents / witnesses / searches /.	4. UPSC TRAP / ANSWER-USE Do not miss this limiting distinction: the decisive contrast is between expert evidence / suspect response and statutory approvals or...
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: PC Act section 17A governs previous approval for enquiry, inquiry or investigation into specified allegations relatable to a public servant's recommendation or decision in discharge of official functions, subject to its statutory exceptions.			

SESSION 18 - COMPARISON: CVC, CBI, LOKPAL, ED, NIA AND STATE AGENCIES

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Comparison: CVC, CBI, Lokpal, ED, NIA and State Agencies denotes the constitutional rules and institutional links organised around Body Legal basis Core domain Coercive/investigative power Territorial/jurisdiction control Typical output.

Technical definition: Comparison: CVC, CBI, Lokpal, ED, NIA and State Agencies operates through BRIBERY BY COVERED CENTRAL PUBLIC SERVANT, connected with CBI/DSPE investigation route + CVC oversight; Lokpal route may apply.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

CVC, CBI, Lokpal, ED, NIA and State agencies occupy different vigilance, corruption, financial-crime and security fields, so institutional overlap does not erase jurisdictional boundaries.

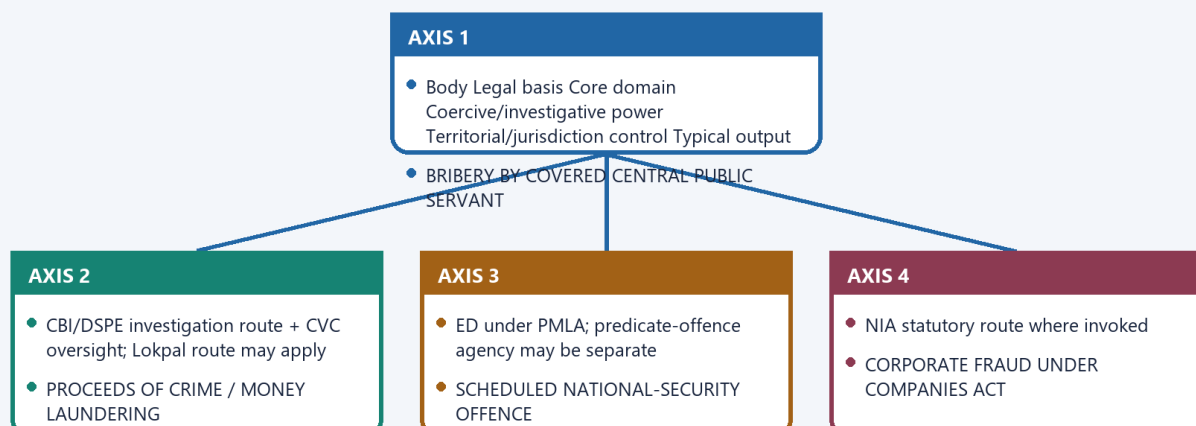
MUST-WRITE KEYWORDS

- Comparison
- CVC
- CBI
- Lokpal
- ED
- NIA

How to use them: Frame the answer through Comparison; define CVC, connect CBI with Lokpal to explain the mechanism, and use ED for the decisive comparison or qualification.

Comparison: CVC, CBI, Lokpal, ED, NIA and State Agencies denotes the constitutional rules and institutional links organised around Body Legal basis Core domain Coercive/investigative power Territorial/jurisdiction control Typical output. Comparison: CVC, CBI, Lokpal, ED, NIA and State Agencies operates through BRIBERY BY COVERED CENTRAL PUBLIC SERVANT, connected with CBI/DSPE investigation route + CVC oversight; Lokpal route may apply. The operative mechanism matters because PROCEEDS OF CRIME / MONEY LAUNDERING. Its principal consequence is that ED under PMLA; predicate-offence agency may be separate. The decisive contrast is between SCHEDULED NATIONAL-SECURITY OFFENCE and NIA statutory route where invoked. The exam-safe limitation is that CORPORATE FRAUD UNDER COMPANIES ACT.

COMPARISON: CVC, CBI, LOKPAL, ED, NIA AND STATE AGENCIES



Visual 57 - Full Comparison Matrix

Body	Legal basis	Core domain	Coercive/investigative power	Territorial/jurisdiction control	Typical output
CVC	CVC Act, 2003	Central vigilance and anti-corruption supervision	No general police power	Covered central persons/entities and statutory references	Advice, review, referral, vigilance supervision
CBI/DSPE	CBI resolution + DSPE Act	Anti-corruption, economic offences, selected special crimes	Police powers through DSPE framework	UT baseline; State extension/consent; court direction	FIR, investigation, final report/charge sheet
Lokpal	Lokpal and Lokayuktas Act, 2013	Corruption complaints against covered Union public servants	Inquiry Wing; may direct agencies including DSPE; prosecution framework	Persons and procedures under Lokpal Act	Inquiry decision, investigation/prosecution/departmental direction
ED	FEMA, PMLA and related law	Foreign exchange and money laundering	Statute-specific investigation, search, attachment/arrest powers	Offence and proceeds-of-crime nexus under governing statutes	Complaint, attachment, adjudicatory/criminal proceedings
NIA	NIA Act, 2008 and scheduled-offence laws	National-security and scheduled offences	Police investigation under special statutory scheme	Central direction/statutory scheduled-offence architecture	Investigation and charge sheet before special court
State ACB /Vigilance	State law/executive framework + criminal law	State-public-servant corruption	State police/vigilance powers	State territory and State jurisdiction	FIR, departmental recommendation, charge sheet
State police	Constitution, police law, criminal procedure	General policing and public order	General police powers	State territory, subject to law/courts	FIR, investigation, final report

Caption: Similar tools such as search or arrest arise from different statutes and must not be transferred from one agency to another by analogy.

Visual 58 - Offence-to-Agency Map

BRIBERY BY COVERED CENTRAL PUBLIC SERVANT

-> CBI/DSPE investigation route + CVC oversight; Lokpal route may apply

PROCEEDS OF CRIME / MONEY LAUNDERING

-> ED under PMLA; predicate-offence agency may be separate

SCHEDULED NATIONAL-SECURITY OFFENCE

-> NIA statutory route where invoked

CORPORATE FRAUD UNDER COMPANIES ACT

-> SFIO route where law/order assigns investigation

STATE PUBLIC-SERVANT CORRUPTION

-> State ACB/police ordinarily; CBI route needs lawful authority

Caption: More than one agency may lawfully touch a transaction, but each must remain within its own statute.

Visual 59 - Frequent Conflations

Trap	Correction
CBI investigates money laundering because it investigates economic offences	PMLA investigation is ED's statutory domain; CBI may investigate a connected predicate offence if competent
NIA and CBI are interchangeable central police	NIA has a scheduled-offence statute; CBI/DSPE has a different jurisdiction architecture
Lokpal is CBI's permanent administrative superior	Lokpal has special powers only for matters referred under its Act
CVC can order conviction or punishment	CVC advises/supervises; competent authority/court acts under law
State ACB is subordinate to CBI	They are separate Union/State investigative arrangements

Caption: UPSC distractors often move a true power from one body to the wrong body.

CLOSING RECALL FLOW - COMPARISON: CVC, CBI, LOKPAL, ED, NIA AND STATE AGENCIES

SUBTOPIC CLOSURE FLOW Comparison: CVC, CBI, Lokpal, ED, NIA and State Agencies			
1. KEY TERMS / DEFINITIONS Comparison · CVC · CBI · Lokpal · ED · NIA	2. MECHANISM / ARGUMENT Comparison: CVC, CBI, Lokpal, ED, NIA and State Agencies operates through BRIBERY BY COVERED CENTRAL PUBLIC SERVANT, connected with CBI/DSPE investigation route + CVC oversight; Lokpal route may apply.	3. CONSEQUENCE / CONTRAST Its principal consequence is that eD under PMLA; predicate-offence agency may be separate.	4. UPSC TRAP / ANSWER-USE Do not miss this limiting distinction: the decisive contrast is between SCHEDULED NATIONAL-SECURITY OFFENCE and NIA statutory route where invoked.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CVC, CBI, Lokpal, ED, NIA and State agencies occupy different vigilance, corruption, financial-crime and security fields, so institutional overlap does not erase jurisdictional boundaries.			

SESSION 19 - INDEPENDENCE, ACCOUNTABILITY AND PERFORMANCE

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Independence, Accountability and Performance denotes the constitutional rules and institutional links organised around INDEPENDENCE ACCOUNTABILITY.

Technical definition: Technically, Independence, Accountability and Performance is analysed by relating Independence to Accountability, then testing the relationship through Performance and Executive administrative dependence.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

CBI-CVC performance must be assessed through dated evidence on consent, vacancies, sanctions and outcomes rather than unsupported snapshots or officeholder lists.

MUST-WRITE KEYWORDS

- Independence
- Accountability
- Performance
- Executive administrative dependence
- Can delay multi-State investigation
- Vacancies/deputation dependence

How to use them: Frame the answer through Independence; define Accountability, connect Performance with Executive administrative dependence to explain the mechanism, and use Can delay multi-State investigation for the decisive comparison or qualification.

Independence, Accountability and Performance denotes the constitutional rules and institutional links organised around INDEPENDENCE ACCOUNTABILITY. Independence, Accountability and Performance operates through fixed

Director tenure law-defined jurisdiction, connected with high-powered selection reasoned decisions. The operative mechanism matters because committee transfer control CVC/Lokpal supervision. Its principal consequence is that case-allocation insulation judicial review. The decisive contrast is between professional cadre parliamentary reporting and LEGITIMATE INVESTIGATION. The exam-safe limitation is that challenge Why it matters Safe evidence-led formulation.

Visual 60 - Independence-Accountability Balance



Caption: Independence without accountability risks arbitrariness; accountability without insulation risks political control.

Visual 61 - Structural Challenge Matrix

Challenge	Why it matters	Safe evidence-led formulation
Executive administrative dependence	Staffing, budget and deputation can shape capacity	Administrative placement creates influence risk but does not prove case-specific dictation
State-consent fragmentation	Can delay multi-State investigation	Federal consent is a legal safeguard; predictable protocols can reduce tactical blockage
Vacancies/deputation dependence	Affects continuity and expertise	Discuss structurally; do not freeze current vacancy counts
Prosecution-sanction delay	Delays transition to trial	CVC statutorily reviews progress; do not invent pending numbers
Selective-use perception	Weakens legitimacy	Transparency and even-handed criteria are required; perception is not proof in a named case
Weak standalone CBI statutory design	Organisational mandate remains resolution-based	Dedicated legislation is a reform proposal, not existing law
Limited legislative visibility	Individual cases should not be politicised, yet system scrutiny matters	Strengthen aggregate reporting without revealing protected investigation detail

Caption: A high-scoring critique identifies the mechanism of dependence and then proposes a legally compatible remedy.

[LIMIT] This package does not state current officeholders, the number of States withholding general consent, case pendency, conviction rates, vacancies or sanction statistics. Such figures are transient and require date-specific official datasets.

Visual 62 - Reform Ladder

LEVEL 1: PROCESS
transparent case allocation, written recusals, digital audit trails

LEVEL 2: PERSONNEL
stable specialist cadre, bounded deputation, protected tenure

LEVEL 3: FEDERALISM
model consent protocols, time-bound requests, joint coordination

LEVEL 4: FINANCE AND REPORTING
functional budget protection, aggregate parliamentary reporting

LEVEL 5: LEGISLATION
debated dedicated CBI law defining mandate, autonomy and accountability

Caption: Reform should combine operational, federal, personnel and legislative measures rather than rely on one slogan.

Visual 63 - Proposal-Test Matrix

Proposal	Potential gain	Design safeguard needed
Dedicated CBI law	Clear organisation, mandate and accountability	Preserve State List and constitutional-court powers
Independent budget line	Reduces day-to-day leverage	Audit by CAG/Parliament
Permanent specialist cadre	Retains expertise	Diversity, lateral expertise and external accountability
Transparent case allocation	Reduces selective manipulation	Protect witness and operational secrecy
Federal consent protocol	Predictability in inter-State cases	Cannot amend section 6 by executive convenience
Stronger legislative report	System-level scrutiny	No disclosure prejudicing live investigation/trial

Caption: Every autonomy reform needs a reciprocal accountability control.

CLOSING RECALL FLOW - INDEPENDENCE, ACCOUNTABILITY AND PERFORMANCE

SUBTOPIC CLOSURE FLOW Independence, Accountability and Performance			
1. KEY TERMS / DEFINITIONS Independence · Accountability · Performance · Executive administrative dependence · Can delay multi-State investigation · Vacancies/deputation dependence	2. MECHANISM / ARGUMENT The decisive contrast is between professional cadre parliamentary reporting and LEGITIMATE INVESTIGATION.	3. CONSEQUENCE / CONTRAST This package does not state current officeholders, the number of States withholding general consent, case pendency, conviction rates, vacancies or sanction statistics.	4. UPSC TRAP / ANSWER-USE Do not miss this limiting distinction: its principal consequence is that case-allocation insulation judicial review.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CBI-CVC performance must be assessed through dated evidence on consent, vacancies, sanctions and outcomes rather than unsupported snapshots or officeholder lists.			

SESSION 20 - CURRENT AND LEGAL CONTROL SHEET

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Current and Legal Control Sheet denotes the constitutional rules and institutional links organised around Included as stable legal control Deliberately not frozen.

Technical definition: The exam-safe limitation is that included as stable legal control Deliberately not frozen.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Current-control analysis should freeze verified statutes and judgments while dating officeholders, consent positions and pending litigation instead of predicting unresolved outcomes.

MUST-WRITE KEYWORDS

- Legal Control Sheet

- CVC/DSPE/Lokpal statutory design
- Current officeholders
- Number of non-consenting States
- Official holdings of cited judgments
- 2021 extension text and 2023 validity ruling

How to use them: Frame the answer through Legal Control Sheet; define CVC/DSPE/Lokpal statutory design, connect Current officeholders with Number of non-consenting States to explain the mechanism, and use Official holdings of cited judgments for the decisive comparison or qualification.

Current and Legal Control Sheet denotes the constitutional rules and institutional links organised around Included as stable legal control Deliberately not frozen. Current and Legal Control Sheet operates through CVC/DSPE/Lokpal statutory design Current officeholders, connected with 2021 extension text and 2023 validity ruling Number of non-consenting States. The operative mechanism matters because official holdings of cited judgments Live case totals/conviction rates. Its principal consequence is that official CBI history and jurisdiction explanation Current vacancy or sanction-pendency figures. The decisive contrast is between 2026 Prelims question wording Provisional answer letter/count and Included as stable legal control Deliberately not frozen. The exam-safe limitation is that included as stable legal control Deliberately not frozen.

Visual 64 - What Is Frozen and What Is Not

Included as stable legal control	Deliberately not frozen
CVC/DSPE/Lokpal statutory design	Current officeholders
2021 extension text and 2023 validity ruling	Number of non-consenting States
Official holdings of cited judgments	Live case totals/conviction rates
Official CBI history and jurisdiction explanation	Current vacancy or sanction-pendency figures
2026 Prelims question wording	Provisional answer letter/count

Caption: Durable legal structure belongs in core notes; volatile data belongs in a dated current-affairs update.

[CURRENT] Legal verification for this package used official statute/Gazette or Government-hosted text and official Supreme Court judgments/orders available for the control exercise.

[LIMIT] “Current as of 24 August 2026” is a control label for the package. Where a live matter lacks a separately verified official merits decision, the text stops at the last verified holding instead of predicting an outcome.

CLOSING RECALL FLOW - CURRENT AND LEGAL CONTROL SHEET

SUBTOPIC CLOSURE FLOW Current and Legal Control Sheet			
1. KEY TERMS / DEFINITIONS Legal Control Sheet · CVC/DSPE/Lokpal statutory design · Current officeholders · Number of non-consenting States · Official holdings of cited judgments · 2021 extension text and 2023 validity ruling	2. MECHANISM / ARGUMENT The decisive contrast is between 2026 Prelims question wording Provisional answer letter/count and Included as stable legal control Deliberately not frozen.	3. CONSEQUENCE / CONTRAST The exam-safe limitation is that included as stable legal control Deliberately not frozen.	4. UPSC TRAP / ANSWER-USE Do not miss this limiting distinction: its principal consequence is that official CBI history and jurisdiction explanation Current vacancy or...
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Current-control analysis should freeze verified statutes and judgments while dating officeholders, consent positions and pending litigation instead of predicting unresolved outcomes.			

SESSION 21 - ANSWER-WRITING FRAMEWORKS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Answer-Writing Frameworks denotes the constitutional rules and institutional links organised around "State consent is central to ordinary DSPE jurisdiction."

Technical definition: Technically, Answer-Writing Frameworks is analysed by relating Writing Frameworks to Clarify mechanism and why it operates, then testing the relationship through Discuss and Present dimensions and balanced evaluation.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

A strong CBI-CVC analysis links statutory architecture and case-law safeguards to the continuing tension between investigative autonomy, federal consent and answerable administration.

MUST-WRITE KEYWORDS

- Writing Frameworks
- Clarify mechanism and why it operates
- Discuss
- Present dimensions and balanced evaluation
- Examine
- Test a proposition against law/evidence

How to use them: Frame the answer through Writing Frameworks; define Clarify mechanism and why it operates, connect Discuss with Present dimensions and balanced evaluation to explain the mechanism, and use Examine for the decisive comparison or qualification.

Answer-Writing Frameworks denotes the constitutional rules and institutional links organised around "State consent is central to ordinary DSPE jurisdiction.". Answer-Writing Frameworks operates through DSPE Act sections 5-6, connected with protects State police domain in a federal Constitution. The operative mechanism matters because sC/HC may order CBI probe exceptionally under Articles 32/226. Its principal consequence is that iNTRO: define institution + identify legal tension. The decisive contrast is between BODY 1: statutory architecture and BODY 2: named case law. The exam-safe limitation is that bODY 3: independence/accountability problem.

ANSWER-WRITING FRAMEWORKS

AXIS 1

- "State consent is central to ordinary DSPE jurisdiction."
- DSPE Act sections 5-6

AXIS 2

- protects State police domain in a federal Constitution
- SC/HC may order CBI probe exceptionally under Articles 32/226

AXIS 3

- iNTRO: define institution + identify legal tension
- BODY 1: statutory architecture

AXIS 4

- BODY 2: named case law
- BODY 3: independence/accountability problem

Topic-specific visual map: Answer-Writing Frameworks.

Visual 65 - Claim-Evidence-Analysis-Qualification

CLAIM
"State consent is central to ordinary DSPE jurisdiction."
|
NAMED EVIDENCE
DSPE Act sections 5-6
|
ANALYSIS
protects State police domain in a federal Constitution
|
QUALIFICATION
SC/HC may order CBI probe exceptionally under Articles 32/226

Caption: Every major paragraph should move from proposition to authority to reasoning to limit.

Visual 66 - 15-Mark Answer Spine

INTRO: define institution + identify legal tension
|
BODY 1: statutory architecture
|
BODY 2: named case law
|
BODY 3: independence/accountability problem
|
BODY 4: feasible reform
|
CONCLUSION: cooperative federalism + rule-bound investigation

Caption: A balanced answer uses law first, criticism second and reform last.

Visual 67 - Directive Decoder

Directive	Required response
Explain	Clarify mechanism and why it operates
Discuss	Present dimensions and balanced evaluation
Examine	Test a proposition against law/evidence
Analyse	Break into causal/institutional parts
Critically analyse	Establish value, identify limits, weigh alternatives and conclude

Caption: Do not answer "Explain" with an unstructured critique or "Critically analyse" with a list of provisions.

CLOSING RECALL FLOW - ANSWER-WRITING FRAMEWORKS

SUBTOPIC CLOSURE FLOW Answer-Writing Frameworks			
1. KEY TERMS / DEFINITIONS Writing Frameworks · Clarify mechanism and why it operates · Discuss · Present dimensions and balanced evaluation · Examine · Test a proposition against law/evidence	2. MECHANISM / ARGUMENT Its principal consequence is that iNTRO: define institution + identify legal tension.	3. CONSEQUENCE / CONTRAST The decisive contrast is between BODY 1: statutory architecture and BODY 2: named case law.	4. UPSC TRAP / ANSWER-USE Do not miss this limiting distinction: the exam-safe limitation is that BODY 3.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: A strong CBI-CVC analysis links statutory architecture and case-law safeguards to the continuing tension between investigative autonomy, federal consent and answerable administration.			

SESSION 22 - HIGH-YIELD TRAPS AND MINI-RECAP

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: High-Yield Traps and Mini-Recap operates through CBI was created by DSPE Act CBI by 1963 resolution; DSPE by 1946 Act, connected with CVC is constitutional CVC is statutory.

Technical definition: High-Yield Traps and Mini-Recap denotes the constitutional rules and institutional links organised around Trap statement Correct position.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Accurate recall distinguishes the CBI's executive origin from DSPE powers, the CVC's statutory status and the different appointment, tenure and jurisdiction rules governing each body.

MUST-WRITE KEYWORDS

- **High-Yield Traps**
- **Mini-Recap**
- **CBI by 1963 resolution; DSPE by 1946 Act**
- **CVC is constitutional**
- **CVC is statutory**
- **CVC has three Vigilance Commissioners**

How to use them: Frame the answer through High-Yield Traps; define Mini-Recap, connect CBI by 1963 resolution; DSPE by 1946 Act with CVC is constitutional to explain the mechanism, and use CVC is statutory for the decisive comparison or qualification.

High-Yield Traps and Mini-Recap denotes the constitutional rules and institutional links organised around Trap statement Correct position. High-Yield Traps and Mini-Recap operates through CBI was created by DSPE Act CBI by 1963 resolution; DSPE by 1946 Act, connected with CVC is constitutional CVC is statutory. The operative mechanism matters because cVC has three Vigilance Commissioners One CVC + not more than two VCs. Its principal consequence is that cVC appointment has CJI member CVC committee: PM, Home Minister, Lok Sabha LoP/substitute. The decisive contrast is between Director CBI committee has Home Minister It has PM, Lok Sabha LoP/substitute, CJI/nominee and CVC advice is always binding Disagreement is allowed with written reasons. The exam-safe limitation is that cVC can dictate disposal of a CBI case Statutory proviso prohibits this.

Visual 68 - Twenty Prelims Traps

Trap statement	Correct position
CBI was created by DSPE Act	CBI by 1963 resolution; DSPE by 1946 Act
CVC is constitutional	CVC is statutory
CVC has three Vigilance Commissioners	One CVC + not more than two VCs
CVC appointment has CJI member	CVC committee: PM, Home Minister, Lok Sabha LoP/substitute
Director CBI committee has Home Minister	It has PM, Lok Sabha LoP/substitute, CJI/nominee
CVC advice is always binding	Disagreement is allowed with written reasons
CVC can dictate disposal of a CBI case	Statutory proviso prohibits this
CVC controls every CBI investigation	CVC superintendence is for the relevant PC Act field
Director has an automatic five-year term	Two-year minimum; conditional annual extensions; aggregate ceiling
State withdrawal kills every pending case	Validly instituted cases may continue under <i>Kazi Lhendup Dorji v. CBI (1994)</i>
Courts need State consent	SC/HC exercise independent constitutional powers
Courts routinely transfer cases to CBI	<i>STATE OF WEST BENGAL V. COMMITTEE FOR PROTECTION OF DEMOCRATIC RIGHTS (2010)</i> requires exceptional, cautious use
Post-facto consent always cures defect	<i>Fertico Marketing and Investment Pvt. Ltd. v. CBI (2020)</i> is fact-specific
2024 West Bengal ruling decided consent merits	It rejected a preliminary maintainability objection
PE is mandatory before every corruption FIR	<i>CBI v. Thommandru Hannah Vijayalakshmi (2021)</i> says no
FIR proves guilt	Only trial court determines guilt
Lokpal, CVC and CBI are a hierarchy	Their statutory functions intersect but remain distinct
ED is CBI's economic-offence wing	ED is a separate statutory enforcement agency
DoPT placement means PMO dictates all cases	Administrative placement is not proof of case-level command
"Caged parrot" is a statutory doctrine	It is criticism/context, not a statutory rule

Caption: Most prelims errors are caused by transferring one true fact to the wrong institution, field or procedural stage.

Visual 69 - One-Minute Recall

CVC = VIGILANCE + ADVICE + PC-ACT SUPERINTENDENCE

CBI = ORGANISATION BY RESOLUTION

DSPE = POLICE POWER BY STATUTE

STATE = CONSENT IN ORDINARY STATE-AREA ROUTE

COURTS = EXCEPTIONAL CONSTITUTIONAL ROUTE

DIRECTOR = COMMITTEE + 2-YEAR FLOOR + CONDITIONAL EXTENSION

LOKPAL = COMPLAINT-ROUTING AND REFERRED-MATTER SUPERVISION

COURT = FINAL GUILT

Caption: This recall line provides the legal skeleton for both Prelims and Mains.

CLOSING RECALL FLOW - HIGH-YIELD TRAPS AND MINI-RECAP

SUBTOPIC CLOSURE FLOW High-Yield Traps and Mini-Recap			
1. KEY TERMS / DEFINITIONS High-Yield Traps · Mini-Recap · CBI by 1963 resolution; DSPE by 1946 Act · CVC is constitutional · CVC is statutory · CVC has three Vigilance Commissioners	2. MECHANISM / ARGUMENT High-Yield Traps and Mini-Recap denotes the constitutional rules and institutional links organised around Trap statement Correct position.	3. CONSEQUENCE / CONTRAST The operative mechanism matters because cVC has three Vigilance Commissioners One CVC + not more than two VCs.	4. UPSC TRAP / ANSWER-USE Do not miss this limiting distinction: its principal consequence is that cVC appointment has CJI member CVC committee.

SESSION 23 - VERIFIED SOURCE AND AUTHORITY MAP

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Verified Source and Authority Map denotes the constitutional rules and institutional links organised around Priority Source class Use in this package.

Technical definition: The decisive contrast is between 5 Generic summaries Discovery only; not relied on for contested legal propositions and Named Primary Authorities.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Continuity in a premier investigation agency protects ongoing cases from disruption, while democratic accountability prevents the Director from becoming an unreviewable authority.

MUST-WRITE KEYWORDS

- Verified Source
- Authority Map
- Statutes/Gazette/India Code or official Government-hosted text
- Composition, powers, consent, tenure, Lokpal interface
- Official Supreme Court judgments/orders
- Binding holdings and qualifications

How to use them: Frame the answer through Verified Source; define Authority Map, connect Statutes/Gazette/India Code or official Government-hosted text with Composition, powers, consent, tenure, Lokpal interface to explain the mechanism, and use Official Supreme Court judgments/orders for the decisive comparison or qualification.

Verified Source and Authority Map denotes the constitutional rules and institutional links organised around Priority Source class Use in this package. Verified Source and Authority Map operates through 1 Statutes/Gazette/India Code or official Government-hosted text Composition, powers, consent, tenure, Lokpal interface, connected with 2 Official Supreme Court judgments/orders Binding holdings and qualifications. The operative mechanism matters because 3 Official CBI/CVC/DoPT pages Institutional history, organisation and administrative description. Its principal consequence is that 4 Local UPSC knowledge/PYQ ledgers and official question paper Routing, exact question wording and package continuity. The decisive contrast is between 5 Generic summaries Discovery only; not relied on for contested legal propositions and Named Primary Authorities. The exam-safe limitation is that [FACT] Central Vigilance Commission Act, 2003: sections 3-8, 11-14, 17-19 and relevant amended interfaces.

Visual 70 - Authority Hierarchy Used

Priority	Source class	Use in this package
1	Statutes/Gazette/India Code or official Government-hosted text	Composition, powers, consent, tenure, Lokpal interface
2	Official Supreme Court judgments/orders	Binding holdings and qualifications
3	Official CBI/CVC/DoPT pages	Institutional history, organisation and administrative description
4	Local UPSC knowledge/PYQ ledgers and official question paper	Routing, exact question wording and package continuity
5	Generic summaries	Discovery only; not relied on for contested legal propositions

Caption: Authority strength is part of answer quality; case law and statutory text outrank generic institutional description.

Named Primary Authorities

- [FACT] Central Vigilance Commission Act, 2003: sections 3-8, 11-14, 17-19 and relevant amended interfaces.
- [FACT] Delhi Special Police Establishment Act, 1946, as amended: sections 2-6, 4A, 4B, 4BA and 4C.
- [FACT] Lokpal and Lokayuktas Act, 2013: sections 11-12, 20, 23 and 25.
- [FACT] Prevention of Corruption Act, 1988, as amended: sections 17A and 19 for the limited approval/sanction explanation.
- [FACT] Official CBI history/about pages and DSPE text.
- [FACT] *Vineet Narain v. Union of India (1997) v Union of India (1997)*.
- [FACT] *Kazi Lhendup Dorji v. CBI (1994) v CBI (1994)*.
- [FACT] *State of West Bengal v State of West Bengal v. Committee for Protection of Democratic Rights (2010) (2010)*.
- [FACT] *Alok Kumar Verma v. Union of India (2019) v Union of India (2019)*.
- [FACT] *Fertico Marketing and Investment Pvt. Ltd. v. CBI (2020) and Investment Pvt Ltd v CBI (2020)*.
- [FACT] *CBI v CBI v. Thommandru Hannah Vijayalakshmi (2021) (2021)*.
- [FACT] *Dr Jaya Thakur v. Union of India (2023) v Union of India (2023 INSC 616)*.
- [FACT] *State of West Bengal v Union of India (2024 INSC 502)*, limited to the preliminary ruling stated above.
- [FACT] Official UPSC Civil Services (Main) Examination 2021 GS-II question and official 2026 Prelims GS-I Set A paper.

CLOSING RECALL FLOW - VERIFIED SOURCE AND AUTHORITY MAP

SUBTOPIC CLOSURE FLOW Verified Source and Authority Map			
1. KEY TERMS / DEFINITIONS Verified Source · Authority Map · Statutes/Gazette/India Code or official Government-hosted text · Composition, powers, consent, tenure, Lokpal interface · Official Supreme Court judgments/orders · Binding holdings and qualifications	2. MECHANISM / ARGUMENT The decisive contrast is between 5 Generic summaries Discovery only; not relied on for contested legal propositions and Named Primary Authorities.	3. CONSEQUENCE / CONTRAST Its principal consequence is that 4 Local UPSC knowledge/PYQ ledgers and official question paper Routing, exact question wording and package continuity.	4. UPSC TRAP / ANSWER-USE Do not miss this limiting distinction: the exam-safe limitation is that Central Vigilance Commission Act, 2003.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Continuity in a premier investigation agency protects ongoing cases from disruption, while democratic accountability prevents the Director from becoming an unreviewable authority.			

BASIC MCQS / REMEDIATION

D. Original MCQs - 36 Questions

OM1.

Which statement most accurately describes the legal creation of the CBI?

A. It was created as a statutory body by the CVC Act, 2003. B. It was established by the Lokpal and Lokayuktas Act, 2013. C. It was constituted directly by Article 312 of the Constitution. D. It was established by a Government of India resolution in 1963, while DSPE police powers arise from the DSPE Act, 1946.

Answer: D.

Explanation: [FACT] CBI is an organisation created by the 1 April 1963 resolution. The DSPE Act constitutes the police establishment and supplies its central statutory powers.

OM2.

The Central Vigilance Commission consists of:

A. A Chairperson, one judicial member and one expert member. B. A Central Vigilance Commissioner and not more than two Vigilance Commissioners. C. A Central Vigilance Commissioner alone. D. A Central Vigilance Commissioner and exactly three Vigilance Commissioners.

Answer: B.

Explanation: [FACT] CVC Act section 3 specifies one CVC as Chairperson and not more than two VCs as Members.

OM3.

Who are members of the statutory committee recommending appointment of the Central Vigilance Commissioner?

- A. Prime Minister, Chief Justice of India and Home Minister B. Prime Minister, Home Minister and Lok Sabha Leader of Opposition/statutory substitute C. Prime Minister, Speaker of Lok Sabha and Lok Sabha Leader of Opposition D. President, Prime Minister and Chief Justice of India

Answer: B.

Explanation: [FACT] CVC appointments use the PM-Home Minister-LoP committee. The CJI belongs to the CBI Director committee, not the CVC committee.

OM4.

Which is correct regarding CVC/VC tenure?

- A. Four years or age 65, whichever is earlier B. Four years with automatic reappointment C. Six years or age 65, whichever is earlier D. Five years with no age ceiling

Answer: A.

Explanation: [FACT] The four-year/65 rule applies. A VC appointed CVC remains subject to the aggregate four-year cap.

OM5.

Removal of the CVC for proved misbehaviour or incapacity ordinarily requires:

- A. A simple majority resolution of Lok Sabha B. Presidential reference, Supreme Court inquiry and presidential removal order C. CVC selection committee recommendation alone D. Cabinet advice followed by immediate termination

Answer: B.

Explanation: [FACT] Section 6 prescribes the Supreme Court inquiry route for proved misbehaviour or incapacity, distinct from listed direct statutory grounds.

OM6.

While supervising DSPE anti-corruption investigations, the CVC:

- A. Cannot require investigation or disposal of a particular case in a particular manner B. May order conviction of a public servant C. Replaces the trial court in evaluating evidence D. May exercise unlimited police power throughout India

Answer: A.

Explanation: [FACT] The section 8 proviso protects case-specific investigative judgment from dictated manner or result.

OM7.

If a covered organisation disagrees with CVC advice after an inquiry report, it must:

- A. Refer every disagreement to Parliament B. Obtain Supreme Court approval C. Record reasons in writing and communicate them to CVC D. Treat the advice as void without response

Answer: C.

Explanation: [FACT] CVC advice is not automatically binding, but section 17 requires written reasons for disagreement.

OM8.

The CVC's annual report:

- A. Is submitted directly to the Supreme Court B. Is sent only to DoPT and remains confidential by statute C. Excludes all reference to DSPE functioning D. Is presented to the President and laid before both Houses, with a separate relevant DSPE part

Answer: D.

Explanation: [FACT] Section 14 creates the annual reporting and parliamentary-laying mechanism.

OM9.

Under DSPE Act section 2, the baseline territorial police powers of DSPE apply to:

A. Union Territories B. Only railway property C. All States automatically D. Foreign territories

Answer: A.

Explanation: [FACT] The State-area route is built through sections 5-6; Union Territories are the section 2 baseline.

OM10.

The classes of offences to be investigated by DSPE are specified by:

A. The Central Government by notification under section 3 B. Every State Governor independently C. The CVC through an annual report D. The Lok Sabha Speaker

Answer: A.

Explanation: [FACT] Section 3 is the notified-offence gate; organisational importance alone does not create offence jurisdiction.

OM11.

Which correctly states the DSPE superintendence split?

A. Central Government supervises every PC Act investigation without limitation. B. CVC supervises relevant PC Act investigations; Central Government supervises other DSPE matters, subject to special law. C. CVC supervises every CBI function, including INTERPOL administration. D. State Governments jointly supervise all CBI cases.

Answer: B.

Explanation: [FACT] DSPE Act section 4 divides superintendence by subject and remains subject to special provisions such as the Lokpal Act.

OM12.

CBI's administrative placement under DoPT necessarily means:

A. State consent is unnecessary B. CVC has no statutory role C. Every investigation is unconstitutional D. Administrative placement alone does not prove lawful case-specific PMO direction

Answer: D.

Explanation: [ANALYSIS] Administration and investigative judgment are distinct. Any interference claim needs evidence and legal analysis.

OM13.

The high-powered committee recommending appointment of the CBI Director includes:

A. Prime Minister, Home Minister and CVC B. Prime Minister, Lok Sabha LoP/substitute, and CJI or CJI nominee C. Cabinet Secretary, Home Secretary and CJI D. President, CVC and Attorney General

Answer: B.

Explanation: [FACT] This is the present section 4A committee. It should not be confused with the CVC appointment committee.

OM14.

The statutorily protected minimum tenure of the CBI Director is:

A. Three years B. One year C. Five years D. Two years

Answer: D.

Explanation: [FACT] Section 4B creates a two-year floor; five years is only the aggregate maximum after conditional extensions.

OM15.

Under the 2021 DSPE amendment, a Director's extension:

A. Can continue without an aggregate ceiling B. Is automatic until five years C. Requires public interest, committee recommendation and recorded reasons, one year at a time D. May be granted for any period by DoPT alone

Answer: C.

Explanation: [FACT] The conditions are cumulative and the aggregate period cannot exceed five years.

OM16.

Transfer of the CBI Director during protected tenure requires:

A. CVC advice only B. Prior consent of the section 4A committee C. State consent D. Parliamentary approval

Answer: B.

Explanation: [FACT] The committee safeguard also informed the Supreme Court's substance-based reasoning in *Alok Verma*.

OM17.

Which best distinguishes general and case-specific State consent?

A. General consent applies only to Union Territories. B. General consent is standing for defined classes; case-specific consent is tied to a named case/facts. C. General consent comes from courts; specific consent comes from Parliament. D. There is no legal difference.

Answer: B.

Explanation: [FACT] Scope, conditions and timing of the consent instrument determine its effect.

OM18.

According to *Kazi Lhendup Dorji v. CBI (1994)*, withdrawal of consent:

A. Retrospectively voids every act of investigation B. Gives CBI permanent jurisdiction over all future State cases C. Does not automatically terminate investigations validly begun before withdrawal D. Removes the need for a police report

Answer: C.

Explanation: [FACT] The rule is prospective and must not be enlarged into a general future-investigation power.

OM19.

The *STATE OF WEST BENGAL V. COMMITTEE FOR PROTECTION OF DEMOCRATIC RIGHTS (2010)* Constitution Bench held that:

A. Parliament alone may order a CBI investigation B. SC/HC may exceptionally direct CBI investigation without State consent under Articles 32/226 C. Every allegation against State police must go to CBI D. State consent is never required under section 6

Answer: B.

Explanation: [FACT] Constitutional judicial review supplies a separate route, to be used sparingly and cautiously.

OM20.

The safest reading of *Fertico Marketing and Investment Pvt. Ltd. v. CBI (2020)* is:

A. Later consent is constitutionally prohibited B. Consent defects are always irrelevant C. CBI may investigate any State employee without authority D. Its result was fact-specific and does not establish that later consent always cures absence of consent

Answer: D.

Explanation: [FACT] The consent rider, manner in which State servants emerged, later consent and pleaded prejudice were material.

OM21.

The 2024 Supreme Court judgment in *State of West Bengal v Union of India* cited here:

A. Finally upheld every challenged CBI investigation B. Declared CBI unconstitutional C. Rejected a preliminary maintainability objection but did not decide merits D. Abolished section 6 consent

Answer: C.

Explanation: [FACT] The Court expressly limited the decision to the preliminary objection.

OM22.

The central principle of *Alok Kumar Verma v. Union of India* (2019) for Director protection is:

A. The Director is immune from all supervision B. Divesting powers may have transfer-equivalent effect and cannot evade committee protection C. Only a written transfer order can affect tenure D. The President alone selects the Director

Answer: B.

Explanation: [FACT] The Court focused on the substance and effect of the action.

OM23.

Dr Jaya Thakur v. Union of India (2023) (2023) held that:

A. The 2021 amendment was wholly unconstitutional B. Every Director is entitled to five years C. The extension framework is valid, but its statutory conditions must govern each extension D. Written reasons are unnecessary

Answer: C.

Explanation: [FACT] Validity of the framework and legality of a particular extension are separate inquiries.

OM24.

The “caged parrot” phrase should be used in an answer as:

A. Judicial criticism/context, with enforceable safeguards traced to actual statutes and holdings B. The text of DSPE Act section 4 C. A binding test invalidating all CBI reports D. Proof of interference in every case

Answer: A.

Explanation: [LIMIT] The metaphor captures a legitimacy concern; it is not a substitute for ratio or proof.

OM25.

Under Lokpal Act section 20, complaints selected for preliminary inquiry concerning Group A-D public servants are routed:

A. To CVC in the manner specified by the Act B. Only to State police C. Automatically to ED D. Directly to Parliament

Answer: A.

Explanation: [FACT] The Act then distinguishes how CVC handles Group A-D and Group B-C matters.

OM26.

Which is correct after *CBI v. Thommandru Hannah Vijayalakshmi* (2021)?

A. A PE must determine guilt. B. CBI can never use source information. C. PE is not mandatory before every corruption FIR; a Regular Case may be directly registered when cognizable offence information is disclosed. D. PE is an enforceable right of every accused.

Answer: C.

Explanation: [FACT] PE remains useful in an appropriate case but is not a compulsory precondition or a defence entitlement.

OM27.

Which institution finally determines criminal guilt?

A. CVC B. CVO C. The competent court after due process D. CBI

Answer: C.

Explanation: [FACT] Investigation and advice produce inputs; adjudication and conviction belong to the court.

OM28.

Which statement correctly separates CBI and ED?

A. CBI exercises every power under PMLA. B. ED is a wing of CBI. C. ED needs State consent under DSPE section 6 for every PMLA action. D. CBI may investigate a competent predicate offence, while ED separately exercises PMLA powers over money laundering.

Answer: D.

Explanation: [FACT] Overlapping facts do not merge statutory mandates.

OM29.

NIA differs from CBI primarily because NIA:

A. Is supervised by CVC for every case B. Operates under the NIA Act's scheduled-offence architecture C. Was created by the 1963 CBI resolution D. Has no police powers

Answer: B.

Explanation: [FACT] The NIA Act supplies a distinct central-investigation route for scheduled offences.

OM30.

A departmental CVO is best understood as:

A. An internal vigilance node connecting preventive/disciplinary work with the CVC framework B. A general police station C. A constitutional authority superior to CVC D. The final criminal court

Answer: A.

Explanation: [FACT] CVOs assist vigilance administration but do not acquire the full police powers of DSPE.

OM31.

Which reform best combines independence with accountability?

A. Abolition of all judicial review B. Transparent case-allocation safeguards plus protected operational confidentiality and audit C. Unlimited executive power to transfer investigators D. Complete secrecy with no reporting

Answer: B.

Explanation: [ANALYSIS] Insulation must coexist with lawful review, reason-giving and aggregate reporting.

OM32.

Which statement on State consent is most accurate?

A. It is absolute even against a High Court order. B. It applies only to economic offences. C. It is irrelevant because CBI is a Union agency. D. It governs the ordinary DSPE State-area route but is qualified by constitutional-court power and precedent on pending cases.

Answer: D.

Explanation: [FACT] This formulation preserves both section 6 federalism and judicial review.

OM33.

CVC's inquiry-related civil-court powers include:

A. Sentencing an accused to imprisonment B. Summoning persons and requiring document production C. Overriding a trial judgment D. Registering every FIR in India

Answer: B.

Explanation: [FACT] Procedural powers for inquiry do not make CVC a criminal court.

OM34.

Which statement about the CBI Director of Prosecution is correct?

A. The officer appoints the CBI Director. B. The post is filled by State Governors. C. Central Government appoints on CVC recommendation, and the officer works under overall supervision and control of the CBI Director. D. The post has no statutory tenure protection.

Answer: C.

Explanation: [FACT] DSPE Act section 4BA also provides a minimum two-year tenure.

OM35.

For DSPE posts of Superintendent of Police and above, the CVC-chaired committee:

- A. Recommends appointment and tenure-related decisions after consulting the Director B. Conducts criminal trials C. Replaces the section 4A Director committee D. Requires approval from every State

Answer: A.

Explanation: [FACT] Section 4C creates this separate senior-personnel mechanism.

OM36.

For a Mains answer on CBI federalism, the strongest structure is:

- A. State that either Union or States have absolute power B. Begin and end with the “caged parrot” phrase C. List allegations without law D. Claim -> sections 5-6 -> named cases -> federal analysis -> qualified reform

Answer: D.

Explanation: [ANALYSIS] The structure converts description into authority-backed evaluation.

E. Remedial MCQs - 12 Questions

RM1.

A student writes: “CBI is a statutory body created by the DSPE Act.” What is the best correction?

- A. CBI was created by the 1963 resolution; DSPE is the statutory police establishment under the 1946 Act. B. CBI was created by the CVC Act. C. CBI is a constitutional body. D. The statement is fully correct.

Answer: A.

Explanation: Separate organisation from statutory police establishment.

RM2.

“CVC superintendence” permits CVC to:

- A. Order automatic conviction B. Ignore the section 8 proviso C. Supervise relevant processes but not dictate a particular case’s investigation or disposal manner D. Write the final judgment

Answer: C.

Explanation: The case-dictation prohibition is a central independence safeguard.

RM3.

Which proposition correctly follows from *Kazi Lhendup Dorji v. CBI (1994)*?

- A. Consent can never be withdrawn. B. Withdrawal authorises all new CBI cases. C. State police cease to exist. D. Withdrawal does not retrospectively terminate investigations validly begun under earlier consent.

Answer: D.

Explanation: The holding protects continuity of already instituted investigations, not unlimited future jurisdiction.

RM4.

A High Court orders CBI investigation without State consent in an exceptional rights case. The authority comes from:

- A. DoPT administrative control B. CVC annual report C. Article 226 constitutional power as recognised in *STATE OF WEST BENGAL V. COMMITTEE FOR PROTECTION OF DEMOCRATIC RIGHTS (2010)* D. Deemed general consent

Answer: C.

Explanation: Court direction is not a disguised section 6 consent route.

RM5.

Which condition belongs to the 2021 Director-extension framework?

- A. One-year-at-a-time extension on committee recommendation, public interest and recorded reasons B. Oral reasons by DoPT alone C. Automatic five-year tenure from day one D. No aggregate ceiling

Answer: A.

Explanation: Every annual extension requires statutory satisfaction; five years is only the aggregate maximum.

RM6.

For a Lokpal-referred DSPE investigation, the Lokpal:

A. Becomes the State police chief B. Decides guilt itself C. Abolishes CVC D. Has special statutory superintendence but cannot dictate investigation/disposal in a particular manner

Answer: D.

Explanation: Section 25 combines special supervision with an express non-dictation safeguard.

RM7.

An FIR by CBI means:

A. State consent can never be questioned B. Conviction is certain C. The formal investigation threshold is crossed, not that guilt is proved D. CVC has imposed a penalty

Answer: C.

Explanation: Allegation, FIR, charge sheet and conviction are different stages with different thresholds.

RM8.

Why does this package not state how many States currently withhold general consent?

A. Such data can never be published. B. State consent is irrelevant. C. No State can withdraw it. D. The count is transient and must be verified against a date-specific official source.

Answer: D.

Explanation: [LIMIT] Durable notes should not freeze a volatile number without live official evidence.

RM9.

When a covered organisation disagrees with CVC advice, the accountability device is:

A. Automatic imprisonment B. A fresh constitutional amendment C. State consent D. Written reasons communicated to CVC

Answer: D.

Explanation: Reason-giving enables institutional scrutiny while preserving competent-authority responsibility.

RM10.

Which trio belongs to the CBI Director selection committee?

A. PM, Lok Sabha LoP/substitute, CJI/nominee B. President, Speaker, Attorney General C. PM, Home Minister, CVC D. CVC, CAG, UPSC Chairperson

Answer: A.

Explanation: Do not import the CVC appointment committee into DSPE section 4A.

RM11.

Which pairing is correct?

A. CVC - general criminal trial B. NIA - PMLA C. CBI/DSPE - notified offences and DSPE jurisdiction; ED - PMLA money-laundering field D. ED - DSPE Act

Answer: C.

Explanation: Each body's power must be traced to its own governing law.

RM12.

Who gives the final determination of criminal guilt?

A. Competent court B. CBI Director C. Media D. CVC

Answer: A.

Explanation: The presumption of innocence continues through investigation and prosecution.

Visual 74 - MCQ Rotation Audit

Original MCQs 1-36:

C B D A | C B D A | C B D A | C B D A | C B D A
| C B D A | C B D A | C B D A | C B D A

Remedials 1-12:

C B D A | C B D A | C B D A

Continuous total:

48 markers = (C B D A) repeated 12 times

Caption: The correct option never repeats consecutively and the rotation continues across the original/remedial boundary.

PYQS AND ANSWER PRACTICE

A. PYQ Routing Audit

[FACT] The local direct-owner and cross-cutting routing ledgers, topic owners, recent Polity packages and official papers were searched for CVC/CBI-linked questions.

Visual 71 - Verified PYQ Coverage

Year/paper	Question	Routing status	Treatment
2021 GS-II Q11	CBI jurisdiction, State consent and federal character	Verified cross-cutting Polity PYQ	Fully solved below
2026 Prelims GS-I Q63, Set A	Organisation-function-controlling Ministry matching	Verified official paper; provisional key only in local control ledger	Exact question reproduced; deliberately unsolved

Caption: No additional question is labelled as a direct verified PYQ merely because it is thematically similar.

[LIMIT] The 2026 key in the local audit trail is provisional and records no answer letter. This package neither infers an answer from a provisional count nor resolves individual rows indirectly.

B. Verified Mains PYQ - 2021 GS-II Q11

Question: “The jurisdiction of the Central Bureau of Investigation regarding lodging an FIR and conducting a probe within a particular State is being questioned by various States. However, the power of States to withhold consent to the CBI is not absolute. Explain with special reference to the federal character of India.” **15 marks | 250 words |**

Directive: Explain

Visual 72 - PYQ Demand Map

PART 1: Why State consent exists

DSPE sections 5-6 + State police field

|

PART 2: Why it is not absolute

SC/HC constitutional power + pending-case rule

|

PART 3: Federal evaluation

State autonomy + rights + judicial review

|

PART 4: Balanced conclusion

exceptional court power + cooperative protocols

Caption: The question asks for a qualified federal explanation, not a defence of either unlimited Union power or an absolute State veto.

Model Solution

The CBI is an executive-created organisation, while its core police powers arise from the Delhi Special Police Establishment Act, 1946. [FACT] Sections 5 and 6 reflect India’s federal structure: the Central Government may extend DSPE powers to a State area, but their ordinary exercise requires the State Government’s consent. This respects “police” and “public order” as State List subjects.

Consent may be general for defined classes of cases or case-specific. [FACT] A State may prospectively withdraw general consent, thereby requiring a fresh legal basis for new investigations. However, the veto is not absolute for three reasons.

First, [FACT] in *Kazi Lhendup Dorji v. CBI (1994) v CBI (1994)*, the Supreme Court held that later withdrawal did not terminate investigations validly commenced while consent operated; CBI could complete them and submit its police report.

Second, [FACT] in *State of West Bengal v State of West Bengal v. Committee for Protection of Democratic Rights (2010) (2010)*, a Constitution Bench held that High Courts under Article 226 and the Supreme Court under Article 32 may direct a CBI investigation without State consent. Such power flows from the Constitution, not section 6, and protects fundamental rights and judicial review. [LIMIT] The Court required sparing, cautious and exceptional use; routine transfer would itself erode federal balance and State-police responsibility.

Third, the precise terms and timing of consent matter. [FACT] *Fertico Marketing and Investment Pvt. Ltd. v. CBI (2020) (2020)* reached a fact-specific result and cannot be converted into a universal rule that later consent always cures a defect.

[ANALYSIS] Thus, Indian federalism creates neither an unchecked central police nor an unreviewable State shield. The preferred equilibrium is State consent in the ordinary route, constitutional-court intervention in exceptional cases, and transparent Union-State protocols for investigations crossing jurisdictions.

Examiner Value Addition

- Use “qualified State veto,” not “State consent is irrelevant.”
- Name sections 5-6 before citing *STATE OF WEST BENGAL V. COMMITTEE FOR PROTECTION OF DEMOCRATIC RIGHTS (2010)*.
- Distinguish pending cases from new cases after withdrawal.
- End with cooperative federalism and rights-protecting judicial review.

C. Verified Prelims PYQ - 2026 GS-I Q63 (Controlled Unsolved)

63. With reference to the organisations under the Government of India, consider the following details:

Sl. No.	Organisation	Function	Controlling Union Ministry
1.	Central Economic Intelligence Bureau (CEIB)	To coordinate between various law enforcement agencies	Ministry of Home Affairs
2.	Serious Fraud Investigation Office (SFIO)	To investigate complex corporate frauds	Ministry of Finance
3.	Central Bureau of Investigation (CBI)	To preserve values in public life and ensure the health of the national economy	Ministry of Personnel, Public Grievances and Pension

In how many of the above rows are the given details correctly matched? (a) 1 (b) 2 (c) 3 (d) None

Visual 73 - How to Audit a Matching Question Without Guessing

FOR EACH ROW, VERIFY THREE INDEPENDENT ELEMENTS

```

organisation identity
+
officially assigned function
+
current administrative ministry/department
=
row-level conclusion
  
```

Only then count correct rows.

Caption: A familiar function cannot compensate for a wrong ministry, and a correct ministry cannot compensate for an inaccurate mandate.

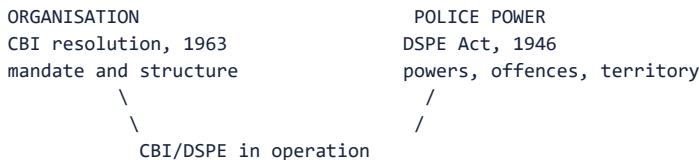
[LIMIT] **Resolution withheld:** the official paper wording is verified, but the available local answer-key control is provisional and contains no recorded answer letter. No option, count or row-wise conclusion is supplied here.

F. Original Solved Mains Practice - 8 Questions

M1. 10 Marks / 150 Words

“The CBI’s organisational birth and its investigative powers arise from different legal instruments.” Explain.

Visual 75 - Two-Layer Thesis



Caption: The distinction prevents the common error of calling CBI itself a statutory body created by the DSPE Act.

Model solution:

The Central Bureau of Investigation is a Union investigative organisation, but its legal identity is hybrid.

[FACT] The Government of India established CBI through a Home Ministry resolution dated 1 April 1963. The resolution organised a wider bureau covering investigation and anti-corruption, economic offences, special crimes and related work. Therefore, no standalone “CBI Act” created the organisation.

[FACT] Its core police powers are principally exercised through the Delhi Special Police Establishment constituted under the DSPE Act, 1946. Section 2 supplies the Union Territory baseline; section 3 requires notified offence classes; sections 5-6 govern extension to State areas and State consent. The DSPE Act also provides the superintendence, Director-selection, tenure and senior-appointment architecture.

[ANALYSIS] Thus, executive creation explains organisational form, while statute supplies coercive authority and limits. An executive resolution cannot by itself override federal consent, criminal procedure or judicial safeguards.

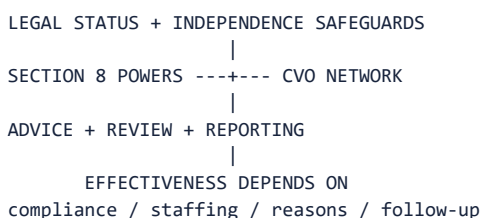
[LIMIT] Calling CBI “non-statutory” should not imply that its investigators act without statutory power. The precise formulation is: **CBI is executive-created; DSPE police powers are statutory.**

Conclusion: A dedicated CBI law may improve institutional clarity, but until enacted, answers must preserve this two-layer legal identity.

M2. 15 Marks / 250 Words

Examine whether the CVC is an effective “apex vigilance institution” despite being primarily advisory and supervisory.

Visual 76 - CVC Effectiveness Test



Caption: Formal power creates capacity; organisational compliance converts capacity into outcome.

Model solution:

The CVC Act, 2003 makes the Central Vigilance Commission the statutory apex of the Union vigilance framework, but not a general anti-corruption police force.

[FACT] Its institutional strength lies in a multi-member Commission, committee-based presidential appointment, fixed tenure, protected removal, post-tenure employment restrictions, expenditure charged on the Consolidated Fund of India and annual reporting to Parliament.

Operationally, [FACT] section 8 gives CVC superintendence over DSPE investigations under the Prevention of Corruption Act, constrained direction power, complaint/reference inquiry routes, review of investigations and prosecution-sanction applications, advice to covered central organisations and supervision of vigilance administration. Through CVOs, it can combine preventive vigilance with departmental follow-up.

However, its model is deliberately bounded. It cannot dictate how a named case must be investigated or disposed of, conduct every criminal investigation itself, impose criminal guilt, or operate as a universal ombudsman. [FACT] Its advice is not automatically binding; the organisation may disagree after recording and communicating reasons.

[ANALYSIS] Advisory status is not necessarily weakness. It preserves departmental responsibility and avoids merging investigator, prosecutor and adjudicator. Yet effectiveness falls when reasons are formulaic, appointments or staffing are delayed, CVOs lack functional independence, prosecution sanction is slow, or aggregate reporting does not produce legislative scrutiny.

Way forward: strengthen time-bound reasoned compliance, professional CVO protection, digital vigilance analytics, public aggregate reporting and follow-up audit, while retaining the prohibition on case-specific dictation.

Conclusion: CVC is structurally significant but outcome-dependent-an oversight hub whose credibility rests on the quality of advice, compliance and transparent institutional response.

M3. 15 Marks / 250 Words

Analyse the constitutional and statutory limits on State power to deny CBI jurisdiction.

Visual 77 - Qualified State Veto



Caption: State consent is legally meaningful but not superior to constitutional judicial review.

Model solution:

State control over police and public order is a core federal feature. The DSPE Act translates that feature into an ordinary territorial gate for CBI/DSPE investigations.

[FACT] Section 5 authorises the Central Government to extend DSPE powers to a State area, while section 6 requires the State Government's consent. Consent may be general for defined categories or specific to a case. A State may prospectively withdraw general consent, ordinarily requiring fresh authority for new investigations.

The power is nevertheless qualified. First, [FACT] *Kazi Lhendup Dorji v. CBI (1994) v CBI* held that withdrawal did not retrospectively terminate investigations validly begun when consent existed. The agency could complete investigation and submit the police report.

Second, [FACT] the Constitution Bench in *State of West Bengal v STATE OF WEST BENGAL V. COMMITTEE FOR PROTECTION OF DEMOCRATIC RIGHTS (2010)* held that the Supreme Court and High Courts may direct a CBI probe without State consent under Articles 32 and 226. Such authority arises from constitutional judicial review and protection of fundamental rights, not from a fiction of consent. [LIMIT] The power must be used sparingly, cautiously and exceptionally, so State police are not routinely displaced.

Third, consent disputes remain fact-sensitive. [FACT] *Fertico Marketing and Investment Pvt. Ltd. v. CBI (2020)* cannot be generalised into an automatic post-facto cure. Likewise, the 2024 *West Bengal v Union* ruling cited here rejected only a maintainability objection and did not settle merits.

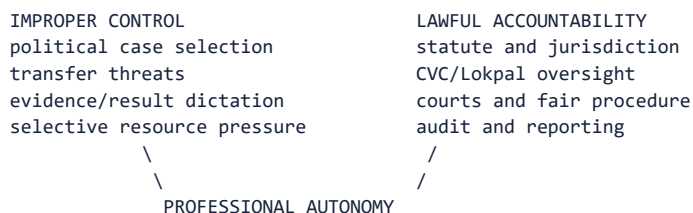
[ANALYSIS] An absolute State veto could shield rights violations; an unchecked Union police could undermine the State List. Federalism therefore requires a rule-bound ordinary consent route, exceptional judicial correction and cooperative protocols for inter-jurisdictional crime.

Conclusion: The State's power is substantial, prospective and federal-but neither retrospective over every pending case nor immune from constitutional review.

M4. 20 Marks / 300 Words

“The central challenge is not to make CBI unaccountable to government, but to make investigation independent of improper control while keeping the agency answerable to law.” Critically analyse.

Visual 78 - Insulation with Answerability



Caption: Institutional design must remove outcome manipulation without creating a secret, self-judging police authority.

Model solution:

CBI occupies a difficult constitutional position: it handles nationally significant investigations, yet its organisation is executive-created, its administration lies within the Union executive and its State-area powers are federally conditioned.

Several safeguards support independence. [FACT] *Vineet Narain v. Union of India (1997)* led to statutory CVC supervision over PC Act investigations, a protected minimum tenure and committee-based appointment/transfer safeguards. DSPE section 4A disperses Director selection across the Prime Minister, Opposition and judiciary. Section 4B protects a two-year minimum and requires committee consent for transfer. [FACT] *Alok Verma* prevented evasion of this protection through transfer-equivalent divestment of powers. The 2021 extension regime requires public interest, committee recommendation, written reasons and annual renewal within a five-year aggregate ceiling.

Yet vulnerabilities remain. [ANALYSIS] Executive influence may operate through staffing, deputation, budget, promotion, selective references or public narratives even without a written direction. State-consent withdrawals can fragment investigations. Sanction delays and vacancies can weaken timelines. Perceived selective use damages public trust even where evidence in a particular case is sound.

However, complete insulation from government would be constitutionally undesirable. Police power requires legal jurisdiction, financial audit, service regulation, prosecution scrutiny and judicial review. CVC and Lokpal superintendence are themselves bounded: neither may dictate a particular case result. Parliament must receive system-level information, while courts ensure due process and the accused retains the presumption of innocence.

Reform should therefore:

1. enact a debated CBI law defining organisation, mandate and accountability;
2. protect a professional multidisciplinary cadre and functional budget;
3. make case allocation, recusals and transfer reasons auditable;
4. develop statutory-consistent federal consent protocols;
5. strengthen aggregate parliamentary reporting without prejudicing live cases; and
6. penalise unlawful interference while preserving lawful supervision.

Conclusion: The goal is neither “CBI under command” nor “CBI beyond control,” but **operationally insulated, legally bounded and publicly accountable investigation.**

M5. 10 Marks / 150 Words

Differentiate the roles of Lokpal, CVC, CBI and departmental CVOs in processing corruption allegations.

Visual 79 - Role-to-Output Chain

LOKPAL	-> complaint route and statutory directions
CVC	-> vigilance supervision, advice and referral
CBI/DSPE	-> police investigation and final report
CVO	-> departmental vigilance and preventive control
COURT	-> guilt determination

Caption: Complementarity arises because each institution produces a different legal output.

Model solution:

The four institutions form an interconnected but non-hierarchical anti-corruption network.

[FACT] Lokpal receives complaints against persons covered by the Lokpal Act. It may order preliminary inquiry or investigation through its Inquiry Wing or an agency including DSPE. Section 20 routes specified Group A-D preliminary inquiries to CVC, and section 25 gives Lokpal special superintendence over DSPE matters referred by it.

[FACT] CVC is the apex Union vigilance institution. It supervises relevant DSPE anti-corruption investigations, reviews investigation and sanction progress, advises covered organisations and oversees vigilance administration. It cannot dictate a named case's manner of disposal.

[FACT] CBI/DSPE exercises police powers: registration, evidence collection, searches/arrests where lawful and submission of charge sheet or closure report.

CVOs are departmental nodes for preventive vigilance, complaint examination, system correction and disciplinary coordination.

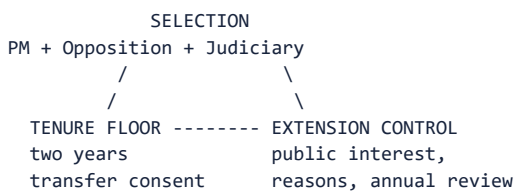
[ANALYSIS] The institutions are complementary because complaint scrutiny, vigilance advice, police investigation, prosecution and adjudication require different safeguards.

Conclusion: Treating one as the universal superior of the others obscures statutory routes and produces incorrect UPSC answers.

M6. 15 Marks / 250 Words

Discuss how the appointment and tenure architecture of the CBI Director attempts to reconcile continuity with democratic accountability.

Visual 80 - Director Safeguard Triangle



Caption: Selection dispersion, tenure security and conditional continuation address different risks.

Model solution:

Continuity in a premier investigation agency protects ongoing cases from disruption, while democratic accountability prevents the Director from becoming an unreviewable authority.

[FACT] DSPE Act section 4A requires appointment by the Central Government on recommendation of a committee comprising the Prime Minister, Lok Sabha Leader of Opposition-or statutory substitute-and Chief Justice of India or nominee. The cross-institutional design reduces unilateral appointment.

[FACT] A CVC-chaired committee prepares the eligible IPS panel on seniority, integrity and anti-corruption investigation experience, considering the outgoing Director's views. Section 4B then provides a minimum two-year tenure and requires prior section 4A committee consent for transfer.

The judiciary has protected the substance of tenure. [FACT] *Alok Kumar Verma v. Union of India (2019)* treated divestment of powers as having transfer-like effect and required committee consideration.

The 2021 amendment introduced conditional continuation beyond the initial tenure: [FACT] each extension must be in public interest, based on section 4A committee recommendation, supported by written reasons, granted one year at a time and remain within an aggregate five-year ceiling. *Dr Jaya Thakur v. Union of India (2023)* upheld this framework.

[ANALYSIS] The design creates continuity but raises two concerns: repeated annual extensions may create perceived dependence on reappointment, and "public interest" can become formulaic unless reasons receive genuine scrutiny.

Reform: publish non-sensitive reasons, initiate succession planning early, maintain objective performance criteria and preserve judicial review.

Conclusion: The two-year floor protects independence; committee-based, reasoned annual extension protects accountability. Neither the floor nor the ceiling is a personal entitlement.

M7. 15 Marks / 250 Words

Compare CBI with ED, NIA and State anti-corruption agencies. Why is legal-domain separation essential?

Visual 81 - Domain Separation

CBI/DSPE -> notified corruption/economic/special crimes
ED -> FEMA/PMLA enforcement and money laundering
NIA -> NIA Act scheduled offences
State ACB-> State-public-servant corruption / State police field

Same transaction can create parallel lawful proceedings,
but no agency inherits another statute's powers.

Caption: Factual overlap allows coordination; it does not erase jurisdictional boundaries.

Model solution:

India's enforcement system is functionally specialised rather than organised around a single national police body.

[FACT] CBI is an executive-created organisation whose core police powers come through the DSPE Act. It handles notified anti-corruption, economic and selected special-crime work, subject to territorial consent or court-order rules.

ED is a separate Union agency operating under FEMA and the Prevention of Money Laundering Act. Its money-laundering, attachment and related powers cannot be attributed to CBI merely because CBI investigates economic offences.

NIA operates under the NIA Act's scheduled-offence and national-security architecture. Its central assumption of investigation follows a different statute and cannot be used to explain DSPE section 6.

State ACBs/vigilance police ordinarily investigate corruption involving State public servants under State police jurisdiction and applicable criminal law. They are not subordinate branches of CBI.

[ANALYSIS] A single transaction may involve bribery, corporate fraud, a scheduled offence and laundering of proceeds. Parallel agencies may therefore act, but each needs its own offence nexus, territorial authority and procedure. Domain separation:

- protects federalism and legality;
- prevents forum shopping and duplicated coercion;
- clarifies evidence-sharing and prosecution responsibility;
- enables judicial review of each power; and
- helps the accused and public understand legal thresholds.

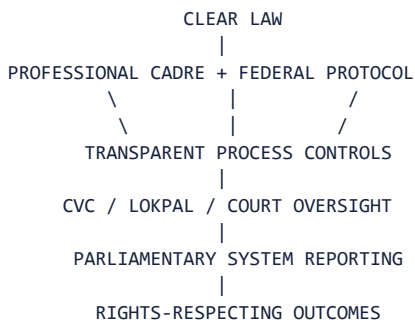
Way forward: create formal inter-agency coordination protocols, common digital evidence standards and lead-agency rules while preserving statutory independence.

Conclusion: Coordination should connect jurisdictions, not collapse them. The correct question is never "which agency is strongest?" but "which statute authorises which act?"

M8. 20 Marks / 300 Words

Propose a reform framework for CVC-CBI that strengthens anti-corruption effectiveness without weakening federalism, due process or parliamentary accountability.

Visual 82 - Reform Architecture



Caption: Durable reform aligns mandate, capacity, federal consent, due process and public accountability.

Model solution:

Anti-corruption reform must address both ineffective investigation and misuse of investigative power. A stronger CBI without federal or rights safeguards may centralise coercion; a stronger consent veto without accountability may obstruct serious cases.

1. Clear legislative mandate: [ANALYSIS] Parliament should debate a dedicated CBI law defining organisational status, offence domain, internal allocation, appointment machinery, protected functional budget, reporting and unlawful-interference offences. It must preserve DSPE section 6 principles and constitutional-court powers.

2. Professional capacity: Build a stable multidisciplinary cadre in policing, forensic accounting, cyber evidence, procurement and prosecution. Deputation should remain available for diversity but should not create chronic dependence. Fixed investigator tenures and documented transfers can protect continuity.

3. Federal protocol: Union and States should adopt a legally consistent model for general/case-specific consent, time-bound requests, reasons, joint teams and evidence transfer. [LIMIT] An executive protocol cannot override sections 5-6; it can only make their exercise predictable.

4. CVC effectiveness: Strengthen CVO functional protection, sanction-delay dashboards, preventive-vigilance analytics, reasoned disagreement with CVC advice and follow-up audits. Preserve the statutory bar on directing a case's particular result.

5. Transparent investigation governance: Use auditable case allocation, written recusals, conflict registers and non-sensitive publication of policy criteria. Operational secrecy should protect evidence and witnesses, not hide arbitrary selection.

6. Due process: Ensure jurisdictional review, section 17A/19 compliance where applicable, time-bound PE/FIR decisions, disclosure obligations, presumption of innocence and effective judicial remedies. Investigative speed cannot substitute for evidentiary quality.

7. Parliamentary accountability: CVC's annual report should present comparable aggregate indicators on investigation stages, sanction delays, systemic risks and action on advice. Committees may scrutinise institutions without demanding prejudicial detail from live cases.

8. Independent review: Periodic expert review of institutional design and public reporting can test whether safeguards reduce both delay and interference.

Conclusion: The reform objective is a **federal, professional and rights-bound national investigation capacity**-independent in evidence and case judgment, accountable in jurisdiction, resources, reasons and outcomes.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

Subject: Polity · **Tier:** Advanced (exam depth) · **GS Paper:** GS-II **Grounded in:** Indian Polity by M. Laxmikant, Ch. 59-60 (direct check of the local Sixth Revised Edition PDF). **FACT:** = from source book · **ANALYSIS:** = inference / case law · **CURRENT:** = current affairs. *Companion:* basic/CVC-and-CBI.md. **ANALYSIS: Note: Neither CVC nor CBI is a constitutional body. CVC = statutory since 2003; CBI = not even statutory - it runs on the Delhi Special Police Establishment (DSPE) Act, 1946.**

PART A - CENTRAL VIGILANCE COMMISSION (CVC) □□

FACT: Apex integrity/anti-corruption body of the Centre.

- **FACT:** Established **1964** by an **executive resolution**, on the recommendation of the ****Santhanam Committee** on Prevention of Corruption (1962-64)**.

- **FACT:** **Originally neither constitutional nor statutory** -> given **statutory status by the CVC Act, 2003** (ANALYSIS: following the SC's **Vineet Narain v. Union of India (1997)** / **Jain Hawala case, 1997** directions).

Composition □

Point	Detail
FACT: Structure	Multi-member: Central Vigilance Commissioner (chairperson) + not more than 2 Vigilance Commissioners
FACT: Appointed by	President , on a 3-member committee: PM (head) + Union Home Minister + LoP (Lok Sabha)
FACT: Term	4 years or 65 years , whichever earlier; no further govt employment after
FACT: Removed by	President (proved misbehaviour/incapacity -> SC inquiry)
FACT: Salary parity	CVC = UPSC Chairman ; Vigilance Commissioner = UPSC member

Powers & functions **FACT:**

- **Superintendence over the CBI (DSPE) only for Prevention of Corruption Act, 1988** offences (□ NOT all CBI work).
- Inquire into corruption complaints vs **AIS + Group-A** central officers.
- **Whistle-blower** authority under **PIDPI Resolution (2004)** & the **Whistle Blowers Protection Act, 2014**.
- Chairs the committee recommending the **ED Director** & (post-Lokpal Act 2013) CBI officers **SP-and-above (except Director)**.
- **Civil-court powers; annual report -> President -> Parliament.** ANALYSIS: Advisory - advice **not binding** (govt must record reasons if it disagrees).

PART B - CENTRAL BUREAU OF INVESTIGATION (CBI) □□

- **FACT:** Set up **1963** by a **Home Ministry resolution**; recommended by the **Santhanam Committee**.
- **FACT:** □ **NOT a statutory body** - derives powers from the **Delhi Special Police Establishment (DSPE) Act, 1946**.
- **FACT:** Main **investigating agency** of the Centre; assists the **CVC & Lokpal**.
- **FACT:** **CBI vs NIA:** NIA (post-2008 Mumbai attack) -> **terror**; CBI -> **corruption, economic & organised crime (non-terror)**.

Director of CBI - appointment (post-Lokpal Act 2013) □

Point	Detail
FACT: Appointed by	Central Govt on a 3-member committee : PM (chair) + LoP (Lok Sabha) + CJI or an SC judge nominated by him
FACT: Tenure	2-year security of tenure (CVC Act, 2003)
FACT: No LoP?	DSPE (Amendment) Act, 2014 -> leader of the single-largest opposition party sits instead

ANALYSIS: **DSPE (Amendment) Act, 2021** - CBI Director's 2-yr term can be **extended annually up to a total of 5 years** (3 one-year extensions) - criticised for enabling govt influence.

□ PMLA & the Enforcement Directorate (ED)

FACT: Grounded in M. Laxmikant *Indian Polity* + ANALYSIS: standard + CURRENT: verified. Added to close a UPSC gap.

- FACT: Laxmikant references the Prevention of Money Laundering Act, 2002 in the anti-corruption/vigilance ecosystem.
- CURRENT: PMLA, 2002 targets laundering of proceeds of crime; ED investigates, attaches property, searches, seizes and arrests under the Act.
- CURRENT: In *Vijay Madanlal Choudhary v. Union of India* (2022), the Supreme Court upheld major ED/PMLA powers including arrest, attachment, search/seizure and twin bail conditions.
- CURRENT: The Court treated the ECIR as an internal ED document, not equivalent to an FIR for automatic supply.
- ANALYSIS: ED's expanding role creates a recurring Mains theme: anti-money-laundering effectiveness vs civil liberties/federal misuse concerns.

PMLA/ED area	UPSC takeaway
Attachment	Property linked to proceeds of crime can be provisionally attached subject to statutory process.
Arrest/search/seizure	Upheld in 2022 within PMLA's special framework.
Bail	Twin conditions under Sec 45 make bail more stringent.
Oversight debate	Due process, ECIR disclosure and political misuse remain contested.

MEMORY: Trap: ED is not the CBI; PMLA is a special money-laundering law with a distinct procedure.

UPSC Traps

- WRONG: CVC/CBI are constitutional -> **CVC statutory (2003); CBI not even statutory (DSPE Act 1946)**.
- WRONG: CVC is a single-member body -> **multi-member** (CVC + up to 2 Vigilance Commissioners).
- WRONG: CVC controls all of the CBI -> superintendence over CBI **only for PC-Act 1988** offences; rest -> **Central Govt**.
- WRONG: The CBI Director selection panel is the same as the CVC's -> CBI panel has the **CJI/SC judge** (CVC panel has the **Home Minister**).
- WRONG: CBI can investigate anywhere freely -> needs **state consent** (DSPE Act); many states **withdrew "general consent."**
- WRONG: CVC's advice is binding -> **advisory** (govt records reasons to differ).
- WRONG: CVC term is 5 years -> **4 years / 65**.

CURRENT: CA hooks

- CURRENT: ANALYSIS: "**Caged parrot**" - SC's 2013 remark (Coalgate) on the CBI's lack of autonomy; recurring **CBI independence/reform** debate.
- CURRENT: **Withdrawal of "general consent"** - several states have withdrawn or altered standing consent, requiring case-specific consent; the roster changes over time, so avoid memorising an undated count/list.
- CURRENT: **DSPE (Amendment) Act 2021 & CVC (Amendment) Act 2021** - enabled **up to 5-year** tenures for CBI & ED Directors via annual extensions.
- CURRENT: Demand for a **statutory charter / separate CBI Act** to insulate it from executive control (2nd ARC, Parliamentary panels).

Mains angles

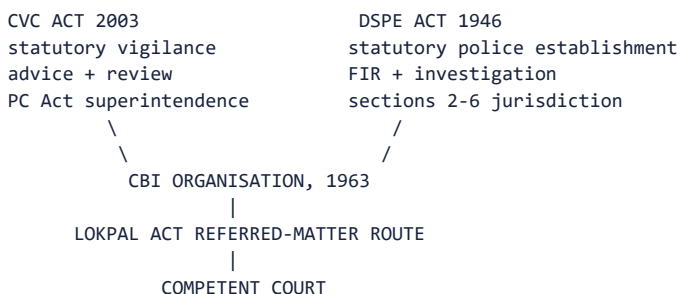
- "The CBI is a caged parrot." Examine the structural causes of its lack of autonomy and suggest reforms.
- Withdrawal of general consent to the CBI: a symptom of eroding cooperative federalism?
- Multiplicity of anti-corruption bodies (CVC, CBI, Lokpal, ED) - synergy or turf war?

CONSOLIDATED REGISTER NOTES

1. Topic Thesis

CVC supervises vigilance; CBI is the organisation; DSPE supplies police power; States control the ordinary State-area route; constitutional courts retain exceptional corrective power.

Visual 83 - Register-Page Master Map



Caption: Use this as the first diagram in any revision notebook.

2. Evolution in Six Lines

1. [FACT] 1941: wartime SPE created by executive order for bribery/corruption connected with War and Supply transactions.
2. [FACT] 1943: wartime ordinance supplied an interim legal framework.
3. [FACT] 1946: DSPE Act created the continuing statutory police establishment.
4. [FACT] 1963: Government resolution created CBI; DSPE became its Investigation and Anti-Corruption Division.
5. [FACT] 1964: CVC created by resolution following the Santhanam Committee recommendation.
6. [FACT] *Vineet Narain v. Union of India (1997)* trajectory led to statutory CVC and codified Director/oversight safeguards through the CVC Act, 2003 and DSPE amendments.

Visual 84 - Evolution Mnemonic

S - Special Police Establishment
D - DSPE Act
B - Bureau created by resolution
V - Vigilance Commission by resolution
J - Judicial safeguards in Vineet Narain v. Union of India (1997)
S - Statutory CVC

"S D B V J S" = SPE -> DSPE -> Bureau -> Vigilance -> Judgment -> Statute

Caption: The mnemonic preserves the correct executive/statutory sequence.

3. CVC Snapshot

Head	Register note
Status	Statutory apex vigilance institution; not constitutional
Composition	CVC + not more than two VCs
Appointment	President; recommendation of PM + Home Minister + Lok Sabha LoP/substitute
Eligibility	Union/All-India administrative-vigilance experience or specified public-sector/specialist experience
Category balance	Not more than two of the three appointees from either eligibility category
Tenure	Four years or age 65, whichever earlier
VC-to-CVC	Permitted through appointment process; aggregate maximum four years
Post-tenure	Specified presidential assignments and further government office-of-profit employment barred
Expenses	Charged on Consolidated Fund of India
Report	President -> both Houses; separate relevant DSPE part

4. CVC Removal

Route A - proved misbehaviour/incapacity

President reference -> Supreme Court inquiry -> Court report -> President removal order

Route B - listed direct grounds

- adjudged insolvent;
- conviction involving moral turpitude in Central Government's opinion;
- paid outside employment during term;
- mental/physical infirmity making continuation unfit in President's opinion; or
- prejudicial financial/other interest.

Deemed misbehaviour: prohibited concern/interest in specified Government of India contract or benefit, subject to the incorporated-company qualification.

5. CVC Section 8 Core

Visual 85 - “S-D-I-R-A-V” Recall

S = Superintend DSPE PC Act investigations
D = Directions, but no particular-case dictation
I = Inquiry/investigation on reference or covered complaint
R = Review investigations and sanction applications
A = Advice to Union/covered bodies
V = Vigilance-administration supervision

Caption: “S-D-I-R-A-V” reproduces the operational sequence without turning CVC into police or court.

Critical limits

- [LIMIT] not a general police station;
- [LIMIT] no power to force a case to be investigated/disposed in a particular manner;
- [LIMIT] no criminal conviction power;
- [LIMIT] complaint/person coverage is statutory, not universal;
- [FACT] advice may be disagreed with, but written reasons must be communicated;
- [FACT] civil-court-like inquiry powers do not make CVC a criminal court.

6. CVO Notes

- CVO = internal vigilance bridge within a Ministry/department/PSU/body.
- Preventive role: risk mapping, sensitive-post rotation, procurement control, conflict management, audit trails.
- Punitive role: complaint examination, disciplinary coordination, referral for investigation.
- CVO is neither CBI officer by default nor final disciplinary/criminal authority.
- Reform focus: stable tenure, professional expertise, direct functional access and auditable follow-up.

7. CBI/DSPE Snapshot

Head	Register note
CBI creation	1 April 1963 Government resolution
DSPE creation	DSPE Act, 1946
Police powers	DSPE Act + applicable criminal procedure/special law
Section 2	UT baseline
Section 3	Central Government-notified offence classes
Section 4	Superintendence split; administration in Director
Section 5	Extension of DSPE jurisdiction/powers to State area
Section 6	State consent for ordinary exercise in State
Domains	Anti-corruption, officially supported economic/special-crime work, INTERPOL NCB
Administrative placement	DoPT; not proof of lawful PMO direction in individual cases

Visual 86 - DSPE “2-3-4-5-6” Ladder

2 = Union Territory powers
3 = offence notification
4 = superintendence + administration
5 = extend to State area
6 = State consent

Caption: This five-number ladder is the fastest prelims and Mains recall device for jurisdiction.

8. Superintendence Split

- [FACT] CVC: DSPE investigations concerning PC Act offences and connected same-trial offences.
- [FACT] Central Government: other DSPE matters, save special statutory provisions.
- [FACT] Director: administration of DSPE.
- [FACT] Lokpal: special superintendence over preliminary inquiry/investigation referred by it.
- [LIMIT] CVC and Lokpal are both barred from dictating investigation/disposal of a particular case in a particular manner.

9. CBI Director

Appointment

Eligible IPS panel -> CVC-chaired panel preparation -> PM + LoP/substitute + CJI/nominee recommendation -> Central Government appointment

Tenure

- minimum protected tenure: two years;
- transfer: prior section 4A committee consent;
- extension: public interest + committee recommendation + written reasons;
- one year at a time;
- aggregate maximum five years;
- five years is not automatic.

Cases

- *Vineet Narain v. Union of India (1997)*: tenure/oversight/internal professional safeguards.
- *Alok Verma*: divesting powers can be transfer-equivalent; committee safeguard applies to substance.
- *Dr Jaya Thakur v. Union of India (2023)*: extension amendments valid; statutory conditions remain mandatory.

Senior posts

- Director of Prosecution: Central Government appoints on CVC recommendation; minimum two years; overall supervision/control of CBI Director.
- SP and above: CVC-chaired committee recommends appointment/tenure decisions after consulting Director.

10. State Consent

Visual 87 - Consent Decision Tree

WHERE?

```
|
+--> Union Territory -> section 2 baseline
|
+--> State
    |
    +--> valid State consent? -> ordinary DSPE route
    |
    +--> SC/HC order? -> constitutional route
    |
    +--> investigation validly began before withdrawal?
        -> may continue under *Kazi Lhendup Dorji v. CBI (1994)*
```

Caption: Always identify territory before discussing consent.

General consent

- standing permission for specified case/offence/person categories;
- may contain riders;
- can be prospectively withdrawn.

Case-specific consent

- tied to named facts, FIR, persons or offences;

- scope depends on exact instrument.

Never write

- State consent is meaningless;
- State veto is absolute against constitutional courts;
- withdrawal automatically voids pending cases;
- post-facto consent always cures absence of consent;
- a current number of withholding States without date-specific official proof.

11. Consent Cases

Case	One-line holding	Qualification
<i>Kazi Lhendup Dorji v. CBI (1994) (1994)</i>	Withdrawal did not stop investigations validly begun earlier	No blanket future power
<i>STATE OF WEST BENGAL V. COMMITTEE FOR PROTECTION OF DEMOCRATIC RIGHTS (2010) (2010)</i>	SC/HC can order CBI probe without State consent	Exceptional, sparing, cautious
<i>Fertico Marketing and Investment Pvt. Ltd. v. CBI (2020) (2020)</i>	Challenge failed on its specific consent/fact/prejudice setting	No universal post-facto-cure rule
<i>West Bengal v Union (2024)</i>	Preliminary maintainability objection rejected	Merits not decided in cited ruling

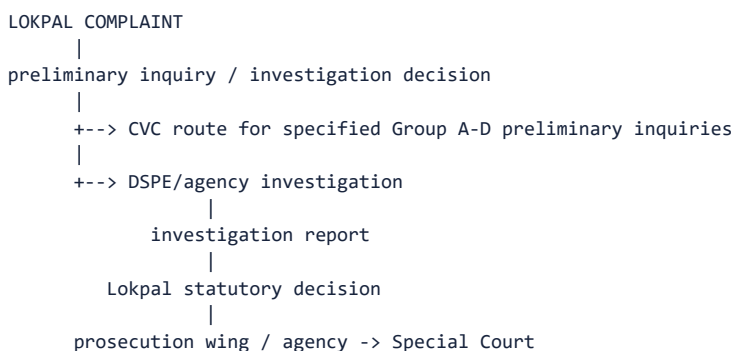
12. Vineet Narain v. Union of India (1997) Safeguards

1. statutory CVC;
2. CVC oversight of anti-corruption investigation;
3. minimum Director tenure;
4. committee control over transfer;
5. Director's professional/internal work-allocation freedom;
6. CBI Manual adherence;
7. continuing judicial concern with institutional independence.

[ANALYSIS] These are buffers against improper control, not a declaration that CBI is outside government and law.

13. Lokpal Interface

Visual 88 - Lokpal-CVC-CBI-Court Flow



Caption: Lokpal controls its referred-matter route without becoming the investigator or trial court in every case.

Key provisions

- Inquiry Wing: preliminary inquiry into alleged PC Act offences by covered public servants.
- Prosecution Wing: files case before Special Court after Lokpal direction.
- Section 20: preliminary inquiry/investigation routes and procedural safeguards.

- Section 23: prosecution-sanction power in the Lokpal route, subject to the Act.
- Section 25: Lokpal superintendence over referred DSPE matters; no case-result dictation.

14. Investigation Lifecycle

1. complaint/source information/reference;
2. threshold assessment;
3. PE where appropriate, or direct FIR/Regular Case where cognizable offence information is disclosed;
4. lawful investigation and evidence collection;
5. statutory approval/sanction gates where applicable;
6. final police report-charge sheet or closure;
7. court consideration;
8. trial;
9. acquittal or conviction.

Judicial control

- *Lalita Kumari*: FIR registration duty where cognizable offence disclosed; limited preliminary inquiry where appropriate.
- *CBI v. Thommandru Hannah Vijayalakshmi (2021)*: PE not mandatory in every corruption case and not an accused's right; direct Regular Case permissible on sufficient cognizable-offence information.

Threshold mnemonic: PE tests disclosure; FIR starts investigation; charge sheet states agency case; trial determines guilt.

15. PC Act Safeguard Gates

- Section 17A: previous approval for specified inquiry/investigation concerning official recommendations/decisions, when statutory conditions apply; read exceptions exactly.
- Section 19: previous sanction for cognizance of specified offences.
- CVC reviews progress of sanction applications.
- Approval/sanction is not guilt determination.
- Delay weakens effectiveness; removal of safeguards altogether risks harassment and poor decision-making.

16. Comparison Capsule

Body	Memory phrase
CVC	Vigilance supervisor and adviser
CBI/DSPE	Police investigator under consent/jurisdiction rules
Lokpal	Statutory complaint router and referred-matter supervisor
CVO	Departmental vigilance node
ED	FEMA/PMLA enforcement and money-laundering agency
NIA	Scheduled-offence national-security investigator
State ACB/police	State police-domain corruption/general investigation
Court	Final adjudicator

17. Independence vs Accountability

Independence tools

- high-powered Director selection;
- protected minimum tenure;
- committee transfer control;
- CVC/Lokpal non-dictation provisos;
- stable investigator tenure;
- professional cadre;
- auditable case allocation.

Accountability tools

- statutory offence and territorial limits;
- CVC/Lokpal supervision;
- judicial review and trial;
- written reasons;
- financial audit;
- annual/parliamentary reporting;
- due-process rights and presumption of innocence.

Visual 89 - Balance Formula

INDEPENDENCE

- improper outcome control
- transfer threats
- selective case allocation

+ ACCOUNTABILITY

- jurisdiction
- reasons
- courts
- audit/reporting

= LEGITIMATE INVESTIGATION

Caption: Use the formula as the conclusion to any institutional-reform answer.

18. Critiques

- executive administrative dependence;
- resolution-based organisational status;
- deputation and specialist-capacity dependence;
- federal consent fragmentation;
- sanction and inter-agency delay;
- perception of selective use;
- confidentiality-accountability tension;
- weak public understanding of differing legal thresholds.

[LIMIT] Do not convert structural risk into an allegation against a named officeholder or case without evidence.

19. Reform Notes

1. dedicated CBI legislation after federal consultation;
2. independent but audited functional budget;
3. stable multidisciplinary cadre;
4. transparent, protected case allocation and recusal;
5. time-bound, legally compliant State-consent protocol;
6. written reasons for transfers, extensions and disagreement with CVC advice;
7. CVO professionalisation and preventive-vigilance analytics;
8. aggregate parliamentary reporting that protects live investigations;
9. digital evidence and inter-agency standards;
10. effective remedy against unlawful interference.

20. Mains Vocabulary

Use:

- “executive-created organisation with statutory police powers through DSPE”;
- “qualified federal consent gate”;
- “constitutional-court route independent of section 6 consent”;
- “operational insulation with legal answerability”;
- “superintendence without case-result dictation”;
- “reason-giving as an accountability device”;
- “conditional extension, not automatic entitlement”;
- “parallel statutory jurisdictions, not institutional merger.”

Avoid:

- “CBI is a constitutional/statutory body”;
- “CVC can punish/convict”;
- “State consent is absolute/irrelevant”;
- “CBI investigates all money laundering”;
- “five-year Director tenure is automatic”;
- “caged parrot is binding legal doctrine.”

Visual 90 - Final 30-Second Revision Box

CVC: 2003 Act | 1 + <=2 | PM-HM-LoP | 4 yrs/65
SECTION 8: supervise, direct-with-limit, inquire, review, advise, vigilance
CBI: 1963 resolution | DSPE: 1946 Act
DSPE 2-3-4-5-6: UT, offences, control, extension, consent
DIRECTOR: PM-LoP-CJI | 2-year floor | transfer consent
EXTENSION: public interest + committee + reasons + 1 year + max 5
COURTS: *STATE OF WEST BENGAL V. COMMITTEE FOR PROTECTION OF DEMOCRATIC RIGHTS (2010)*
exceptional no-consent route
WITHDRAWAL: *Kazi* pending valid cases continue
LOKPAL: referred-matter route | no case-result dictation
GUILT: court alone

Caption: If these ten lines are correct, the core topic is legally controlled.

21. Current-Control Limits to Write in the Margin

- [CURRENT] Structure and holdings controlled to 24 August 2026 for this package.
- [LIMIT] No current officeholders frozen.
- [LIMIT] No count of States withholding consent frozen.
- [LIMIT] No live case, conviction, vacancy or sanction-pendency statistic frozen.
- [LIMIT] 2026 Prelims Q63 remains unresolved here because the routed key is provisional and records no answer letter.
- [LIMIT] The cited 2024 West Bengal judgment is used only for preliminary maintainability, not merits.
- [LIMIT] “Caged parrot” is context, not ratio.
- [LIMIT] Every CBI jurisdiction answer must identify offence, territory and authority route.

Final conclusion: CVC-CBI reform should protect evidence-based investigation from improper power while preserving federal consent, constitutional judicial review, due process, reasoned supervision and parliamentary system accountability.

COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM

ASCII MASTER FLOW - PANEL 1/9: Santhanam trajectory and the CVC-CBI-DSPE legal identity map

ROOT QUESTION

How should vigilance supervision, police investigation and final adjudication be separated?

EVOLUTION

1941 Special Police Establishment -> DSPE Act, 1946
-> CBI resolution, 1 April 1963
-> CVC resolution, 1964 after Santhanam Committee
-> Vineet Narain v. Union of India (1997) safeguards -> CVC Act, 2003.

LEGAL IDENTITY

CVC -> statutory commission under CVC Act.
CBI -> executive-created organisation.
DSPE -> statutory police establishment supplying core investigative powers.

LIMIT

common anti-corruption purpose does not merge advice, police power, prosecution and judgment.

ASCII MASTER FLOW - PANEL 2/9: CVC composition, appointment, tenure, removal and independence safeguards

COMPOSITION

Central Vigilance Commissioner as Chairperson
+ not more than two Vigilance Commissioners.

APPOINTMENT

President by warrant after committee recommendation:
Prime Minister + Union Home Minister + Lok Sabha Opposition Leader/substitute.

QUALIFICATION

experience in vigilance, policy, administration, police administration,
finance including insurance and banking, law or investigations.

TERM

four years or age 65, whichever earlier; statutory post-tenure restrictions apply.

REMOVAL

proved misbehaviour or incapacity -> President after Supreme Court inquiry.
Direct statutory grounds cover insolvency, moral-turpitude conviction,
outside paid employment, infirmity and prejudicial interest.

LIMIT

secure removal does not convert advice into binding adjudication.

ASCII MASTER FLOW - PANEL 3/9: Section 8 functions, CVO system, vigilance advice and sanction monitoring

CVC FUNCTIONS

superintend DSPE investigation of specified Prevention of Corruption Act matters
| issue directions without dictating disposal of a particular case
| review investigation progress and prosecution-sanction applications
| inquire or cause inquiry into covered public-servant complaints
| advise Central Government and covered organisations
| exercise vigilance-administration superintendence.

CVO CHAIN

prevention -> surveillance and complaint scrutiny -> departmental inquiry
-> CVC advice where applicable -> disciplinary authority reasoned decision.

PROSECUTION SANCTION

section 19 PC Act concerns prosecution stage;
section 17A prior approval concerns specified inquiry/investigation decisions.

LIMIT

CVC is not a police station, trial court or universal controller of every CBI case.

ASCII MASTER FLOW - PANEL 4/9: CBI organisation, DSPE powers, notified offences and mandate boundaries

CBI ORGANISATION

investigation and anti-corruption | economic offences | special crimes
| policy, administration, forensics and international cooperation.

DSPE ACT

section 2 -> Union Territory police-establishment baseline.
section 3 -> Central notification specifies offence classes.
section 5 -> Central extension of powers to State areas.
section 6 -> State consent for ordinary exercise in State area.

POLICE POWER

FIR or regular case -> search, seizure, arrest and examination under law
-> evidence assessment -> closure report or charge sheet -> court.

BOUNDARY

organisational mandate does not override notified offences, territory,
criminal procedure, special statutes, consent or court directions.

ASCII MASTER FLOW - PANEL 5/9: Superintendence split and the CBI Director appointment-tenure architecture

SUPERINTENDENCE

CVC for DSPE investigation of specified corruption offences.
Central Government for other DSPE matters.

ADMINISTRATION

Director controls day-to-day administration and investigative judgment,
subject to statute, law and lawful oversight.

DIRECTOR APPOINTMENT

Central Government appoints on committee recommendation:
Prime Minister + Lok Sabha Opposition Leader/substitute + CJI or nominee.

TENURE

minimum two years under DSPE Act.
Current law permits conditional one-year extensions,
with recorded public-interest reasons, up to aggregate five years.

TRANSFER

statutory committee safeguard applies.

TRAP

two-year floor != automatic five-year term and superintendence != case-outcome command.

ASCII MASTER FLOW - PANEL 6/9: State consent, pending investigations and constitutional-court directions

ORDINARY STATE-AREA ROUTE

section 5 extension + section 6 general or case-specific State consent.
Withdrawal of general consent operates prospectively for new ordinary entries.

Kazi Lhendup Dorji v. CBI (1994)
later withdrawal did not terminate investigations validly begun while consent operated.

State of West Bengal v. Committee for Protection of Democratic Rights (2010)
High Court under Article 226 and Supreme Court under Article 32
may direct CBI investigation without State consent, exceptionally and cautiously.

Fertico Marketing and Investment Pvt. Ltd. v. CBI (2020)
fact-specific consent result; no universal rule that later consent always cures defect.

State of West Bengal v. Union of India (2024)
preliminary maintainability objection rejected; cited judgment did not decide consent merits.

FEDERAL VERDICT

qualified State control in ordinary cases + exceptional rights-protecting judicial review.

ASCII MASTER FLOW - PANEL 7/9: Lokpal interface, investigation lifecycle and procedural safeguards

LOKPAL ROUTE

complaint scrutiny -> preliminary inquiry or investigation under Lokpal Act
-> CVC/CBI or statutory wings as assigned -> reports and directions within the Act.

INVESTIGATION LIFECYCLE

source information/complaint -> jurisdiction and approval screen
-> preliminary verification where law permits -> FIR/regular case
-> evidence collection -> sanction question -> final police report
-> prosecution -> trial -> judgment.

CBI v. Thommandru Hannah Vijayalakshmi (2021)
preliminary inquiry is not mandatory before every corruption FIR;
criminal-procedure and corruption-law requirements control.

SAFEGUARDS

lawful approval | reasons | search and arrest standards
| disclosure and fair trial | judicial review | presumption of innocence.

LIMIT

FIR, charge sheet, vigilance advice and sanction are not findings of guilt.

ASCII MASTER FLOW - PANEL 8/9: CVC, CBI, Lokpal, NIA and State Police: power-type comparison

CVC

statutory vigilance supervision and advice | no general police power.

CBI / DSPE

executive organisation + statutory police powers | consent and offence controls.

LOKPAL

statutory ombudsman and complaint-routing authority for covered public functionaries.

NIA

statutory national-security investigation under NIA Act and scheduled-offence framework.

STATE POLICE / ACB

State police power and territorial responsibility under ordinary criminal law.

DEPARTMENTAL CVO

internal prevention, scrutiny and disciplinary-vigilance coordination.

COURT

authorises, reviews, tries and finally determines guilt.

TRAP

administrative placement, vigilance supervision and police command are different relationships.

ASCII MASTER FLOW - PANEL 9/9: Controlling cases, caged-parrot criticism, reform and answer synthesis

Vineet Narain v. Union of India (1997)
institutional safeguards, Director tenure and statutory CVC trajectory.

Alok Kumar Verma v. Union of India (2019)
statutory committee safeguard constrained removal of Director's functions.

Dr Jaya Thakur v. Union of India (2023)
current extension framework upheld; extension remains conditional, not automatic.

"CAGED PARROT"
judicial criticism of perceived executive influence in 2013;
not a statutory status, doctrine or licence for judicial administration of every case.

REFORM
dedicated law with federal safeguards + predictable consent protocol
-> professional cadre and budget -> transparent case allocation
-> timely sanctions -> parliamentary system review + judicial accountability.

PYQ SPINE
2021 State consent and federalism | 2026 controlled institutional matching.

VERDICT
operational autonomy must be paired with legality, federal restraint and answerable coercive power.